

BAHIR DAR UNIVERSITY FACULTY OF LAW

CIVIL PROCEDURE II FOR DISTANCE STUDENTS



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MODULE INTRODUCTION

My dear Distance Student, first and for most, I would like to welcome you to the study of the Course on Civil Procedure II. Till now, you have studied and completed a number of courses on the substantive laws, which deal about the notion and definition of rights, privileges and duties of citizens. You also have already started studying areas of law covered by procedural rules. I am sure you have enjoyed the presentation in the first part of this Course: Civil Procedure I

This Course is a complete move to study the mechanism by which the rights created by substantive laws can be enforced. Therefore, to fully understand the ideas in Civil Procedure, you will be required to remember related notions studied in the courses such as the law of Contracts or Family Law, Succession, etc and most importantly your study in Civil Procedure I. Thus, this Course will enable you to be practical and to put what you know in theory into practice.

During the beginning of studying this Course, we said that the whole study of Civil Procedure is divided into two courses and Modules, Civil Procedure I and Civil Procedure II. These two Courses, though categorized into two-semester courses, should not be taken as unrelated or having no interdependence. They are two aspects of the same subject matter, and the division is dictated only by convenience or consideration of time.

This course, Civil Procedure II, is a three credit hours course and it is meant to lay the basic rules of procedure in litigating civil cases in general and to address grievances of parties on the decision of lower courts in particular. It serves as a key to unlock some very important problems of procedure with respect to review of judgments and execution of decrees.

In studying and better understanding this course, this writer will advise the distance student the following facts. This material is not designed to consider every issue that may arise in the area of Civil Procedure II. This Module rather is intended to discuss and enable you to tackle the fundamental and representative issues in the area. In doing so, you are expected to read and understand the rules enshrined in the Civil Procedure Code of Ethiopia, and Proclamation No. 25/96, which provides for the Powers and Jurisdiction of Federal Courts in

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Ethiopia. If possible, you are advised to refer both to the Amharic and English versions of the Code & the Proclamation.

For your convenience, I have reproduced pertinent provisions of Proclamation, Proc.25/96, and pertinent provisions of the Civil Procedure Code. The full text of the said Proclamation, Proc.25/96 can be found at the end of the First Module to this Course. So, you are kindly advised to refer and analyze them seriously where they are reproduced in the discussions necessary.

This theme of course is presented into four Chapters. The first chapter, Chapter Seven, will introduce you to the general notion or the subject matter of the Trial of a civil suit. It provides for the manner of producing evidence and rendering judgment. It also provides for the definitions and nature of judgment and decree under Civil Procedure.

Chapter Eight discusses procedural systems in which judgments can be reviewed by higher courts. Among other things, this Chapter is designed to show the mechanism by which the party who is aggrieved or dissatisfied by the decision of the court would have his chance to be heard again. Three ways by which a judgment of one court can be reviewed are discussed: The first type is Review by the rendition court. The second way is review by way of appeal; and the last part of the discussion in this Chapter is devoted to address the issue of cassation. Chapter Nine presents execution of Judgments. This is the core of the Module. And by discussing this Chapter, we will come to an end of adjudicative aspects of a civil litigation. The case has been instituted, litigated, determined on the merits, and such review of judgments, as is available under the law, has taken place to ensure the trust citizens have on the judicial system. Where the party against whom a decree has been passed voluntarily complied with it, the case will come to an end. And this is desired! The problem is this; the party against whom a decree has been passed will mostly fail to comply with it. In this case, enforcement of the decree is available in the court render it and this chapter is devoted to address this and other similar issues in executing the decree.

The last chapter, Chapter Ten, discusses other procedural matters, which are not addressed in the previous nine chapters. Among others, the Chapter discusses the issues involved in summary and accelerated procedure, temporary injunctions and interlocutory orders, and the procedure in arbitration. This Chapter is a miscellaneous Chapter, and is intended to give the distance student only a brief introduction of the concepts. The main objective of the

discussion in this Chapter is to show how procedural rules are designed to provide expeditious and fair remedy in appropriate cases.

Summaries, activities and self-check-exercises are in place at the end of each Chapter. Activities and the self-check exercises are very important tools to check your understanding, and hence they deserve special emphasis so that you will be better off if you attempt all of them by yourself before resorting to the discussion, which reveals answers I have given. Test the fun of knowing Civil Procedure.

😊😊 CHEERS 😊😊

CHAPTER SEVEN

THE TRIAL

Dear Distance Student welcome to Chapter Seven, which discusses the climax stage of a civil proceeding. All that has gone culminates in the trial. It is at this stage that the issues developed in the pleadings and at the first hearing are resolved, a judgment rendered on the merits and a decree passed. It is generally the apex of the whole process. Thus, the Chapter essentially discusses the production of evidence, the conduct of the trial, and the rendition of judgment.

Objectives:

At the end of studying this chapter, you will be able to:

- Identify the trial stage of the proceeding,

- Explain the need to introduce evidence,
- Determine types of evidence which is relevant, and admissible,
- List out different types of proof, explain the manner of presenting & examining evidence prepare a judgment.
- Describe the methods employed to give judgment,
- Differentiate decree from judgment, and inter alia,
- Apply proper rules in examining witnesses and documentary evidence

7.1. The production of Evidence

Evidence is produced to prove a factual allegations that is affirmed by one party and denied by the other



What is evidence?

Evidence means so many things. In its broadest sense, the term evidence includes anything that is used to determine or demonstrate the truth of an assertion. Philosophically, evidence can include propositions which are presumed to be true used in support of other propositions that are presumed to be falsifiable.

Evidence is a matter of adjective law and is distinct from the procedural law, which you will discuss in your course on the "Law of Evidence". Any ways evidence is the means from which an inference may logically be drawn as to the existence or non-existence of a fact as the case may be. It consists of proof by testimony of witnesses on oath, or proof by writings or records. Proof other than oral testimony is called **real proof**. It consists of written documents and what is called **demonstrative evidence**. Photographs, recording and any tangible object would be classified as real proof, as would experiments made in or out of court. Generally, the term evidence means and includes all statements, which the court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry, which are called oral evidence, and all documents produced for the inspection of the

court, which are called documentary evidence. For further understanding, you may read the New Draft Evidence law.

In our previous discussion during the first semester, we said when a party files his pleadings, he includes a list of witnesses to be called at trial. The presumption is that those witnesses will appear voluntarily, as per Art. 111 and that they will testify without further formalities. However, it may be that some witnesses so named will not appear voluntarily. In such cases, the court will issue a summons to that witness requiring him to appear, and if the hearing has already begun, it may adjourn the hearing so that the person summoned can appear.

Art. 111. - Issue of summons
The court may, on the conditions laid down in Arts. 249, 257 and 345, issue summonses to persons whose attendance is required either to give evidence or to produce documents: Provided that either party may, without applying for a summons, bring any person, whose name appears in the list annexed to the statement of claim or defence, to give evidence or to produce documents.



How do you define a witness? And who would be called as a witness?

The term "**witness**" may be defined as someone who has firsthand knowledge about the occurrence of something or dramatic event through their senses (e.g. seeing, hearing, smelling, touching) and can help certify important considerations to the event.

This question is also a matter of evidence law. But generally, the law does not exclude the relevant testimony of any person who has the capacity to observe and remember the matter on which that person testifies. Only the ability to communicate his knowledge on the issue and an understanding of obligation to tell the truth will be taken into account. An oath is required of every person called to testify at any kind of a judicial proceeding. In the Common law system, for instance, there is the following qualification to be a witness. Not every person may be competent to testify as a witness; a person of unsound mind, for example, may not be a witness. A person convicted of a crime, however, is considered a competent witness. A minor may be permitted by the court to testify if the court is convinced that the child understands the nature of an oath. Someone with an interest in

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the outcome of a civil action involving a deceased person cannot testify as to personal transactions or communications with the deceased.

The court may issue summons to persons whose attendance is required to give evidence or to produce documents. So, any person who has the capacity to observe and remember the matter on which that person testifies may be called as a witness. Each party may ask for such order where the witness sought to be summoned was included in the list of witnesses annexed to the pleading, and his absence is not due to the fault of the party seeking to summon him, the order should be granted, and if necessary, the hearing should be adjourned. Where the witness sought to be summoned is a new one, the court should also grant the order if it is convinced that the witness may give valuable testimony and that the summons to render a proper decision, the court should have all the evidence before it, even at the expense of further prolonging the case. This is the clear message of Art.345 of the Code.

? Who should initiate summoning a witness? And who will bear the costs of witnesses in such circumstances?

As per our previous discussion, the parties have the primary responsibility for presenting their cases so that the court may issue summons on the motion of one of the parties. But the court, on its own motion, may issue the summons in exceptional circumstances i.e. in circumstances where a witness, who is likely to be able to give curtail testimony, has not been called by either party.

The more usual situation could be where a party applies for the issuance of summons. In this case, such party must pay into the court, before the summons is issued, a sum of money to defray the traveling & other expenses of witnesses for one days court attendance.

? What does it include?

Probably, under Art.112, this would include compensation for the time the witness misses from his employment. Where the witness is summoned to give evidence as an expert, the court may allow compensation for the time that is occupied both in giving testimony and in performing any work of an expert character necessary for the giving of the testimony. Pursuant to Art.113, if the party does not do so, the court may discharge the witness or order the required sum to be levied from the attachment and sale of the party's movable property. This happens only where the sum deposited as per Art. 112 is not sufficient.

Art. 113.-Additional payment
(1) Where it appears to the court that the sum paid into court is not sufficient to cover such expenses or reasonable remuneration, the court may direct such further sum to be paid to the witness as appears to be necessary on that account.
(2) Where a witness must be detained for more than one day, the court may order the party at whose instance he was summoned to pay into court such sum as is sufficient to defray the expenses of his detention for such further period.
(3) In case of default in payment under this Article, the court may either order such sum to be levied by attachment and sale of the movable property of the party obtaining the summons or discharge the person summoned without requiring him to give evidence or may order both such levy and discharge.

? Who should cover the costs in case the witness is summoned on the courts own motion?

As to the particulars to be specified in summons, and the time for serving summons, you are required to read Arts.114-117 of the Code.

Where a witness who has been summoned fails to appear, the court must first determine whether the summons has been duly served. The court may order the issuance of a fresh summons as per Art.118 if the witness is material and that the summons was not duly served.

However, if it finds that the summons has been duly served and that the witness has, without good cause, failed to comply with it, or that the witness has intentionally avoided service, it may issue such order as it believes necessary to compel the attendance of the witness, including a warrant of arrest.

? What constitutes "good cause?"

"Good cause" as used in this context should refer to the situation where the witness was prevented from attending due to physical conditions beyond his control such as illness, unavailability of transportations, death of ones spouse, etc. Assuming that such witness as required by the court has attended the court, and then he will give testimony to the court.

? How should a witness give his testimony to the court?

Art.120 through Art.146 of the Code governs this situation. Pursuant to Art.120 (2), witnesses who have been summoned shall attend each hearing until the suit has been disposed of and the court may require an appearing witness to execute a bond that he will attend until he is heard. But there may be a situation where a witness whose testimony is necessary cannot be brought before the court. He may be infirm or he may not be resident within the local limits of the court's jurisdiction, or he may be about to depart from the court's jurisdiction before the hearing. In such cases the witness may be heard on commission (Read Articles from 122 to 146 of the code). Generally, an examination of a witness by a person specifically authorized to examine the witness or by another court is called examination of a witness by commission. (Specifically, read Art. 122). For all practical purposes, the commissioner authorized to examine evidence has all the power that the court has with regard to production and examination of evidence. This is one way of hearing evidence.

There is also another way of hearing evidence i.e. the testimony of a witness by affidavit. This other way is that the witness may be permitted by the court to give his testimony, by affidavit if such witness is required by neither party to be examined. This is the clear message of Art. 204. Accordingly, a witness may put what he knows about the fact in issue by an affidavit and submit the same to the court. But if either party desires to cross-examine the

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witness and he can be produced, the evidence may not be given by affidavit. You have to note here that where evidence is given by affidavit, the witness is not present for cross-examination. The court or the parties would not have the chance to observe the witness demeanor and other factors that may affect his credibility. So, the court should use its power of allowing a witness to testify by affidavit only in rare cases.

? What is the rationale behind allowing testimony by affidavit?
Discuss it with your friends. How about the production of documentary evidences?

Provisions applicable to witnesses also apply to the production of documents. Each party must include with his pleading the original and a copy of any document in his possession on which he relies as per Arts.223 and 234(1) of the Code. It cannot be produced at the time of trial. However, the court may conclude that a document should be produced, and, if so, it has the power to order the person who has possession of the document to appear in court with it. According to Art.257 and 264, this would include documents in the possession of a party. If a party who has been ordered to produce a document fails to do so, as per Art. 267 the court may pronounce judgment against him. Where a person not a party to the suit is ordered to produce document, the rules previously discussed relating to the summoning of witnesses are applicable. (Read Art.145&146 of the code.)

Where a document has been produced, per Art.139 (1), the court will endorse on it the number and title of the suit, and the name of the person producing the document, and the date on which it was produced. According to Art.140(1), the party on whose behalf the book or account is produced, when the document is an entry in a shop-book or in an account, may furnish a copy if it does not belong to the party seeking to introduce it. Whenever a copy of a document has been furnished, the court shall compare the copy with the original, certify the copy to be accurate, and return the original to the person producing it according to Arts.139-144 of the Code.

So far, so good. Till, we have seen that the court has broad power to order and compel the attendance of witnesses and the production of documentary evidence. Next, we will see how such witnesses or documents are to be examined.

7.2. Examination of Witnesses

In this section, we will discuss the conduct of the trial, in general, and how witnesses are examined in particular. In the second chapter, we said that our procedural law follows a hybrid litigation system, where both the parties and the court can examine witnesses and cross-examine their opponent's witnesses in courts.

The trial is the stage where each party introduces the oral and documentary evidence necessary in his side of the issue. Now, we will consider the rules governing how evidence is to be introduced.

The order of producing evidence depends on the nature of the issues that are involved in the case. As a rule, the principle is that, as per Art. 258(1), the plaintiff is entitled to begin unless the defendant admits the facts alleged by the plaintiff and has raised what we call affirmative defences, in which case the defendant is entitled to begin. This reflects the general rule that the party who has the burden of proof will take the first order of producing evidence.

7.2.1. Burden of Proof

?	What do we mean by burden of proof?

The term refers to the obligation to prove allegations which are presented in a legal action. The Latin maxim *necessitatis probandi incumbit ei qui agit* explains the rule that "**the necessity of proof lies with he who complains.**" For example, a person has to prove that someone is liable or not liable (in a civil case) depending on the allegations. More colloquially, burden of proof refers to an obligation in a particular context to defend a position against a *prima facie* other position.

It, therefore, refers to the obligation of a party to provide evidence necessary for the establishment of a disputed fact or a degree of belief in the mind of the court. As a rule the plaintiff, who has initiated the suit has the burden of proof. But this burden may shift to the

defendant if he admits the allegations of the statement of claim and had raised that what we call affirmative defences. There is one legal maxim to this rule i.e "***affirmanti non negati incumbit probatio***", which means the burden of proof, rests on him who affirms, and not upon whom he denies. The reason for this rule is that a negative does not admit a simple and direct proof of which an affirmative is capable. So, always if the defendant denies, the plaintiff will have the burden of proof, and if the defendant affirms but if he raises some affirmative defences like force majeure, or period of limitation, or res judicata, the burden of proof will shift to the defendant (who affirms)

? What would happen if the party who has the burden of proof fails to establish his claim?

As we rightfully discussed, the right to begin follows the burden of proof. If the party who has the burden of proof fails to establish his claim or defence by the evidence he has presented, the court can terminate the litigation at that time without calling upon the other party to rebut the evidence. This, the party entitled to begin must state his case and produce his evidence in support of the issue or issues he is bound to prove. In this sense, the 'right' to begin also entails an 'obligation' since if a party having the burden of proof fails to establish his claim or defence by the evidence he has presented, the court can terminate the litigation. Assuming that the party having the right to begin his case has sufficient, sometimes called ***prima facie*** evidence, the other party, according to Art.259(2) will state his case, produces his evidence and addresses the court generally on the whole case. As per Art.259(3), the party beginning may then finally reply generally on the whole case, and the party who has the burden of proof, if sufficiently proved the issues, is entitled to have the last word.

? What is the message of Art.260?

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Where the plaintiff has a number of issues to prove, he must produce his evidence on the issues as to which he has the burden of proof. He also has the option to produce his evidence on the issues as to which the defendant has the burden of proof. If he does not wish so, he may reserve the evidence on the latter issues until the defendant, per Art. 260(1) has produced his evidence on those issues. Consider the provision,

Art. 260. - Evidence where several Issues
(1). Where there are several issues, the burden of proving some of which lies on the other party, the party beginning may, at his option, either produce his evidence on those issues or **reserve it by way of answer to the evidence** produced by the other party.
(2) When evidence is reserved, the party beginning may produce such evidence after the other party has produced all his evidence, and the other party may then reply specially on the evidence so produced by the party beginning but the latter party shall then be entitled to reply generally on the whole case.

?

What does the phrase "to reserve evidence" under Art. 260(1) signify?

Let us say the plaintiff sued the defendant for non-performance of contract. The defendant denied the existence of a valid contract, or alternatively that he claimed the performance thereof if there exists a valid contract, or again alternatively, if he is found not to have performed, he raised an affirmative defence that he was prevented by force majeure. The first issue is whether there exists a valid contract, and there are two other issues based on the affirmative defence.

?

Now, who has the right to begin?

As to the existence of a valid contract, the plaintiff has the right to begin since he affirms and his affirmation is denied by defendant. And it is the defendant who has to produce evidence first on the performance of the contract or on force majeure. But, ***as per Art.260(1), the plaintiff can produce all his evidence on all the three issues without awaiting for the***

defendant to prove on the issues he has the burden of proof. This means that the plaintiff does not reserve his evidence. If he does not reserve his evidence, the procedure is the same as if the only issues were those as to which the plaintiff has the burden of proof. If the plaintiff has reserved evidence, say in our previous assumption, **the plaintiff produced evidence only on the existence of a valid contract**, the procedure will be different. The plaintiff will produce evidence to prove only what has been denied by the defendant. Assuming that the evidence is sufficient, say the plaintiff proved the existence of a valid contract, the defendant must produce his rebuttal evidence and the evidence on the issues as to which he has the burden of proof, in our case, on the performance of the contract, or that he was prevented from performing by force majeure. If he has introduced sufficient evidence, the plaintiff must produce his evidence on those issues that whether the defendant performed the contract or whether the defendant was prevented from performance by force majeure. According to Art.260 (2), then, the defendant replies specifically on the evidence produced by the plaintiff, and the plaintiff replies on the whole case. It is to this procedure that the phrase “**to reserve evidence**” refers to.

?

Is it advantageous for the defendant to reserve his evidence?'

If the plaintiff reserves evidence on issues to be proved by the defendant, then the defendant will produce evidence first should the defendant fail to produce sufficient evidence to justify a finding in his favor on those issues, the plaintiff will not have to introduce any rebuttal evidence. Moreover, if the plaintiff has not reserved evidence, he will have to introduce his evidence on those issues without knowing precisely what evidence the defendant will introduce. It will amount to rebutting evidence before the evidence has been presented. However, depending on the nature of the issues and the evidence, it may be more convenient for the plaintiff to introduce his evidence on all the issues at one time. So, the answer to the question we raised depends on the nature of the issue and the evidence.

7.2.2. Manner of Producing Evidence

Though the court in our country has broad powers in examining witnesses, the responsibility for the examination of witnesses rests primarily on the parties.

?

How is the manner of producing evidence conducted?

Like other common law countries procedure, our civil Procedure Code provides for three stages in the examination of witnesses. These, as per Art.261, are the examination-in-chief, the cross-examination, and the re-examination. These three stages of examining witnesses are to be employed by the plaintiff and the defendant at different times. In order to understand fully these stages, you are advised to review the theory behind the adversary "*bela li beliha*" system of litigation which was prevalent and is followed in Ethiopia.

Art. 261.- Manner of giving evidence

(1) The party entitled to begin shall call his witnesses who, after taking an oath or affirmation in the form provided for by the Third Schedule to this Code, shall be examined-in-chief by such other party and may be re-examined by the party beginning.
(2). If a party wishes to give evidence on his own behalf, he shall do so before calling his witnesses and he shall then for all practice purposes be deemed to be a witness.
(3). Witnesses shall give evidence orally in open court, unless the court otherwise directs for good cause to be recorded.
(4). The court may at any time put to a witness any question which appears necessary for the proper determination of the suit.

To elucidate this point a little bit, if the plaintiff called a witness, he is the **proponent** and the defendant is the **opponent**. The proponent by calling witnesses will try to bring out the evidence that will support his version of the case, and the examination he forwards to such witness is called **examination in-chief**. The opponent then tries to destroy the testimony of the witness in the **cross-examination**. Finally, the proponent will have the chance to rehabilitate the testimony, and this is referred to as **re-examination**.

Here, we have to note that a party can be his own witness under Art.261 (2). And if he wishes so, he must testify before calling his other witnesses. If he testifies on his own behalf, he will be considered as a witness and he will be required to sit for the cross examination and reexamination. The witness before being examined will take oath in the form provided in the Third Schedule of the code in the following manner:

"I swear or affirm that the evidence I shall give before this court shall be the truth, the whole truth and nothing, but the truth"

After tendering an oath, the witness proceeds to answer the questions propounded by the proponent or his advocate.

?	Can the proponent or opponent ask the witness any question?

The questions put in the examination-in-chief must relate only to facts that are relevant to the issues to be decided and only to such facts of which the witness has direct or indirect knowledge. And per Art.263 (2) no leading question, questions that are worded so as to promote the desired answer shall be put to a witness without the permission of the court. So, leading questions are generally forbidden. The most common examples of leading questions are the ones where the examiner concludes with positive suggestion such as "Are not you" or "did not you see the defendant tress-passing my land?" etc. Such questions suggest that the answer must be either yes or no. The Code clearly provides that the proponent or his advocate cannot ask leading questions.

Art. 263.- Form of questions
(1). Questions put in examination-in-chief shall only relate to facts relevant to the issues to be decided and only to such facts of which the witness has direct or indirect knowledge.
(2) No leading question shall be put to a witness without the permission of the court
(3) Questions put in cross-examination shall tend to show to the court what is erroneous, doubtful or untrue in the answers given in examination-in-chief. Leading questions may be put in cross-examination.
(4). No question shall be put in re-examination except for the purpose of clarifying matters which have been raised in cross-examination.

However, exceptionally, the court may sometimes permit the proponent to ask leading questions where.

1. The witness is being examined as to what are called introductory matters such questions are:
E.g. Is Kebede your name? This is not objectionable
2. The witness cannot remember some or all of the matters as to which his testimony is sought. In these cases, leading question way assist the witness to refresh his fresh memory, and

3. A witness is a hostile witness to the proponent. A hostile witness is a witness who is adverse or antagonistic to the proponent. He is usually the opponent as a witness. The defendant, for example, may call the plaintiff is a witness.

This is, more or less, all about examination-in-chief. Next, we will see how cross-examination is conducted.

?

What is cross-examination? And why is it possible?

Cross-examination refers to the questioning of; the proponent's witnesses by the opponent or by the opponents attorney. The main objective of cross-examination is to test the truth and accuracy of that witness' testimony given on examination-in-chief. The Code provides that questions put on cross-examination shall tend to show what is erroneous, doubtful or untrue in the answers given in the examination-in-chief. Here the opponent can put any kind of question.

The primary purpose of cross-examination is to discredit the testimony of the witness and persuade the court that it should not believe such testimony.

The next step of examining witnesses is reexamination. It is the examination of a witness which immediately follows cross examination. This step in other countries is sometimes called redirect examination. The reexamination per Art 263(2) is limited to clarifying the matters, which have been raised in cross-examination. The proponent here, in reexamination tries to rehabilitate the witness in the sense that the original testimony is to be believed to rebut the unfavorable evidence brought out on cross-examination.

?

What powers does the court have in calling and examining witness?

The role of the court in the adversarial system of litigation is minimal with regard to the examination d witness. Although Ethiopia has adopted the adversarial system of litigation

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and the principle of party presentation, this is modified by giving the judge a potential degree of control over the conduct of the litigation. Among others, the court has the power to order amendment of pleadings on its own motion, and has the power to frame issues for trial. With regard to examination of witnesses, according to Art 261 of the Code, the court has the power to put a question to a witness at any time during examination. The court has also the power to call as a witness any person present in court, even though he has not been called by the parties and may order any such person to produce any document that he has with him.

Art.264. __ Court may examine other Persons

(1). Any person present in court may be required by the court to give evidence or to produce any document then and there in his possession or power.
(2). Where the court considers it necessary at any time to examine any person other than a party to the suit and not called as a witness by a party to the suit, it may of its own motion summon such person as a witness to give evidence or to produce any document in his possession on a day to be fixed and may examine him as a witness or require him to produce such evidence.
(3)On issuing a summons under sub-article(2), the court may, where it considers that such person should have been called as a witness by either party for the proper determination of the suit require the defaulting party to comply with the provisions of Art. 112 or make such order as to costs as it thinks fit.

Art. 265. - Power to examine witness immediately

(1). Where at any time after the institution of a suit the court is satisfied that the evidence of a witness should be taken immediately, it may, on the application of any party or of the witness, take the evidence of such witness in the manner hereinbefore provided and such evidence may then be read at any hearing of the suit.
(2). Where such evidence is not taken forthwith and in the presence of the parties such notice, as the court thinks sufficient of the day fixed for the examination, shall be given to the parties.

Art. 266.- Court may recall and examine witness

The court may at any stage of a suit recall any witness who has been examined and may put to him such questions as it thinks fit.

?

Can a person refuse to be a witness?

You have to note here that a person may not be obliged to be a witness because of certain privileges under the Law of Evidence. This includes **communication privileges** which gives

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a right to a spouse not to be a witness against his/her marital partner, a priest against his patient, a doctor against his patient, an attorney against his client, and so on. These privileges will be provided in Evidence Law. Other than these situations, a person may not refuse to be a witness, and if he refuses, per Art. 267 and 268 the court may pronounce judgment against him, in case such person is a party, and in case such person is a third party, the court may order the arrest of this person as it considers necessary for the attendance of such person under Art. 118(2) of the Code.

If a witness cannot speak the official language of the court, he will testify in his own language and the official interpreter of the court, or in his absence will translate his testimony, by such other person as the court may appoint for that purpose. This is provided for in Art. 262 of the Code.

?

In the present day Ethiopia, which language is the official language of the court?

Each Regional State under the Federal Republic of Ethiopia may have its own official language. So, Art. 262 should be interpreted in light of the federal arrangement and the Federal Constitution. For instance the testimony given before the Tigray High Court in Amharic should be translated into Tigrigna.

Pursuant to Arts. 269 and 270, questions put to a witness, objections by a party, if any, and testimony of witnesses would be recorded by the court to be available for decision-making. The testimony of witness is recorded by the presiding judge or a judge or a clerk.

Ordinarily, the judge takes down the evidence in narrative form. He records only the substance of the witness's testimony without the question of the examiner. But at any time, may be by interrupting, he may take down in his discretion a particular question and answer. The recorded evidence shall be divided into examination-in-chief, cross examination and then lastly the reexamination. It states where each type of questioning begins & ends. There may be an objection raised, and any question put to a witness, where there has been an objection the court should give a ruling. And the ruling of the court on the objection raised may be either to overrule or sustain it.

? What is an objection?

It is not any where in the Code defined. But it may be said that an **objection** is a formal protest raised in court during a trial to disallow a witness's testimony or other evidence which would be in violation of the rules of the court. An objection is typically raised after the opposing party asks/poses a question to the witness, but before the witness can answer, or when the opposing party is about to enter something into evidence. The judge then makes a ruling on whether the objection is "**sustained**" (the judge agrees with the objection and disallows the question, testimony, or evidence) or "**overruled**" (the judge disagrees with the objection and allows the question, testimony, or evidence).

An objection on any question put to a witness within the meaning of Art. 270 of the Code refers *to the action of stating the need or the legal sufficiency of a question in opposition to the party posing it*. It is, in short, an adverse reason. For instance, assuming that a witness is called to testify the occurrence of car collision, it is irrelevant to ask him how many children he has. If the proponent put to the witness a question which dictates that he has four children, the opponent can object the relevance of this question.

Proponent's question: Please, can you tell the court your name.

Answer: My name is Miskir

Question: How many Children do you have?

Opponent: Objection. Your honor! This question is irrelevant

Ruling of the Court: Objection Sustained. (The court accepted that the question is irrelevant.

Proponent: Can you explain all that you know about the case?

Opponent: Objection!

Ruling of the Court: Objection overruled. You may proceed.

Proponent: What did the defendant do after he wrongfully collides with my car?

Opponent: Objection, Your Honor! He is leading the witness.

Ruling of the Court: Objection sustained. You may ask or forward another question...

So, if the objection is sustained, it means that the question objected will be struck out and the witness will not answer this question. However, if the objection is overruled, the objection will be cancelled and since the question is accepted by the court, the witness will answer it.

?

What possible grounds of objection may be raised by the parties?

The Code does not provide for list of grounds of objecting a question put to a witness other than leading questions. Try to list as much as you can!

In the United States of America, for instance, the following grounds serve as valid grounds of objection;

- *Ambiguous, confusing, misleading, vague, unintelligible*: the question is not clear and precise enough for the witness to properly answer
- *Arguing the case*: opposing counsel is arguing their case in their opening statement.
- *Arguing the law*: counsel is instructing the jury on the law.
- *Argumentative*: the question makes an argument rather than asking a question
- *Asked and answered*: the question has been asked and answered before
- *Asks the jury to prejudge the evidence*: the jury cannot promise to vote a certain way, even if certain facts are proved.
- *Asking a question which is not related to an intelligent exercise of a peremptory challenge or challenge for cause*: if opposing counsel asks such a question during voir dire.
- *Assumes facts not in evidence*: the question assumes something as true for which no evidence has been shown
- *Best evidence rule*: requires that the original source of evidence is required if available; for example, rather than asking a witness about the contents of a document, the actual document should be entered into evidence
- *Beyond the scope*: A question asked during cross examination has to be within the scope of direct, and so on.
- *Calls for a conclusion*: the question asks for an opinion rather than facts
- *Calls for speculation*: the question asks the witness to guess the answer rather than to rely on known facts
- *Compound question*: multiple questions asked together
- *Hearsay*: the witness does not know the answer personally but heard it from another
- *Incompetent*: the witness is not qualified to answer the question
- *Inflammatory*: the question is intended to cause prejudice
- *Leading question*: the question suggests the answer to the witness

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- **Narrative:** the question asks the witness to relate a story rather than state specific facts
- **Privilege:** the witness may be protected by law from answering the question
- **Irrelevant or immaterial:** the question is not about the issues in the trial

Proper reasons for objecting to material evidence include:

- **Lack of foundation:** the evidence lacks testimony as to its authenticity or source

Proper reasons for objecting to a witness's answer include:

- **Non-responsive:** the witness did not answer the question; the answer would be stricken from the record

?

Should the court consider any type of evidence?

It is true that the court bases its decision only on the evidence that has been presented before the court or the evidence presented on commission in accordance with the provisions of the Civil Procedure Code. Among other things, the court may not base its decision on secret evidence that has not been presented at trial in the presence of parties. It would not be proper for the judge for example, to inquire about the case in the neighborhood to verify facts without the presence and knowledge of the parties and base his decision on the evidence obtained by the means. But it does not mean that the court will and should consider any type of evidence produced. The court will base its decision on evidence that it believes to be relevant and admissible. It means that the court will not consider and should reject any evidence found to be irrelevant and inadmissible.

To conclude our discussion, in the Ethiopian procedural system of litigation, in addition to the principle of party presentation, the court will actively participate in the conduct of the trial. The court has broad powers in investigating and arriving at the truth. That is why we said, in the second Chapter to the First Module, Ethiopia has a kind of hybrid system of litigation.

7.3. Rendition of Judgment and Decree

Based on the statement of claim and of defence, and the oral examination, issues will be framed for trial. At the trial, evidence will be produced by parties to prove their version of the case and to disqualify their opponents allegations. After all these happen, i.e. after all the evidence has been produced and the parties have presented their final arguments, the court gives judgment. This is the message of Art.273 of the Code. This happens after the parties have given their respective addresses and reply, which gives a summery to the court on the evidence heard from the perspective of the party.

273.	-	Judgment
After the evidence has been concluded and the address and reply winder Art. 259, if any, have been made, the court shall give judgment		

7.3.1. Time to Render Judgment

Pursuant to Art.180 of the Code, the judgment should be given either immediately at the trial or as soon after the trial as possible, while the events of the trial are fresh in the minds of the judges. Please read our discussion on the possibility of rendering judgment without a full-scale trial in Chapter Six.

Art. 180.-Judgment when pronounced

After a suit has been heard, the court shall pronounce judgment in court either at once or, as soon thereafter as may be practicable, on some future day to be fixed by the court.

The length of the time, as soon thereafter as may be practicable under the Code and the number of adjournments will be decided by the court. But the assumption is that the court will not adjourn the pronouncement of judgment in the distant future after the trial is concluded. The practice, however, is entirely different. There may be a number of adjournments for months, if not for years.

The judgment shall be pronounced in an open court. In some developed countries, courts render decision on small claims orally. But in Ethiopia whatever small the claim in the case may be, the Code under Art. 181 provides that judgment shall be reduced to writing signed by the judges and pronounced by the presiding judge. In courts presided by more than one judge, the decisions of the majority shall be the judgment of the court. In courts above the level of Woreda Courts, there will be more than one judge; say in the High Courts, three

judges in ordinary cases, and five judges in the cassation will preside. So, where there is a difference in opinion, though the view of the dissenting judge is to be recorded, the opinion of the majority judges will be the judgment of the court.

As to the contents of the judgment or what the judgment should contain, you are advised to read Art.182 of the Code.

? What is the difference between judgment and decree?

In practice the two terms are confused and are used interchangeably. But the term "**judgment**" is properly restricted to proceedings at law, while a "**decree**" is the determination, sentence upon the controversy submitted for its decision. The word "judgment" is a word of general import and means only judicial determination or decision of a court. It has been used in the sense of a decision finally determining the rights of the parties in the proceeding. On the other hand, "decree" means the formal expression of an adjudication which, so far as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit. It shall be deemed to include the rejection of a plaint and the judgment on which it is based. Generally the term "decree" refers to the operative part of the judgment. The judgment itself cannot be executed.

It is necessary that the court, after delivering the judgment, should reduce the operative part of the judgment, as per Art.183 that part which involves the relief to be given to a decree. What the decree should contain is provided for under Art. 183(1) and the discussion is left for your own.

Art. 183.- Framing and contents of decree
(1) After delivery, the operative part of all judgments shall be reduced to the form of a decree which shall **contain:**
(a) the number of the suit or appeal;
(b) the names and description of the parties;
(c) when the judgment has been given in first instance, the particulars of the claim;
(d) a clear order to do or to abstain from doing something or to pay a definite sum of money or to deliver a particular thing or to surrender or restore immovable property, as the case be, and, where appropriate, a description, in the form provided for by Art. 225, of the subject-matter of the case;
(e) the amount of costs incurred in the suit or appeal, and by whom, or out of what property such costs are to be paid:
Provided that an Appellate Court may specify by whom and how are to be paid the costs incurred in the suit in which the decree appealed from was passed;
(f) such particulars as are necessary so that it be susceptible of execution:
Provided that an Appellate Court may itself give the necessary directions for the execution of its decree or may delegate the execution thereof to the court which first

heard the case; and
(g) where the decree can be executed by the personal obedience of the judgment-debtor, the time within which it shall be executed.

(2) The decree shall be signed and dated by the judge or judges who passed it, exclusive of any judge who may have dissented from the judgment: Provided that, where a judge is for whatever reason, such as death, transfer or retirement, unable to sign the decree after giving judgment, a decree drawn up in accordance with such judgment may be signed by any judge of the court which gave judgment or, if such court has ceased to exist, by any judge of any court to which such court was subordinate.

?

Do you think that all decrees contain the same thing?

We said that a decree is the operative part of the judgment, which involves the relief to be given. All decrees must be signed and dated by the judge or judges who passed it, and the judge dissents, if any, shall not do so. The Code, moreover, provides that specific directions are to be given in certain decrees. For instance, according to Art.185, a decree for the delivery of movable property shall also state the amount of money to be paid if the property cannot be delivered. Where the decree is for the payment of money, the court for sufficient reason, may postpone the payment or payment to be made in installments, with or without interest. And where the suit is for recovery of immovable property, the decree should be for possession together with the rent or mesne profits which have accrued prior to the suit and until the delivery of possession to the decree-holder. For further understanding, you are advised to read Art. 187-191 since they are very useful tools to better understand Execution of decrees in Chapter Nine.

Art. 187. - Decree for possession and mesne profits
Where a suit is for the recovery of possession of immovable property and for rent or mesne profits, the court may pass a decree for the possession of the property together with the rent or mesne profits which have accrued on the property prior to the institution of the suit .and until the delivery of possession to the decree-holder.

Art. 188.- Taking of accounts
Whenever it is necessary that accounts should be taken in order to ascertain the amount of money due to or from any party, as in a suit for an account of any property and its due administration under the decree of the court, for an account of pecuniary transactions

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between a principal and an agent or for the dissolution of a partnership or the taking of partnership accounts, the court shall, before passing decree, order such accounts to be taken and give such other directions as it thinks fit.

Art. 189.- Decree in suit/or dissolution of partnership
Where a suit is for the dissolution of a partnership or the taking of partnership accounts, the court shall, before passing decree, declare the proportionate shares of the parties, fix the day on which the partnership shall stand dissolved or be deemed to have been dissolved and give such other directions, as it thinks fit.

Art. 190.- Decree in suit for partition or separate possession
Where the court passes a decree for the partition of property or for the separate possession of a share therein, the court may, if the partition or separation cannot be conveniently made without further inquiry, before passing decree, declare the rights of the several parties interested in the property and give such other directions as it thinks fit.

Art. 191. Decree when set-off is allowed
(1) Where a set-off has been allowed, the decree shall state what amount is due to each party and shall be for the recovery of any sum which appears to be due to either party.
(2) Any decree passed in a suit in which a set-off claimed shall be subject to the same provisions with respect to appeal to which it would have been subject if no set-off had been claimed.

Now, we will try to conclude our discussion on the trial, where evidence has been produced and decision is rendered. After the decree has been passed certified copies of the judgment or decree of both shall be furnished to the parties on application to the Registrar of the court which passed it. Thus the issues, to put it in another way, have been determined, a judgment has been rendered, and a decree based on that judgment has been issued.

What is next, if both the judgment-creditor and the judgment debtor comply with the decision, and take no further action, the case is considered as closed. However, the losing party may seek a review of judgment or the judgment debtor may not satisfy the decree. In these cases, the final decision of the rendition court may be put in motion again. We will see this latter phenomenon in the next two chapters.

SUMMARY

In this chapter, we have discussed the production of evidence, the examination of witnesses and documentary evidences and the rendition of decisions. This stage of the proceeding is basically known as the trial stage.

We have discussed types of evidence and the method of producing there of the evidence produced by the parties has to be first admitted before lit is introduced, and we said the court has considerable power in examining and even some times calling witness.

Guided by the provisions of the code, the court will facilitate and participate in the examination process. Among other things, the court can ask any question or inspect any document which is supposed to be relevant in rendering a just decision.

The court will render judgment after gathering and hearing evidence. The operative part of the judgment, which is to be executed, is referred to as decree. The decree will provide a specific direction in certain cases and specifies what will be done alternatively as the case may be.

SELF-CHECK EXERCISE

1. What is the main purpose of producing evidence? Elaborate your answer by defining the term Evidence.

2. Mr. A and Mr. B conclude a contract. According to their contract, A has to deliver tomatoes at B's shop. But he failed to do so. After the date fixed for executing the contract, B brought a suit against A, claiming performance of the contract. A, in his defence, admitted the existence of the contract, but denied that he is liable. Who has the burden of proving?

3. Can a seven year old person be a witness? Discuss it with your friends though it is an aspect of the Law of Evidence.

4. What is the main difference between a judgment and decree?

5. The defendant admitted any statement of fact by the plaintiff. And the latter requested the court to render a judgment. In this case, what time is considered as the time of rendition of the judgment?

6. What are the major grounds to object a witness's testimony or other evidence?

CHAPTER EIGHT

REVIEW OF JUDGMENTS

Overview:

Generally, the term "review" refers to the power of a court or a superior Government officer or agency to examine and either to confirm, modify or annul a regulation or determination of an inferior court or official, or of an administrative agency. Review is a proceeding which exists by virtue of a statute. It is in its nature a new retrial of the issue previously tried between the parties, the cause of action being brought into court again for trial by a new petition. Sometimes, the term "review" means a judicial re-examination of the case in certain specified and prescribed circumstances.

Review of judgments, specifically, refers to the mechanism by which the decision of the lower court can be reexamined and retried by a superior court. Per our discussion in the proceeding chapter, the case will be closed once decision is rendered. However after a decision is given, a party may be aggrieved and such party should be given the chance to be heard in superior courts

?

Where shall a party seek the decision of the lower court to be reviewed?

Review of judgment is a constitutional right of parties to a court. Even though, usually, judgments are reviewed by superior courts, it may be sought before the court which rendered the judgment. So, the aggrieved party, before taking his case into motion, should first know where review can be sought. This is what we are going to consider in the coming sections.

Objective

After successfully studying this chapter, the student will be able to;

- Explain where review can be sought,
- Describe grounds for review by the rendition & appellate court
- Identify the powers of appellate court
- Explain the three different ways of reviewing judgments,

- List out the grounds of review by the court of rendition
- Define the powers of the appellate and cassation courts.

8.1. Review of Judgments in the Rendition Court

?	Can a court review its own judgment?

In principle a court is not an appellate court to its case and does not have a power to revise its own judgment order. If courts are given the power to revise their own judgment, that will create a situation where a court will say something today and another thing tomorrow, resulting in unpredictability and confusion. But there are certain exceptional circumstances whereby a court can review its own judgment. There are three situations where the court of rendition may review its judgment;

- 1. When there is procedural irregularity;**
- 2. When a new evidence is found after judgment; and**
- 3. When apposition is raised by an indispensable party.**

Now, we will examine each of the three grounds.

8.1.1. Procedural Irregularities

In conducting the proceeding, the court is required to adjudicate with prescribed procedural rules. But the court may make some mistake where conducting a litigation. These mistakes are known as procedural irregularity

?	What is an irregularity?

An irregularity is defined to be the want of adherence to some prescribed rule or mode of proceeding, and it consists either in omitting to do something that is necessary for the due and orderly conducting of a suit, or doing it in an unreasonable time or improper manner. The word "irregularity" covers any case that has not been done in the manner laid down by the statute in respect of what that matter might be. Generally, procedural irregularity refers to non-compliance with the provisions of the Civil Procedure Code. But it does not include clerical or arithmetic mistakes, which can be corrected at any time in accordance to art.208 of the Code.

Art.208. - Correction of mistakes

The court may at any time of its own motion or on the application of either party correct any clerical or arithmetical mistakes in any summons, judgment, decree or order, or any errors arising therein from any accidental slip or omission, and such mistakes or errors shall not be deemed to be irregularities within the meaning of Art. 207.

?

What is the effect of the existence of procedural irregularity?

Where an irregularity has occurred pertaining to the taking of preliminary objections as during the course of the proceeding, the party affected must raise it at that time. Where it has occurred subsequently, and if such occurrence substantially affects the disposition of the case to the detriment of one of the parties, the court may set its decision aside wholly or in part on its own motion. So, the effect of occurrence of procedural irregularity is, if accepted by the court of rendition, setting aside the judgment.

Note: It is only a procedural irregularity, capable of substantially affecting the result of the case that must be set-aside. If the irregularity does not substantially affect the result of the case, or is one relates to clerical or arithmetical mistake such as mistaking the date or the amount of compensation, such irregularity does not result in setting the decision aside.

?

My dear student, if that is the case, what kind of procedural irregularities affect the result of the case?

The basic principle that applies in the determination of what irregularity affects the outcome of the case depends upon the question raised and the appreciation of the court. The irregularity must be clear and unambiguous enough so that when the court becomes aware of it, it will really move to correct it. That is to say that the irregularity must be understandable from the outset without further litigation. For example, let's assume that a Woreda court at Bahir Dar litigates a case the subject-matter of which is estimated to be twenty thousand Birr. The defendant objected the jurisdiction of the court, though it was to no avail. The court proceeded to see the case and finally rendered a judgment against the defendant. Let us say after it rendered judgment, the court become aware that it did not have jurisdiction, or the judgment-debtor applied for the court that it has non-complied with the Civil Procedure Code. It is understandable from this hypothetical case that there existed procedural irregularity. And hence, the court on its own motion or by the application of the judgment-debtor, should order that its decision be set-aside. However, where the error is such that it does not substantially affect the decision of the case on the merits, the proceeding may not be set aside.

Sometimes, only part of the proceedings will be set-aside. Where the proceedings are set-aside in part, any step taken prior to the occurrence of the irregularity shall not be affected. This is the clear message of Art. 209(1). So, if an irregularity occurred at the trial, the proceeding of the trial stage will be set-aside. But any stage of the proceeding which took place before the trial, say at the first hearing, shall not be affected.

?

Which court has jurisdiction to hear a proceeding on procedural irregularity?

The application to set-aside a proceeding on grounds of procedural irregularity shall be filed to the court which entertains the case, i.e. the trial court. In other words, the rendition court will have jurisdiction. Unless an application to set-aside the proceeding on grounds of irregularity has been made to the trial court, the occurrence of an irregularity may not be a ground of appeal. The principle is that the aggrieved party cannot take his case by appeal

while he can apply to the rendition court to review its decision. Pursuant to Art.211 (1) of the Code, however, there is one exception to this principle.

Art. 211. - Appeal
 (1) No irregularity other than one ***arising from an alleged want of material jurisdiction or one alleged in a judgment or decree*** may be taken as a ground of appeal unless an application was made under Art. 209.
 (2) Notwithstanding the provisions of sub-art (1), an Appellate Court may at any time of its own motion correct any irregularity having occurred in the proceedings in which the judgment appealed from was given: Provided that, where the irregularity was such as to prevent a valid judgment from being given, the proceedings in which such judgment was given shall be quashed and the Appellate Court shall order the retrial of the case.

?

 How do you describe this exception?

The Code under Art.211 (1) provides that an irregularity arising from an alleged lack of material jurisdiction or one alleged to exist in the judgment is appealable . This means that, if the ground for seeking a review is an irregularity resulting from lack of material jurisdiction or one alleged to exist in the judgment , it can be taken to the appellate court without petitioning for the setting aside of the proceeding in the court of rendition. There is, however a discrepancy between the English and the Amharic version of this provision. The Amharic version, which is binding, seems to prohibit appeal in case of the occurrence of procedural irregularity before petitioning for the setting aside of the proceeding in the court of rendition.

?

 Does it mean that a court can be an appellate court over its case?

Here we have to note that the court, which gives a judgment, is not exercising power of review generally under the guise of irregularity. The power of the court to review its judgment is confined to procedural matters, which have affected the outcome of the

judgment. So, the grounds that can be argued in a petition for review by the court of rendition are quite different from the point which can be argued in appeal. For instance, the fact that the decision is based on an erroneous appreciation of the law or evidence is not considered as a procedural irregularity.

? What would be the fate of a decision containing an irregularity, where no action is made against such decision?

In some common law countries, if the irregularity arises from an alleged lack of material jurisdiction, ***the judgment will be void***, and will not be executed. Hence, there is no need to take any action. But in our country, there is not judgment which is void since there is not distinction between void and voidable judgments. According to Art.212 of the Code, any irregularity is deemed to have been validated where no appeal is taken from the judgment or where the judgment is confirmed by the appellate court. A procedural irregularity cannot subject the judgment to collateral attack except where the court lacked judicial jurisdiction. Where the court lacked judicial jurisdiction over the defendant or the defendant did not receive legally sufficient notice, the decree is subject to collateral attack (read Art. 456-458 of the code).

Art. 212. - Validation of proceedings

No proceedings in which an irregularity has occurred shall be void where no appeal is made against the judgment given in such proceedings or where such judgment is confirmed by the Appellate Court.

Next, we will discuss what the court would do in case new point of argument is discovered by a party. Discovery of new point or evidence is not a procedural irregularity.

8.1.2. Newly Discovered evidence

During the proceeding or after the court rendered a decision, a party may discover a new evidence. In this case, it is common is lower court to seek review of judgment by this same court.

?

Do you think that discovery of new evidence will warrant a review?

It does not mean, however, that “every newly discovered evidence” that was not produced during the trial will be a ground for review. In order the newly discovered evidence to be a ground review, it must fulfill three important conditions. A party may apply for review of the judgment on this ground where;

- a. **no appeal has been taken from the judgment, and**
- b. **subsequent to the issuance of the judgment, he discovers new and important matter such as forgery, perjury, or bribery, which despite the exercise of due diligence was not within his knowledge at the time of giving of the judgment, and**
- c. **had such matter been known at the time of giving of the judgment, it would have materially affected the substance of the decree or order the review of which is sought.**

Such conditions are provided under Art.6 of the Code.

Art. 6. - Review judgments
(1) Notwithstanding the provisions of Art. 5, any party considering himself aggrieved by a decree or order from which an appeal lies, but from which no appeal has been preferred, or by a decree or order from which no appeal lies, may, on payment of the prescribed court fee, apply for a review of judgment to the court which gave it where:
(a) subsequently to the judgment, he discovers new and important matter, such as forgery, perjury or bribery, which after the exercise of due diligence, was not within his knowledge at the time of the giving of the judgment; and
(b) had such matter been known at the time of the giving of the judgment, it would have materially affected the substance of the decree or order the review of which is sought.
(2) An application for review shall contain the same particulars as a memorandum of appeal and shall be supported by an affidavit containing strict proof of the fulfilment of the conditions laid down in sub-art. (1) (a). The application shall be filed within one month of the ground of application having been discovered by the applicant
(3) On granting the application, after giving notice to the opposite party to enable him to appear and be heard in support of the decree or order the review of which is sought, the court shall make such order in regard to the re-hearing of the case as it thinks fit .

(4) No appeal shall lie from any decision of the court granting or rejecting an application for review.

So, it should be noted here that review in the rendition court is not authorized on the ground that the applicant has discovered new evidence which could have affected the decision of the case. The newly evidence discovered must be such as to suggest improper conduct, which tainted the judgment with fraud. This means that it is the improper act of the other party (forgery, perjury or briber) which tainted the judgment which is material. For a better understanding of what constitutes *perjury, forgery or bribery*, you are advised to read the definition in Blacks Law Dictionary.

Generally, the party applying for review of judgment on grounds of newly discovered evidence has to show not only that the evidence is new, but he should above show that he could not produce such evidence because of the fraudulent act of his opponent or that the evidence produced by his opponent (the other party) was not true evidence but was a result of forgery or perjury or bribery.

Now, we will discuss the three conditions in details:

The first condition is that the evidence must not have been within the knowledge of the applicant at the time the judgment was given. This means that the petitioner during the entire proceeding must have believed that the false evidence that is produced by his opponent is not the product of forgery, perjury or bribery. Suppose that, at the trial, Ato Miskir is a key witness for the plaintiff. During the trial, the defendant knew that the plaintiff has bribed Ato Miskir to testify untruthfully though he did not produce such evidence at trial anticipating that the court will not believe the witness' testimony. If the court believes that testimony and renders judgment for the plaintiff, the defendant cannot obtain a review of judgment on the ground that the witness was bribed to perjure himself by the plaintiff. A party cannot withhold evidence, and it is only where the evidence has come to light after the close of trial that review will be granted.

The evidence also must be such as to materially affect the substance of a decree. **This is the second condition to be fulfilled.** The party who applies for review has to show or the court must be convinced that had it not been for the false evidence, judgment would have been rendered otherwise. This means that if the judgment would not possibly be varied by the introduction of newly discovered evidence, the review would not have been allowed.

The third condition is that an application for a review of judgment can be submitted or can be filed in the court of rendition only when the party has taken by appeal. If appeal is already preferred, the appellate court may look into the new evidence. So, the petitioner has two options; either to apply for a review or the appeal to a higher court.

?

What if the appeal is dismissed?

An application for review could not be filed even if the appeal were filed too late and were thus dismissed. This is because the party has the option of raising the question before the trial court or before the appellate court, and has chosen the latter option. If that is the case he is bound by the disposition made by the appellate court, which here will refuse to consider the objection because the appeal was filed out of time. However, if an appeal were taken and dismissed on the ground that an appeal did not lie from the decision, on application for review could be filed, since an application is authorized whenever an appeal cannot be taken. If the judgment or the decree is not appealable, as per Art.6 (1) of the Code, review may be sought in the court of rendition on grounds of newly discovered evidence.

An application for review shall contain the same particulars as a memorandum of appeal, and be supported by an affidavit containing strict proof that the new evidence relates to forgery, perjury or bribery and the like and that the evidence was not, by the exercise of due diligence, within the knowledge of the applicant at the time of judgment. This is provided for under Art.6 (2) of the code.

?

Can the applicant file his application any time he found such evidence?

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Relating to the time limit for filing an application for review in the rendition court, Art.6 (2) provides that the application should be filed within one month from the time the ground for application having been discovered once judgment is given and appeal is not preferred, the petitioner may come up with his application for review any time but within one month after the new evidence is discovered. In the opinion of this writes, however, "any time but within one month after the new evidence" should be interpreted to be "within one month from the new evidence has been discovered, but before the judgment is executed". The reason is that if a judgment is executed, it is as if the case is dead! A party to a proceeding, in my opinion, cannot take any action, with regard to the case after the judgment is executed! But before that, there is not period of limitation in relation to the discovery of the evidence.

?

How does the court entertain the review of judgment proceeding?

Normally, the petitioner will file his application for review. The court will examine its legal sufficiency. If the court does not accept the application, it will dismiss it. But if the court grants the application, it will give notice to the other party so that he will appear and submit his side of the review. Then, the court will give its decision thereof.

?

What will be the decision of the court?

If the applicant does not have evidence which satisfies the requirements of review, or if the other party disqualifies the request for review, the court will confirm its decision, and the decision will normally be executed. Pursuant to Art.6 (4), there will be no appeal from the order of the court granting or rejecting an application for review. In case review is granted, the disposition of the application may depend on what the issue is. Lets assume the following example.

Example: Suppose that in a suit on contract the defendant contends that performance was prevented by force majeure. The court finds in his favor. The plaintiff subsequently

discovers that the document, produced by the defendant to substantiate his contention that performance was prevented by force majeure was forged. This would affect the issue whether performance was prevented by force majeure. The application for review should be granted. However, if the document produced indicates that the parties did not enter into a valid contract, whose performance is prevented force majeure, the application for review should not be granted. The judgment would still be for the defendant.

To conclude our discussion, review on the basis of newly discovered evidence will be authorized only in limited circumstances; only where the evidence shows improper conduct such as forgery, bribery or perjury on the part of the other party. Otherwise, review should not be granted!

8.1.3 Opposition

This is the third ground by which a court may review its own decision.

?	What is opposition?

Opposition may be defined as a procedure whereby a third party who was not a party to the decided case but whose interest would be affected by such judgment would apply to the court for the setting aside of such judgment and retrial the case in his presence. Basically, therefore, the request is for the setting aside of the judgment and the rehearing of the case and not for the revision of the judgment on its merit. This situation is governed under Arts.358-360 of the Code.

Art. 358. - Who may file opposition
Any person who should or could have been made a party to a suit and whose interests are affected by a judgment in the suit may, if he was not a party to such suit either in person or through a representative, file an opposition to such judgment at any time before such judgment is executed.

Art. 359. - Form of opposition
(1) An opposition shall be in the form of a petition which shall, on payment of the prescribed court fee, be filed in the court having given the judgment opposed to.
(2) The petition shall specify :

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- (a) the name and place of the court in which the petition is filed
 - (b) the name and address of the petitioner;
 - (c) the names of the parties to the case in which the judgment opposed to was given;
 - (d) the name of the court which- gave the judgment opposed to the date of such judgment and the number of the suit in which it was given;
 - (e) the grounds of opposition; and
 - (f) the nature of the relief sought.
- (3) The petition shall be accompanied by an affidavit of the truth of the facts therein alleged.
- (4) An application for stay of execution of the judgment opposed to may, where appropriate, be filed together with the petition.

Art. 360. - Effect of opposition

- (1) On the filing of a petition under Art. 359, the court shall fix a day for hearing the opposition and shall cause a copy of the petition to be served on all the persons who were parties to the case in which the judgment opposed to was given together with a summons to appear on such day.
- (2) The proceedings upon the filing of the opposition shall be subject to the same provisions as the proceedings upon the original action and the court may on the completion of such proceedings confirm, vary or set aside the judgment opposed to.

? Who may file an opposition?

Opposition is available in the court of rendition by a person, who, though not a party, is affected by the judgment. Any person, who may or could have been made a party to a suit and whose interests are affected by a judgment in a suit may file an opposition to the judgment before the judgment is executed. As per Art.358, the conditions for filling opposition then are:

1. the applicant should or could have been made ka party: and
2. his interests should be affected by the judgment; and
3. the application is filed prior to execution of the decree.

From this, we understand that three category of persons would be able to file opposition. We may infer this from our discussion in Chapter Four. Indispensable parties under Art.41, or third party defendants under Art.43, and real-parties-in interest are those parties whose interest could be affected, and should have been made parties to the suit. In this regard, the phrase "**should have been made a party**" under Art.358 should be read in light of Art.40, which refers to the "right plaintiff" and "persons who ought to have been joined as plaintiff or

defendant or whose presence is necessary for the determination of all questions involved in the suit.

The interests of such persons will necessarily be affected by the judgment if they were not made parties. Where a party to a suit is involved to contribution or indemnity from someone, the judgment will affect that persons interest, since if the party so entitled is found liable, that person will as a result of the judgment have to indemnify or contribute to him. This assumes that he is not contesting his liability to the original party. Otherwise, the indemnitor contesting his liability to the defendant would not be “interested in the suit” so as to enable him to oppose the judgment.

Example: Suppose that a car owned by Bahir Dar University collide with a Minibus. The university has insurance from NICE Insurance Company, which covers all risks caused by that insured car of the University. In the meantime, the University was sued by the owner of the minibus for recovery of damages, and by the passenger who incurred a bodily injury as a result of the collision. Finally, the University was held liable, and a judgment was rendered against it. The University notified the Insurance Company to indemnify the compensation. Do you think that the interest of the Insurance Company will be affected? The Company in this case is a party defendant under Art.43, and hence can file for opposition.

Opposition could not be made by persons who could have joined as plaintiffs or could have been joined as defendants since these persons would have independent claims and can claim separately. Generally, the right to file an opposition may be available to intervening parties who may apply to be party to the suit if the judgment given in their absence affects their interest. For a detailed understanding you advised to refer our discussion in the Fourth Chapter.

? How is an opposition filed?

Art.359 of the Code provides for the rule. The opposition is made by the petitioner addressed to the court which rendered judgment. In addition to formal matters, the petitioner must specify the name of the court which rendered the judgment, the date of the judgment and the

number of the suit in which it was given, the grounds of opposition and the nature of the relief sought. It must be accompanied an affidavit of the truth of the alleged facts therein, and an application for a stay of execution may also be filed, where appropriate.

? What is the procedure in case of execution?

Art.360(1) provides that when the application is received, the court fixes a day for hearing the opposition and serves a copy of the petition on all parties together with a summons directing them to appear at the hearing. The proceedings upon an opposition are subject to the same provisions as the proceedings in the original action the court then may confirm, vary or set a side the judgment.

To summarize, opposition is one of the procedural mechanisms that a person who could be or who should have been made a party to a suit will use to prevent the effect of a judgment affecting his interest, which was given in a sit where he was not a party. Ordinarily, indispensable parties and real parties in interest could file an opposition file if a case is litigated and decided without them being parties to such proceeding. This in other words means that parties who could be joined in the suit under Art.40 may qualify to file opposition;

So far, we discussed how a court reviews its own decisions. Next, we will be discussing how a higher court reviews a decision.

8.2. Review by a Higher Court

8.2.1 General Overview

Dear distance learner, a party may be aggrieved by the decision of the lower court. If the point of grievance can be addressed by that same court especially one which can be corrected by it, the review will be done by the rendition court. But the point of grievance may be one, which cannot be beyond the capacity of the rendition court. In this case, the higher court will correct such decision. The most common method of obtaining review of a judgment is by way of an appeal. Now, we are going to discuss how a judgment is reviewed by way of appeal.

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The term appeal is derived from the French word “**appealer**” which means to accuse or to call upon. It is a judicial process by a higher court and its memorandum contains the grounds of the examination.

? What is an appeal?

Have you tried? Good. A party to a higher court as it is called, an appellate court, asking that court to set aside or revise a decision of the subordinate court, technically defines an appeal as an application. To say it another way, it is a complaint to a superior body of an injury done or error committed by an inferior one with a view to its correction or reversal. When an appeal has been taken, the appellate court reviews the decision of the subordinate court to determine whether that court committed such errors in its hearing and disposition of the case as to require the appellate court to reverse the decision. If such errors were not committed, the decision of the lower court will be confirmed. As such, the appellate court will make a final disposition of the case although in certain circumstances it may remand the case to the subordinate court for retrial.

Thus appeal means a review of the case and not a retrial of the suit by the appellate court.

? What are the grounds of appeal?

Frequently, the grounds for appeal will involve errors of law allegedly committed by the subordinate court. As a rule, the appellate court does not hear additional evidence on the appeal, and where the introduction for additional evidence is permitted, it is limited to a particular question. This will be discussed in details later on. Anyways, an appeal is different from the original trial of the case.

? What differentiates an appeal from the original trial of a suit?

8.2.2. Rights of Appeal and Power of the Court

There are basic principles with respect to the right of appeal. On the one hand, it is a generally accepted principle that litigation must end somewhere and at some time. It cannot be allowed to continue without some kind of limit. This is to the interest of both the parties and the judicial system. On the other hand, a party must be given the chance to air his grievances in a higher court in the form of appeal. So, the right of appeal is determined by balancing these two interests.

The right of appeal does not exist unless it is given by law. It must be conferred by the legislative in the form of a provision of law. It cannot be, for instance, claimed on the basis of agreement of parties.

? Who may appeal?

One of the parties or both of them may be dissatisfied with the decision of the lower court may appeal against the decision of that court. Hence, either party or both may appeal against any final judgment rendered in a subordinate court. The party taking the appeal is called the **appellant**, and the party against whom an appeal is taken is called the **respondent**. (You are advised to go through Art 320-349 extracted from the Code herein under).

? Can you think of an example where both parties to a suit may be dissatisfied with the decision of a subordinate court?

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Lets say the court gives a judgment in favor of the plaintiff, but awarded him a lesser amount of damages than he claimed. In such a case, both the defendant and the plaintiff may be aggrieved by the decision and appeal. The defendant may appeal from the decision on his liability, and the plaintiff may appeal from the decision on damages i.e. that he has been awarded a lesser amount of damages than he claimed. This is what we call a cross appeal, and as to the issues, the plaintiff would be the cross- appellant and the defendant the cross respondent.

? When do we say a party is aggrieved?

A party to a proceeding is said to be aggrieved by the decision of the rendition court when the decision operates injuriously upon his pecuniary or personal interests. In order to be aggrieved, the decree must cause him a legal grievance by wrongfully depriving him some right. This implies that a party in whose favor a decision is given cannot appeal if he is not adversely affected by the decree. For instance, if in a suit claiming compensation for non performance, assume that the court awarded that the defendant was prevented by force majeure. In this case, the defendant cannot appeal. This is because his interest is not injuriously affected by the decision of the court. Just as a party cannot bring a suit to have some abstract question determined, he may not seek review of a decision unless he has been adversely affected by the judgment which he is challenging. By the same token, where the plaintiff proceeded on alternative theories of liability, and the court found in his favor, but not on the other, and gave him all the relief he sought, then he cannot appeal on the ground that one issue was not decided.

? What is the situation in multi-party litigation?

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In multi-party litigation, any or all of the parties may appeal if they are adversely affected by the decision. Sometimes, a decree against one may impliedly affect the interest of the other. Suppose that the defendant joins a third party defendant. The court finds for the plaintiff as against the defendant and for the third party on the defendants claim against him. In this case, the party appealing may not make all the other parties respondents to the appeal. The original defendant may appeal against the decision on the third partys liability, naming the third party defendant as respondent without appealing against the decision in favor of the plaintiff on his claim. Also where one defendant has filed a cross claim against the other, either may appeal from the decision on the cross claim more than one party had joined or been joined, the appeal may be taken by or against some of the parties only, unless the other parties are indispensable. There is also a situation where only one or some of the defendants may appeal against the co-defendants. Let me elaborate this point by the following example.

Example. Ato Moltot Sues two joint owners of a car, for the recovery of money borrowed by one of them. It was Ato Ergete, one of the co-defendants, who borrowed the money for the purpose of purchasing the car. On the day fixed for hearing the case, Ato Ergete does not appear. Ato Abebe, the other co-defendant and a co-owner of the car, appears and admits that he and Ato ergete are joint owners of the car. Besides, it was found by the court that the loan was obtained by Ato Ergete for the purpose of purchasing the car jointly owned for the purpose of purchasing the car jointly owned. A decree is passed against Ato Ergete and Ato Abebe. Ato Abebe has no problem with regard to the decision rendered in favor of Ato Moltot. However, he may be aggrieved by the decision which made both him and Ato Ergete liable jointly. In this case, he may appeal against the decree being an appellant making Ato Ergete a respondent. This is a clear instance of an appeal by a defendant against his co-defendants.

The party who appeals against the decision of a court to a higher court is referred to as an APPELLANT and his counter part i.e. a party against whom an appeal is made, mostly the judgment creditor in the rendition (lower) court is known as the RESPONDENT. But the judgment creditors (decree holder) may accept what the decree awards him and at the same time appeal for the lower court awards the judgment creditor a sum smaller that what he claims. Then he may accept the smaller sum and appeal for the balance.

? How many times can party appeal?

The right to appeal to a higher court is not unlimited. And hence there is one appeal as of right. This is implied from Art.321(1) of the Code, and Arts.9 and 13 of Proc. 25/96. Where the case was tried in the regional Woreda court then an appeal lies to the High Court, and where the case was tried in the High Court, and then an appeal lies to the concerned Regional Supreme Court. Therefore, an appeal *as of right* is one that is guaranteed by statute or some underlying constitutional or legal principle.

Art. 321. - Courts having appellate jurisdiction
(1) An appeal shall lie from a judgment of:
(a) a Woreda Guezat Court in its original jurisdiction to the Awradja Guezat Court in whose area of jurisdiction such Woreda Guezat Court lies;
(b) an Awradja Guezat Court in its original jurisdiction to the High Court;
(c) the High Court in its original jurisdiction to the Supreme Imperial Court.
(2) Where on appeal an Awradja Guezat Court or the High Court varies the judgment appealed from, a second appeal shall lie:
(a) from an Awradja Guezat Court to the High Court;
(b) from the High Court to the Supreme Imperial Court.

? What is then a second appeal?

The appellate court has the power to confirm or alter the decision of the lower court appealed to it. If the decision of the lower court is varied or reversed, a second appeal lies to the next highest court. That is to say if on an appeal the high court varies the decision of the Woreda court or the First Instance Court as per Art.321 (2) of the Code and Art 9(2) of Proc.25/96, a second appeal lies to respective Supreme Court. No matter how the Supreme Court disposes of the case, no further appeal lies since, for one reason there is no other higher court. In the strict sense, we cannot call it a second appeal. This is because the so called “*second appeal*” gives the chance for the other party; and not for the party who appeals. The question here is what happens if the appellate court confirms the judgment of the lower court appealed to it.

? Is there a second appeal if the appellate court confirms the decision of the lower court?

Some experts argue that there may be a second appeal if the judgment is confirmed. They say this because the Code does not specifically prohibit a second appeal. According to them the Code provides only the situation where the decision of the lower court is reversed on appeal. If the decision of the lower court is confirmed, the Code is silent and hence, we cannot say that a second appeal is prohibited.

? Do you agree?

But I would say that there is no second appeal at least in Federal Courts. My assertion stems from the *a contrario* readings of Art 321(2) of the Code, and Art.9 of Proc 25/96. For instance, the *a contrario* reading of Art. 9 of the Proclamation will be as follows.

Art.9 Appellate Jurisdiction of the Federal Supreme Court

(2) The Federal Supreme Court shall not have appellate jurisdictions over decisions of the Federal high court rendered in its appellate jurisdiction in confirmation of the decision of the Federal First Instance court.

Therefore, I would say there is not what we call a “*second appeal*” in Federal Courts. In effect, this means that the Supreme Court cannot see a case by way of appeal that was decided by the First Instance court and on appeal affirmed by the high court. Though I heard that there is a Proclamation in the Amhara Region, which repeals Art.321 of the Code and allows a second appeal in the Region, I could not find a copy of it.

? Can a party appeal to the Federal Court from the decision of State Courts?

Under the current Federal arrangement, cases are apportioned as federal and state matters, and Federal matters are within the jurisdiction of Federal courts while state courts have jurisdiction on state subject matters. This is with regard to inherent jurisdiction of such courts over certain matters. However, since we do not have Federal courts, especially in Oromya, Amhara, Tigray, and S.N.N.P, it may be difficult to adjudicate Federal matters which may arise in such States. Because of this constraint, State courts are constitutionally delegated to see Federal matters which may arise within their respective territory by way of delegation. As we discussed in Chapter Three, the delegated state court that has such concurrent jurisdiction will entertain the matter. For a detailed understanding, you are advised to refer to the discussion in Chapter Three and to read Art.80 of the Constitution and the provisions of Proc. 25/96.

As is stated clearly under Art.80 (1) and (2) of the Constitution, the Federal Supreme court has the highest and final judicial power over Federal matters, and the State Supreme Courts shall have the highest and final judicial power over state matters.

? Does it mean that the decisions of the state supreme courts cannot be taken by appeal to the Federal Supreme court?

The answer to this question is partially yes and partially no. It depends on the kind of the case decided by the States Supreme Court. If the case is fully within the exclusive jurisdiction of the state i.e. if it is a state subject matter, the state courts will entertain that case and the decision of the respective State Supreme Court will be final, not appellable to the Federal Supreme Court. But as per Art 80(2) of the Constitution, the second paragraph, State Supreme Courts are empowered to exercise the power of the Federal high court. In addition, as per Art 80(5) of the Constitution, decisions rendered by a state high court exercising the

jurisdiction of the Federal First Instance Court are appellable to the State Supreme Court. In this case, decisions rendered by a state Supreme Court on Federal matters are appellable to the Federal Supreme Court. To say it in another way, the Federal Supreme court has appellate jurisdiction over the decisions of the state Supreme Court only over decisions rendered by way of delegation. Otherwise, the Federal Supreme Court does not have appellate jurisdiction over state matters.

Moreover, the decision of the state Supreme Court on Federal matters that it entertained by appeal sometimes may not be appealable to the Federal Supreme Court. The decision is appealable only where the state Supreme Court reverses the decision of the State High Court on Federal matters entertained by delegation. If the state Supreme Court has affirmed the decision of the state high court on Federal matters, it is not appealable. I will elaborate this point by the following example.

Example: Let us assume that Bahir Dar University has sued GAD construction for breach of contract claiming 300,000 Birr. Though the case is a federal matter which falls within the jurisdiction of the Federal First Instance Court, the University filed the case to the Western Gojjam High Court at Bahir Dar since there is no Federal First Instance court in Bahir Dar. This means that the Western Gojjam High Court will entertain such federal case by way of delegation. Let's assume that the court rendered a decision in favor of the Construction, and Bahir Dar University appealed to the A.N.R.S. Supreme Court. Such Supreme Court has appellate jurisdiction pursuant to Art 80(5) of the constitution.

? In what situations can a party take the would be decision of the A.N.R.S Supreme Court to the Federal Supreme Court by way of appeal?

If the Supreme Court affirmed the decision of the Western Gojjam high court, since there is only one right to appeal, Bahir Dar University has exhausted its right of appeal. It cannot take the case by way of appeal to the Federal Supreme Court. However, If the A.N.R.S Supreme Court reversed the decision of the Western Gojjam high court or decided in favor of the University, it will be different. In this case, the decree holder in the court of rendition but

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who lost in the court of appeal may enjoy his one time right of appeal (what we call the ***second appeal***), and may take the case to the Federal Supreme Court by appeal!

Also the State Supreme Court entertains cases for the first time by delegating the Federal High Court. Cases that begin in the state supreme court by delegating the Federal high court are appealable to the Federal Supreme Court if the Federal supreme court affirms the decision of the high court, its decision will be final and no appeal lies.

Dear Student, we said each party has one right to appeal. But consider the following question and discuss it with friends.

? What would happen if the Federal Supreme Court reverses the decision of the Federal high court rendered in its first instance jurisdiction?

8.2.3. Taking the Appeal and Its Presentation

? My dear distance student, how can a party take his appeal?

In the previous chapter, while discussing contents of the judgment, we said that the court will state in the decree and inform the parties that they have the right to appeal if dissatisfied by the decision of the rendition court. From the date on which the decree has been passed, any party can apply to the registrar of the rendition court that certified copies of the judgment be given to him. As per Art.184 of the Code certified copies of the decree or the judgment shall be furnished to such party, and the date when such copy was furnished shall be maintained therein.

? What is the need, especially with regard to appeal, to mention the date when

such copy was furnished?

From the above paragraph, we understand that a party to a suit, for whatsoever reason, has the right to require the rendition court to furnish copies of the decision. Then based on the points of grievance on the final decision of the court, such party will prepare the memorandum of appeal. The memorandum of appeal contains the essentials provided under Art 327 of the code.

- Art. 327.- Contents of memorandum of appeal**
- (1) The memorandum of appeal shall contain:
 - (a) the name and place of the court in which the appeal is filed;
 - (b) the names and addresses of the appellant and the respondent;
 - (c) the name of the court which gave the judgment appealed from, the date of such judgment and the number of the suit in which it was given;
 - (d) the address within the jurisdiction of the court for service on the appellant;
 - (e) the grounds of appeal; and
 - (f) the nature of the relief sought.
 - (2) Attached to the memorandum of appeal there shall be a certified copy of the full record of the proceedings in which the judgment appealed from was given and of such judgment.
 - (3) The appellant shall state whether he bases his appeal entirely on the record of the original hearing and shall, where appropriate attach to the memorandum of appeal an application for permission to call additional evidence, stating the nature of such evidence, the names and addresses of the witnesses to be called if any, the reasons why such evidence was not produced in the court which gave the judgment appealed from and why it should be produced in the Appellate Court.
 - (4) The memorandum of appeal shall be made in such number of copies as shall permit of one copy being served on each of the respondents.

A party takes an appeal by filing in the registrar of the appellate court the memorandum of appeal signed by him or his pleader. Where there are several appellants they may file one memorandum signed by all or their pleader, per Art.323 (2) or behalf of all. Together with the contents and the points of dissatisfaction, a copy of the full record of the case and the judgment should be attached to the memorandum of appeal. This would include the application for the record in the rendition court. Unless otherwise the appellant is allowed to produce additional evidence the memorandum of appeal should state only whether the appellant bases his appeal entirely on the record of the original hearing or whether he desires to produce additional evidence, in which case an application to call additional evidence must be attached to the memorandum. This is the message of Art. 327(3) and (4) where the memorandum is not in the proper form it may be rejected or returned to the appellant for the

purpose of being amended within the specified time stated under Art.323(2) or to be amended there and then as per Art.330 (1).

? What are the grounds of appeal, and the remedies sought?

The grounds of appeal are the reasons stated by the appellant in the memorandum that support his argument why the judgment should be parts of the memorandum. It is based on these grounds that the appellate court will examine the appeal. The remedy sought in the appellate court is to variation or reversal of the decision of the rendition court. It is the redress that the appellant asks of the court. It may be, after reversal, an injection order of compensation or else.

8.2.3.1. Time of Appeal and out of time

My dear distance student, time of appeal refers to the time within which an appellant should file his memorandum of appeal in the appellate court after the rendition court gave judgment from which an appeal is preferred. The time given to the appellant is not a limitation to apply to the rendition court to furnish a copy of the judgment. In my opinion, it does not have a limitation to apply to the rendition court to furnish copies of the judgment. The aggrieved party may require the rendition court to issue and furnish copies of the judgment at any time after the date of the decision. The time of appeal given to the appellant is gather a time limit that requires him to file his appeal within, a prescribed period. Appeal time has a limit! Such a time limit is provided under Art 323(2) of the code.

Art. 323.- Form and time of appeal

- (1) Every appeal shall be lodged by filing in the registry of the Appellate Court, upon payment of the prescribed court fee, a memorandum of appeal in the form provided by Art. 327 signed by the appellant or his pleader.
- (2) The memorandum of appeal shall be filed within sixty days of the judgment appealed from being delivered.

(3) Where there are several appellants, they may file one memorandum of appeal which shall be signed by all of them or by their pleader on behalf of all of them.

(4) There shall be kept in every court a book called the Register of Appeals where in the particulars of all appeals shall be entered and numbered in order of reception.

According to Art 323(2), the memorandum of appeal shall be filed within sixty days from the time of the delivery of the judgment. A judgment is delivered after the suit has been heard per Art.180 of the code. (refer the discussion in chapter of).

? Is it this time that is referred in Art 323(2) which is considered as time of the delivery of the judgment?

Art.180 refers to the time of the pronouncement of the judgment while Art 323(2) refers to the delivery of the judgment. The two times are different. And the time of appeal shall be calculated as of the date of the delivery of the judgment. This means that the sixty day time limit will start to be counted as of the delivery of the copy of the judgment to the parties. This is because the rendition court may delay in giving the copy of the judgment. Thus, the party aggrieved is required to file his memo of appeal within this time (60 days). If he fails to observe this time limit he will suffer rejection and will be denied to the right to review, which in effect means that the judgment from, which appeal is preferred will not be affected.

? Is it the rendition court or the appellate court registrar that has the power to refuse to accept the appeal filed after 60 days?

From the reading of Art 234, it is clear that the registrar must refuse to accept the memo of appeal where it is filed after 60 days. **It is not the business of the rendition court to accept or reject the application for an appeal.** So it is the power of the registrar of the appellate

court. Such registrar will look into the copy of the proceedings and the letter of the lower court that shows when the judgment was delivered and will calculate the days. If the appellant has brought his memo after the expiry of the sixty days, the registrar must inform the appellant to file an application, within 10 days. For leave to appeal out of time separately from the memo of appeal.

? What is leave to appeal out of time? Try to answer it in the space provided below!

If the appellant submits his application for leave to appeal out of time with the memorandum of appeal, the registrar will not accept. The memo of appeal will only be accepted when the court rules that the application for leave out of time is acceptable. In other words, if the court is convinced that the appellant has good cause not to appeal within the sixty days time limit it will grant leave to appeal to file his memo of appeal.

? What constitutes “*good cause*” to grant leave to appeal out of time?

In his application for leave to appeal out of time, the appellant is required to show good cause why he did not file his memo of appeal within the prescribed time limit. What constitutes good cause depends on the subjective application of the facts by the judge entertaining the case. For example death of the spouse, severe illness, etc may prevent the appellant from filing his memo of appeal within the prescribed time limit. Generally, the good cause must be supported by evidence as may be necessary to enable the court to decide whether the appellant was prevented from appealing within the 60 days time. The court, as per Art 325, may hear the appellant and the respondent and may take evidence. If the court believes that he was prevented for good cause, it records an order granting the application, and the appellant shall file his memo of appeal within 10 days of such order pursuant to

Art.326(1). According to Art.326 (3), no appeal lies from a decision dismissing an application for leave to appeal out of time.

Art. 325.- Application for leave to appeal out of time

(1) An application for leave to appeal out of time shall be in writing and show cause why the appellant did not appeal within the period laid down in Art. 323.

(2) The application shall be accompanied by such evidence as may be necessary to enable the court to decide whether the appellant was prevented for good cause from appealing.

(3) Prior to deciding on the application, the court may hear the applicant and the respondent and make with regard to evidence such orders as it thinks fit.

Art. 326.- Decision on application

(1) On being satisfied that the appellant was prevented for good cause from appealing, the court shall record an order granting the application and the appellant shall file his memorandum of appeal within ten days of such order.

(2) There shall not be good cause within the meaning of sub-art. (1) where the failure to appeal in time is due to the default of the appellant's pleader.

(3) No appeal shall lie from a decision dismissing an application under this Article.

(4) A note of any application under this Article and of the decision thereon shall be entered in the Register of Appeals.

The code does not, however, provide **what constitutes good cause**. It only provides that the default of the pleader to appear does not constitute good cause. As far as the interpretation of good cause is concerned, there are two approaches. The first approach holds that “good cause must be interpreted narrowly. This means that the appellant should not be excused for any slight cause to appeal out of time. Under this approach, the standard required to fulfill the requirements of good cause is very stringent. On the other hand, the second approach holds that “good cause” deserves a liberal interpretation.

? What is the need to interpret “*good cause*”?

Dear distance learner, have you tried? Well, the reason for interpreting “good cause” liberally is to strike out a just and equitable balance between the right secured by the respondent as a result of the expiry of the prescribed period of limitation and the injustice of depriving the appellant of adjudication of his grievance on the merits of the appeal, for a cause beyond his reasonable control. “**Good cause**” should be given a liberal interpretation so as to advance substantial justice when no ignorance nor inaction nor lack of good faith is imputable to the

appellant. Under this view, the litigant does not ordinarily stand to benefit by lodging on appeal late. Refusing to allow filing an appeal out of time (for good cause) can result in a meritorious matter being thrown out at the very beginning and cause of justice being defeated. As against this, when delay is condoned, the highest that can happen is that a cause would be decided on merits after hearing the parties. To sum up, “good cause” should be interpreted to strike the balance i.e. the interests of the appellant and the respondent in a just and equitable manner.

So far, we have been trying to address the issue of time of appeal. My dear distance learner, we have not yet addressed one issue as to the time when judgment is said to be delivered. This is a very controversial point.

Usually, once judgment is pronounced what happens is that the party who lost the case would decide to appeal and could apply to the court that gave the judgment that he desires to appeal and that he needs the copy of the proceeding and the judgment too. Then the records of the proceeding and the judgment must be copied, which in the countryside areas takes several days. In most Woreda courts, they do not have photo copy machines. Many times because the number of appellants is higher than the number of secretaries, copying the proceedings and the judgment may take a couple of months. The appellant has to wait until he gets the copy. In other words, by the time he gets the copy of the record, it may be more than 60 days from the day of pronouncing the judgment. This will give rise to a question whether the appellant should file an application for leave to file out of time or not.

? How do you calculate the 60 days period?

Concerning this, there are two approaches in practice. The first approach is that the time that is taken by the rendition court to copy the records of the proceeding and the judgment shall not be counted when calculating the sixty day time limit since it was not the problem of the appellant or since it is not within his control. So, under this approach, the calculation of the sixty day time limit is made on the basis of the following two factors.

1. the day when the appellant asked the court for the copy of the records and

2. the time when the appellant filed the appeal.

The second approach is that the sixty day time will start to run from the day judgment is delivered until the end of the 60th day. Under this interpretation, the time required to copy the record of the proceedings will be added and if it takes more than two months, it will be calculated against the appellant. He can not appeal as of right. The only remedy he would have in such cases is to file application for leave to file out of time.

? Which approaches do you propose?

My position depends on the availability of resources, which facilitate the copying process. In towns and cities courts have photocopiers and computers, which will enable to produce copies of records within minutes or hours. So, the time required to copy the records will be added and the sixty day limit should be calculated against the appellant. However, in many parts of the country, there is still problem of copying the records of proceedings with a typewriter machine or in some cases with handwriting. In this case, the sixty-day time limit, in my opinion, should be calculated from the day on which the copy is delivered to the appellant. Or it will constitute “good cause” to allow leave to appeal out of time, especially the second one seems more sound interpretation (for further understanding, you are advised to refer and to read on Sedlers Material, on pp 228.)

? Do you believe that it is possible to formulate rigid rules as to what constitute good faith in every case, and when the sixty day time should be started?

8.2.3.2 Grounds of Appeal

My dear distance learner, in our discussion on review of judgments by higher court under section 8.2, we briefly discussed what grounds of appeal are. We said that the grounds of appeal involve errors of law allegedly committed by the subordinate court. In this section, we will have a detailed discussion on the grounds in which the appellant is dissatisfied in the judgment from which the appeal is preferred.

? What are the grounds of appeal, and what does it refer to?

Have you tried in the space provided above?

The rules relating to the grounds of appeal are provided under Art.328 of the civil Procedure Code. Among other things, the appellant must set forth in the memorandum of appeal his grounds of appeal, that is to say he should state the grounds on which he objects the judgment from which the appeal is taken under distinct heads. Stated otherwise, the appellant shall state his grounds of appeal in a clear and concise form, and where there are more than one ground, each ground shall be set forth separately and numbered consecutively. This is the message of Art. 328(1) of the code; also it has to be stated without an argument. If he does not do so i.e. if he does not state concisely all the grounds of objection to the judgment appealed from, he shall not be heard.

? Does it mean that the appellant can not ask the court to be lead on the ground that he did not raise in his memorandum of appeal?

The rule is provided for under Art.328 (2) of the code. Accordingly, the appellant shall not urge or be heard in support of any ground of objection set forth in the memorandum of appeal. This general rule however is not without an exception. Exceptionally, the appellant may do so if he gets leave of the court to raise and be heard on his objection that are not stated in the memorandum of appeal. This is not a right, but is a privilege to be granted by the court. As such, this rule is based on the consideration that if appeals are to proceed in an ordinary manner, the appellant must be made to set forth all his objections in his

memorandum of appeal at the proper procedure. If he does not do so, he may be precluded from raising the objection subsequently. For these purposes, it does not matter that the objection was made in the court below; to be raised on appeal it must be made in the memorandum of appeal, which may be said to establish the issues to be raised on the appeal. Lets elucidate this by the following hypothetical example. Lets assume that the appellant is dissatisfied by the decision of the lower court that the respondent is awarded more damages than he deserves. Also the appellant claims that the respondent should compensate him. In his memorandum of appeal, he objected only the decision of the lower court, which awards the respondent with out saying anything about the compensation. In this case, he can urge the court to be heard only on the question he objects that the respondent should not be awarded, and he cannot contend that he should be compensated.

? What is the rationale behind this rule?

During the first part of this course, i.e. civil procedure I, we discussed about the principle of stage preclusion, and the purpose of civil procedure. Probably, our discussion here is based on that rule, and hence you are kindly advised to refer to the pertinent portions of the module on civil procedure I. to bring your fresh memory, this is done through balancing the right of an individual to litigate his claim and disposing of cases as economically and expeditiously as possible.

Therefore, if the appellant failed to raise an objection in the memorandum of appeal, he may file an application to amend or the court may allow or its own motion the amendment of the memorandum of appeal. In this regard, the conditions set forth under Art. 328(2) and Art 329 of the code must be satisfied.

While the court allows an amendment to the memorandum of appeal, it must be convinced that there was good cause for omitting that ground in the appeal. In this respect, Art 91 of the civil procedure code which is applicable to amendment of pleadings civil proceedings shall apply since memorandum of appeal is a pleading as per Art 80 of the Code.

The other case where any ground of appeal or an objection, which is not stated in the memorandum of appeal, may be heard is when the court decides to do so by its own motion. The court is not confined to the grounds of objection set forth in the memorandum of appeal or argued by leave of court. It may decide on any ground with a view to avert miscarriage of justice.

In our example above, the appellate court may award the appellant, after reversing the decision of the lower court, to compensation. However, the court must be satisfied that there was good cause. That is why we said this is an exception to the general rule that an appellant cannot raise any new facts and arguments not raised in the memorandum. Therefore, there is no doubt that court will require strong and convincing reasons to allow the appellant to argue on grounds not raised in the memorandum of appeal. Moreover, the other party must have been given the opportunity to contest the ground of objection on which the court is basing its decision.

? Can you think of instances where the court may permit the appellant to be heard on point that he did not raise in his memorandum of appeal?

One instance where the court may permit the appellant to argue an objection not raised in the memorandum of appeal is where the subordinate court incorrectly applied the law, and no objection had been made. In our discussion during the first semester in the first part of this course, we said that it is the business of the court to relate allegations of the parties with the appropriate provision of the law. However, the subordinate court might have wrongly applied the law. In this case, the appellate court may decide the case on any rule of law it considers applicable on its own motion. As usual, however, it must give the respondent the opportunity to present his arguments as to the new rule of law which may result in a reversal. The appellant should also be given this opportunity because while the court may decide the case on any ground it thinks proper, the appellant may not ordinarily present arguments on a ground that he did not raise in his memorandum of appeal.

The other instance where the appellate court may go beyond what is presented in the memorandum of appeal is if the issue of force majeure involves a question of law. Force majeure would be question of law if a certain factual situation is not defined but is contested. For instance, in the lower court the defendant alleged that he was prevented performance due to the fact that the object of the contract was robbed, and the court decided that robbery is force majeure. Then the issue in the appellate court will be

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whether robbery constitutes force majeure or not. This is a clear example of question of law. In this case, the court may allow the appellant to argue though he did not clearly state it in his memorandum of appeal.

So far, so good. We have seen how a memorandum of appeal can be amended and how the appellate court can go beyond what is presented by the appellant. You are advised to list out and discuss such instances as much as you can. Next, we will see how the court permits the introduction of new evidence during appeal.

? Can an appellant base his appeal on new facts and evidence, which were not presented, in the trial court?

Art. 329. - New facts and arguments
(1) Subject to the provisions of Art. 345 the appellant may not raise any fact which was not in evidence in the court which gave the judgment appealed from.
(2) The Appellate Court may allow amendment of the memorandum of appeal and arguments upon such terms of service of notice, costs or otherwise as it may think fit.

According to this provision, an absolutely new case which was not in evidence in the trial court cannot be raised in an appeal. The appeal should be limited to a review of the questions decided by the lower court. If a party can raise new objections and issues on appeal the appellant court is, to that extent, turned in to a court of first instance, and **the reason for permitting an appeal i.e. to review the decision of the lower court will be lost.** This is the general rule. As usual, however, exceptionally where the court permits, the appellant may raise any fact which was not in evidence in the subordinate court.

? What does “*fact which was not in evidence*” mean?

We say a given fact is in evidence when an allegation of fact alleged by one party is defined by the other. So, the phrase “--- fact which was not in evidence is construed to include any objection or issue that was not raised in the lower (trial) court. That is what we mean by an objection or issue can not be raised for the first time on appeal. It is too late to raise new issues with new evidence before the appellate court since the issues are already resolved in the lower court. Where a party abandons an issue at trial and does not introduce evidence to support his side of the issue there, he cannot revive the issue on appeal.

? So, what kind of new evidence is exceptionally permitted?

There are two aspects to this point. Where a party a trial seeks to introduce evidence on a matter not in issue, and objection is made on **grounds of variance**, he should seek to amend his pleading to include the allegations that are the basis of the issue, and as we have said previously, such an amendment should be permitted. The same is true with respect to objections in the Sixth Chapter to this Course; we know that certain objections are waived if not raised prior to trial. As per Art 244(3) objections should be raised at the earliest possible opportunity, most importantly at the first hearing, and of course, they cannot be raised on appeal. Among exceptions to this rule is the objection that the court lacked material jurisdiction. This objection may be raised for the first time in the appellate court. And this can be inferred from art.211 (1).

? Why is this exception tenable?

As is said repeatedly, the **lack of material jurisdiction** goes to the power and competence of the court to proceed hearing the case at all. If a given court does not such competence, it is not expected to give a sustainable decision. And hence the objection may be raised on appeal.

The other instance is **where the suit had no cause of action**. In this case, the defendant can always contend that the plaintiff has failed to establish an essential element of his case of action during the trial. . When deciding the appeal, the appellate court may raise it by itself, merit less case. The same reasoning is applicable to failure to join an indispensable party since the absence of such a party affects the power of the court to hear the case, the objection may be taken at any time.

To conclude, the review on appeal is restricted to the questions that have been decided in the subordinate court. That is to say that it is only the decision of the subordinate court on those questions that is being reviewed on appeal unless otherwise is exceptionally allowed. Therefore, appellant must state his grounds of appeal in a clear and concise form and argue so that a review will be easier.

8.2.3.3 Cross Objections in Appeal

We said in our previous discussion that any party, either the judgment creditor or the judgment-debtor may appeal from the decree.

? What is a cross objection in appeal?

Sometimes it may happen that both parties to a suit be dissatisfied by a decision of the lower court. But recognizing the time taken by an appellate litigations and the inconvenience involved therein, one of the parties may refrain from taking any action against the decision. The problems will come into being in case the other party also is aggrieved by the decision of the court and appealed against the decision.

? What choice do you think that the first party who refrained from appealing has?

The party in whose favor judgment on the merits entered may have certain objections to the decree, which he may want to raise in the appellate court, and if so, he may file what is called cross — objection. However, the objections may be such that he is unwilling to file and appeal in order to raise them. That is to say that he is relatively satisfied with the judgment as it is. But when the other party appeals from the decree, he may decide that he now wants to raise such objections. It is, therefore, provided that the respondent may take any cross — objection to the decree or order, which he could have taken by appeal notwithstanding that he did not appeal from any part of the decision when the other party has filed an appeal. And upon acceptance of the appeal, the other party would raise such objections. The procedure is called CROSS — OBJECTION. The Code, under Art.340 provides for this procedure.

Art.340 cross objection.

? Can you think of a similar procedure in the trial court?

Lets elucidate this point by the following hypothetical example. While driving a car, Mr. A collided with Mr. B. Believing that each will take care of his, and cover his own respective cost of maintenance, Mr. A refrained from taking any court action against Mr. B, who was supposed to be at fault. In the meanwhile Mr. A was served with the summons by Mr. B for a claim of damages. What can Mr. A do?

Dear Students, have you tried? Good, cross-objection in appeal is analogous to the provisions relating to counter-claim and set off. Even though in our hypothetical example Mr. A the defendant, did not desire to prosecute his claim against Mr.B, he may decide do so when

sued by the plaintiff, Mr. B. So too, in case of appeal even if the successful party, with some dissatisfactions did not wish to file an appeal to challenge certain aspects of the decree once his opponent has appealed from the decree, he may decide that he should raise his objections as well.

Note: There is no clear distinction between a cross objection and cross- appeal and the same ground of attack may be raised by both methods. The only distinction refers to whether the judgment creditor filed an appeal to challenge the decree(cross appeal) like the other party does, or whether he made his attack only in response to an appeal filed by another party I.e. a cross objection.

As to how cross-objection is filed and how it is heard, let look sub-articles (2), (3) and (4) of Art 340, which we will discuss in the next section.

Art.340.-Cross-objection

(1) The respondent may, on payment of the prescribed court fee, take any cross-objection to the decree or order which he could have taken by way of appeal notwithstanding that he did not appeal from any part of the decree or order.

(2) A cross-objection shall be in the form of a memorandum of appeal and shall be filed in the Appellate Court within one month from the date of service on him or his pleader of the summons issued under Art. 338(1).

(3) Unless the respondent files with the objection a written acknowledgement from the party who may be affected by such objection or his pleader of having received a copy thereof, the Appellate Court shall cause a copy to be served, as soon as may be after the filing of the objection, on such party or his pleader at the expense of the respondent.

(4) A cross-objection taken under this Article may, after such notice to the other parties as the court thinks fit, be heard and determined notwithstanding that the original appeal is not proceeded with.

? What would happen to the cross objection if the appellant withdraws his appeal?

The fate of the cross objection in this regard is dependent upon the appeal. If the original appeal was not validly filed, there would be no opportunity for the respondents cross objection to be presented and heard. It is as if no appeal had been taken. However, if, after the appeal is accepted, and served to the respondent, the appellant disappears or withdraw his claim, the court should hear the cross-objection. This is the import of Art 340 (4), which says the cross objection may be heard and determined notwithstanding that the original appeal is not proceeded with. This is as if the plaintiff disappears and the defendant files a counter claim.

Dear my friends, are you ok with the discussion? If so, it is good. But if you are not comfortable with it, I friendly advise you to study it with your friends and practice pertinent cases in “ ¾ÖpLÃ õ`É u?,,< ¾õ`Ê< SÊNö!! “

The other point worth mentioning is the possibility of filing cross objection by one co-respondent against, not the appellant in the appeal, but another co-respondent. As per Art 340(1), “the respondent may take ANY CROSS OBJECTION which he would have taken by way of appeal. This is because the purpose of the rule on cross-objection is to give the respondent the same benefits as he would have had if he cross-appealed from the decree.

To sum up the discussion at hand, it is important to note the following. The filling of cross objection is merely the device by which the respondent who did not file a cross appeal may attack the decree after unsuccessful party has taken his appeal. When both the successful and the unsuccessful party appealed independently and filed their own respective memorandum of appeal, we call it as a cross-appeal. Once cross-objections have been filed, the practical effect is the same as if he had taken a cross-appeal. When the decree or order is not challenged or sought to be set-aside by him, it is not permissible in law for a successful litigant with some dissatisfaction to file a cross-objection since it may result in the rendition of contradictory decisions: appeal and cross-objection, or cross-appeal must be heard together. If both the judgment —creditor and the judgment debtor appealed and filed their memorandum of appeal separately, the two files should be consolidated and be heard together

? What is the time limit to raise a cross-objection?

Cross objection has to be filed in the form of memorandum of appeal and has to fulfill all the requirements of an appeal. By the same token, no issue may be raised at the hearing which was not raised in the memorandum of cross-objection. Concerning the question raised above, cross-objection is to be filed in the appellate court within one month from the date of service of notice of the day fixed for hearing of appeal or within such date as may be extended by the appellate court.

? Can the party appealed object the time limit or the expiry of the sixty days period limitation?

Cross objection is filed after the expiry of the sixty days period limitation of filing appeal. And hence no explanation of reason for delay is necessary in cross-objection. Hence, a party having a right to appeal cannot get over the bar of limitation by filing cross-objection. The party appealed cannot object the time limit or the expiry of the sixty days period limitation during cross objection.

8.2.3.4 Stay of Executions

This is the most important action in the course of the proceeding. Since once judgment is rendered in the court of rendition, the case is considered closed, the successful party may seek the decree to be enforced. On the other hand, the losing party may seek a review of the judgment. If his appeal is accepted, and at the same time he is required to execute the decree against him, it will cause him an irreparable loss if the appellate court reverses the decision of the lower court therefore, there has to be a mechanism; and this mechanism is what we call the procedure of stay of execution.

? What do we mean by stay of execution?

It refers to the situation where the enforcement of a decree is interrupted provisionally until the appellate court finally disposes of the case. Where the party appealed is forced to comply with the judgment appealed from, he may petition for an order staying the execution of the judgment pending appeal.

N.B *The fact that an appeal has been taken does not automatically operate to stay the proceedings or to prevent execution of the decree. Appeal by itself cannot be a cause to stay the proceedings of execution. The appellant has to show to the court that he will suffer substantial and irreparable damage and that the appeal would be meaningless unless the order of stay of execution is granted.*

The procedure on stay of execution is provided for under Arts.332-335 of the Code.

? How is stay of execution initiated and by whom?

After the judgment is delivered, and an appeal is preferred from it, the judgment debtor, now the appellant, will file a stay of execution proceeding. On the other hand, the judgment creditor would try by any means to collect fruits of the judgment. So, the question is whether to force the appellant to comply with the judgment or to order stay of the execution. The code has rules to balance the interest of the decree holder and the judgment debtor in such circumstance. Also the interests of the judgment creditor must be protected upon granting stay of execution. In this regard, it may be granted to protect the interest of the appellant on the one hand, and to protect the interests of the decree holder, on the other hand, the judgment-debtor has to produce security to guarantee the compliance of the decree in case

the judgment reviewed is not affected Therefore, execution can be stayed only upon a showing that substantive loss will result if stay is not granted and if the appellant furnishes security for the performance of a decree.

? Which court has the power to order stay of execution?

Arts.332-336 of the Code provide for the rules governing stay of execution. Accordingly, stay of execution may be ordered by the appellate court or by the court which rendered the decree if the application is made to that court before the expiration of the time allowed for appeal. But once an appeal has been taken, any stay should be granted by the appellate court. By the same token, before an appeal has been taken, the case is not within the jurisdiction of the appellate court and it should not order stay. Are you now clear with the conditions of granting stay of execution?

Lets elaborate this little more .When the court of rendition is asked to order stay of execution of its decree, it may only issue if satisfied that:

- (1) Substantial loss may result to the party applying for it unless stay of execution is ordered,
- (2) The application has been made without unreasonable delay, and that
- (3) Security is given guaranteeing due performance of the degree of finally confirmed by the appellate court.

There must be a strict compliance with these conditions for granting stay of execution. Moreover, the aggrieved party must first determine to file an appeal. Previously, the production of copies of the proceeding in the court of rendition, and even after the appeal is filed, the appeal may await some longer period of time until the appellate court decides to accept or reject the appeal. All these used to require time which might take months. During this time, the decree-holder would start execution proceeding to force the judgment debtor who preferred an appeal which is ending. The latter then would seek to stay the execution in

the appropriate court. But currently, this is not a practical problem since copies of proceedings in the rendition court can be furnished within hours.

The other point worth mentioning is that the appellant must have applied to appeal on time. Unless the judgment debtor is required to appeal, there is no point of talking about stay of execution. The case will come to an end and will be considered dead. Otherwise, the judgment-debtor may abuse the right to stay of execution to simply delay the execution. Under art 334 of the Code, the president of the appellate court or the rendition court is given the power to grant an order staying an execution process.

We said previously that for granting a stay there must be strict compliance with the condition discussed about, and one of the conditions is that the applicant has to show that he will suffer substantial loss unless stay of execution is not granted.

? When do we say that the applicant will suffer substantial loss?

This is the more difficult question. Perhaps, this condition is based on the assumption that the judgment given in the rendition court will be reversed. If, for instance, the decree is executed and in the final analysis the decision reversed on appeal, the party obtaining execution will have to make a satisfaction according to Art.349 of the code. The then judgment-creditor in the rendition court will be required to return the subject matter of the decree executed. In this case, we may say that the appellant will not be affected and will not suffer substantial loss as a result of execution. But in the real world, things are intricated. For example it has been held that in cases relating to immovable property, the disturbance of the possession of the appellant will necessarily result in substantial loss, and hence a stay should be ordered. For sure, the appellant will suffer substantial loss if he is forced to deliver the car for execution.

Generally, since there is no objective or clear and fast index to say that some thing involves substantial loss, each case must be considered separately depending on circumstances involved separately depending on circumstances involved. Moreover, stay of execution is granted to avert such possible losses of both the appellant and the respondent. But the court

would not grant order of staying execution without being convinced that the appellant will suffer substantial loss. And the applicant has burden of demonstrating to the court that he will suffer substantial loss if execution is permitted.

To conclude, stay of execution is granted to avert the substantial loss that the appellant might have suffered if the appellate court reverses the decision. It is not, however, granted solely to delay the execution of the decree by the judgment — debtor moreover, The fact that an appeal has been taken does not prevent execution of the decree, but only if the conditions to order stay of the execution are complied with that stay of execution will be ordered.

8.2.4 Procedure on Appeal

So far, we have discussed essential points in understanding appeal such as time of appeal, grounds of appeal and the presentment thereof. We have also seen some procedural matters related to appeal. In this subsection, we will see how the appeal is examined, the respondent is summoned and hearing the appeal. This is the stage where the court will essentially review the proceedings that were conducted in the trial court, and finally addresses the issues involved in the review. At this stage, the court does not examine the parties and conduct a hearing. But it simply will hear what the parties have to say or raise on the decision of the rendition court.

Objective;

After successfully studying this subsection, the student will be able.

- to describe the procedure on appeal proceeding
- explain the difference between appeal and a trial
- describe the powers of the appellate court.

8.2.4.1 Hearing of Parties

Dear distance student, we discussed in the previous section that the memo of appeal will be submitted to the registrar of appellate court, and it serves as a pleading that originates the appellate proceeding. The appellate court then will fix a day for hearing the appellant or his pleader. Pursuant to Art.337 of the Code, the court may dismiss the appeal without calling on the respondent to appear, if it agrees with the judgment of the subordinate court. This procedure is analogous to dismissing the statement of claim for failure to state a cause of

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action. Where the appellate court believes that the appeal is groundless, there is no reason to proceed further, and the court is authorized to dismiss the appeal in accordance with the following provisions of the Code.

Art. 337.- Power to dismiss appeal without calling on respondent

Where the appellant states in his memorandum of appeal that he bases his appeal entirely on the record of the original hearing and does not apply for permission to call additional evidence, the Appellate Court may, after fixing a day for hearing the appellant or his pleader and hearing him accordingly on that day, dismiss such appeal without calling on the respondent to appear, if it thinks fit and agrees with the judgment appealed from.

Art. 338.- Day for hearing appeal

(1) Unless the Appellate Court dismisses the appeal under Art. 337, it shall cause the memorandum of appeal to be served on the respondent, fix a day for hearing the appeal and summon the respondent to appear and answer on such day, informing him that the appeal will be heard notwithstanding that he does not appear on such day.

(2) Such day shall be fixed with reference to the current business of the court, the place of residence of the respondent, and the time necessary for the service of the memorandum of appeal, so as to allow the respondent sufficient time to appear and answer the appeal on such day.

Art. 339.- Appellant to begin

(1) On the day fixed for hearing the appeal, the appellant shall be heard in support of the appeal.

(2) The court shall then, if it does not dismiss the appeal at once hear the respondent against the appeal, and in such case the appellant shall be entitled to reply.

(3) Nothing in sub-art. (2) shall prevent the court from requiring the respondent to submit a written reply to the memorandum of appeal and the appellant to submit a counter-reply.

(4) The reply and counter-reply shall be filed within such time as the court shall fix.

? What would happen if the court finds that some of the appellant sets forth more than one ground of appeal and the court finds that some grounds are meritorious?

The court should only admit so much of the appeal as appears possibly to justify a reversal or variation of the decree. Those meritorious grounds only will be heard, and if it is clear that one of the issue was decided correctly or that a particular ground of objection is without substance it should dismiss the appeal with respect t that issue or objection and proceed to

hear the balance of the appeal. This would enable both the court and the parties to conduct the proceedings on the appeal as expeditious as possible. And hence, on those non-meritorious issues, there is no reason to call upon the respondent if the appellant fails to satisfy the burden of demonstrating that the judgment appealed from is erroneous.

? How do you see the validity of current practice by our courts to dismiss the appeal by stating the reasons of dismissal within not more than five lines?

Presently, our courts dismiss the appeal by simply filling the Form without stating the reason for dismissal if they think that they agree with the judgment of the lower court, which is appealed from. Some people argue that this practice is contrary to the principle of rendering a reasoned judgment since dismissal of an appeal is in itself a judgment. They say that dismissing the appeal requires a reason, which should be stated in the decision of the court which rejects the appeal without calling the respondent. In other words, the proponents of this view support the traditional practice, which had been worked for a very long time in Ethiopia. But in my opinion, there is no need to state the reasons for dismissing the appeal fully. The reasons for the dismissal, in one or another way, are related with the fact that the appellate court agrees with the decision of the lower court appealed from, and that the court thinks it fit. What is to be stated as a reason is that there is no reason to review the decision of the lower court. So, I personally agree with the current practice to dismiss the appeal by merely stating that the appellate court agrees with the judgment appealed from, even if some judges abuse it to increase the number of files they closed!

? What would happen if the appeal is accepted, or not entirely rejected?

If the appellate court finds that one or more of the issues in the memorandum of appeal is not entirely dismissed, the court is to cause the copy of the memorandum of appeal to be served on the respondent together with a summons so that he will appear on a fixed date for

the hearing. This notice is similar to be the same as that given the defendant. According to Art.338 (2), the respondent must be allowed sufficient time to prepare his reply and to appear and be heard. If he does not appear, the provisions as to non-appearance will be applicable (please, cross- refer our discussion in the first Module)

? Who shall begin the hearing?

On the day of hearing the appeal, as per Art.339(1) the appellant is to begin and present his case first if he has not made out a case justifying further arrangement, the court hearing what the respondent has or say if the appellant has made out case, and the appeal is not dismissed, the respondent will be heard in response to the appellants argument then the appellant is entitled to reply As per Art 339(3), the court may allow and require the respondent to submit a written reply to the memorandum of appeal, and the appellant to submit a written counter reply But in practice, upon serving a written counter reply. But in practice, up on serving with the summons, the court does not only advise the respondent to appeal but always or him to present his reply to the memorandum of appeal in writing. So, presently the response to the appeal seems the rule in practice while the hearing on appeal should have been conducted orally. It is only exceptionally where the court believes so that the respondent be given the chance to prepare and submit a written reply and counter reply by the appellant There is move, in Ethiopian courts, towards conducting proceedings on appeal orally.

When the appellate court is hearing the appeal, it may frame issues if it concludes that the subordinate court has omitted to frame or try an issue which is necessary for the decision of the suit on the merits. Since the appellate court is not a trial court, it will refer those issues framed to the subordinate court, which is to take evidence on those issues as per Art. 343 of the code

Art. 343.- Appellate Court may frame issues and refer them for trial
(1) Where the court from whose decree or order the appeal is preferred has omitted to frame or try any issue, or to determine any question of fact, which appears to the Appellate Court essential to the right decision of the suit upon the merits, the Appellate Court may, if necessary, frame issues and refer the same for trial to the court from whose decree or order the appeal is preferred, and in such case shall direct such court to take the additional evidence required.

(2) The court to which issues are referred shall proceed to try such issues, and shall return the evidence to the Appellate Court together with its findings thereon and the reasons therefor, which evidence and findings shall form part of the record in the suit.

The subordinate court then will hear the evidence and submit its findings to the appellate court, which will proceed to determine the appeal. Framing of issues and referring them to the lower court saves the appellate court from taking evidence as if it were on trial. In addition to this, the appellate court will avoid to retry the case on grounds that the lower court has failed to frame or decide a given case. This is what we call remand of the case, and it will be the subject matter of our discussion in the coming sub-section.

8.2.4.2 Remand of cases by appellate court

? How do you understand remand of a case?

The term “remand” refers to the procedure of sending a case pending on appeal in the appellate court to a lower court for a new hearing consistent with the higher courts decision. The appellate court may remand the case to a lower court on two situations.

The first situation is the one that we discussed above, where the appellate court considers that **a retrial is necessary based on the issues framed by itself** as per Art.343 of the Code. The lower court then will try the untried issues or would hear evidence on the issues of fact and submit its findings to the appellate court. Note that the subordinate court is not reviewing its decision. In this case, it merely takes evidence, makes findings, and submit the evidences to the appellate court. What the lower court does is to try the untried issues and submit s the evidences to the appellate court. Since the appellate court has retained the appeal in its file, the findings of the lower court will form part of the record in appeal. The findings of the lower court on the issues framed by the appellate court are themselves appellable.

The second situation where the appellate court may remand the case to the lower court is when the lower court disposes of suit on a **preliminary point** the preliminary point may be a

preliminary objection or may be other issues that arise at the first hearing that results in the disposition of the suit. This situation is governed by Art 341 of the code

Art. 341.- Remand of case by Appellate Court

- (1) Where the court from whose decree or order an appeal is preferred has disposed of the suit upon a preliminary point and the decree or order is reversed in appeal, the Appellate Court may if it thinks fit, by order remand the case, and may further direct what issue or issues shall be tried in the case so remanded.
- (2) Where a case is remanded under sub-art. (1), the Appellate Court shall send a copy of its judgment and order to the court from whose decree or order the appeal is preferred, with directions to re-admit the suit under its original number in the register of civil suits, and proceed to determine the suit.
- (3) The evidence, if any, recorded during the original trial shall, subject to all just exceptions, be evidence during the trial after remand.

To elucidate this point, let's assume the following example.

Example: Assume that a preliminary objection raised under Art 244(2) of the code is sustained, and the court dismisses the suit since no further litigation is necessary. In such cases, the plaintiff has the right to appeal on the order. If on appeal, the appellate court finds that the preliminary objection say for instance the suit is not barred by period of limitation, is ruled out, it will reverse the order of the trial court, and remand the case to the subordinate court so that the case will be tried on the merits.

Note: The power to require the subordinate court to take the evidence is only discretionary, and the appellate court may decide totally the issue itself if this can be done conveniently. Assuming that substantial evidence must be taken, the sounder procedure would be to have the evidence taken by the subordinate court. This power is cautiously used to avoid Unnecessary delay and inconvenience.

8.2.4.3. Additional evidence

My dear distance student, now I think, you are coming closer to the understanding of the main procedures on appeal I hope you remember that the parties in appeal are not expected to litigate their claims again, but are simply expected to restate whatever argument and evidence they have presented at the trial court.

The most difficult question relating to the procedure to be followed on appeal is whether the appellate court should allow additional evidence to be produced. This issue is addressed under Art.345 of the code

Art. 345.- Additional evidence
(1) The parties to an appeal shall not be entitled to produce additional evidence in the Appellate Court. Provided that, where :
(a) the court from whose decree or order the appeal is preferred has refused to admit evidence which ought to have been admitted; or
(b) the Appellate Court requires any document to be produced or any witness to be examined to enable it pronounce judgment, or for any other substantial cause, the Appellate Court may, of its own motion or upon an application for permission to call additional evidence being made under Art. 327 (3) , allow such 'evidence or document to be produced, or witness to be examined.
(2) Whenever additional evidence is allowed to be produced by an Appellate Court, the court shall record the reason for its admission.

The general rule is that the parties are not permitted to produce such evidence... All issue must finally be given judgment on the merits in the appropriate manner. In order to force the parties to present all their evidence at that time, they must understand that they may not present it later on or that the trial court has not heard the necessary evidence to resolve the dispute

? What does it imply?

If the subordinate court has not heard all the evidences, its decision may not conveniently be reviewed. This implies that the appellate court would have to dispose of the issue by taking the evidence which was not heard by the lower court into account. In effect it means that the appellate court would have to try the issue again in light of the new evidence But ordinarily, additional evidence may not be introduced just to give appropriate decision in the appellate court

? So, does it mean that there is no ground to hear additional evidence on appeal?

My dear distance student, the general rule is not without exceptions. Art 345 reveals that there are three situations where the introduction of new evidence on appeal is authorized. These are,

1. where the subordinate court refused to admit evidence that ought to have been admitted
2. where the appellate court requires any document to be produced or any witness to be examined to enable it to pronounce judgment,
3. where there is substantial cause justifying the production of the evidence. This is the import of Art 345 (1) (a) and (b) Next, we will separately consider each of these situations.

? What should the trial court do when an objection to the introduction of new evidence is made?

When an objection to the introduction of new evidence is made at the trial court, the court, as we discussed in the first Module, must rule on the objection, either to sustain or to rule it out. If it concludes that the evidence is inadmissible. I.e. if the court sustains the objection, then it will immediately exclude such evidence from being heard. The ruling on the objection may be assigned as a ground of appeal. However, if the appellate court finds that the ruling on the objection was erroneous, it should not thereby reverse the decision. Rather it will set-aside the decision and hears the evidence, and considers whether the decision must be reversed in light of the new evidence. It would seem that the party in whose favor an issue was decided could also contend that the court failed to consider certain evidence he produced on the issue. If the respondent is challenging the courts finding on the issue, such party may wish to support the finding by producing the excluded evidence. If it was erroneously excluded, it should ordinarily permit the introduction of such evidence unless it does not appear to be significant. Lets assume the following example to elaborate the issue a little bit.

Example: To prove an issue, the plaintiff requested the court to introduce five witnesses. The court ordered that only three witnesses are sufficient and refused to hear the other two witnesses. Finally judgment was rendered in favor of the plaintiff, and the defendant appealed. Can the plaintiff, who is now the respondent in the appellate court,

ask for the introduction of the two witnesses who were erroneously excluded? Give your answer in the space provided below.

The answer to this question depends on the nature of the issue that the unheard witness was to testify. If they were to prove a different issue, the appellate court may readily allow them to be heard. If they were to testify on the same issue as those who testified, they may probably be heard only if they know something more than the heard witnesses. This is probably unlikely.

The second situation occurs where the appellate court requires a document to be produced or a witness to be examined in order to enable it to pronounce judgment upon examination of the record. The assumption is that the appellate court is persuaded that the record at hand as it stands is defective. The appellate court requires such new evidence where it finds that the lower court has decided the case in the absence of essential evidence and as a result the appellate court cannot determine if the issues were properly and accurately disposed. For a detailed understanding, it is better to have a close examination of the following example

Example: The subordinate court failed to take the evidence of an attesting witness, without which evidence the validity of the document cannot be proved. It is the appellate courts need to consider the evidence that is significant in this context, not the desire of the party to produce additional evidence. The need of the court to consider the evidence may be pointed out by the affected party since Art 345 (1) says the appellate court requires any document to be produced or any witness to be examined to enable it to pronounce judgment.

My dear distance student, how is the discussion going? Good, the appellate court must if at all possible, decide the case with reference only to the evidence that was presented at the trial court. The fact that it is difficult to decide on the basis of that evidence does not in itself justify the taking of additional evidence. Nor should the court ever re-examine a witness on the same matters as to which he examined at the trial, or take evidence to corroborate evidence disbelieved by the trial court. It is only where there is a gap in the record, as a result of which the appellate court cannot determine whether the subordinate court correctly resolved the issue that additional evidence should be permitted under this rule. That is to say

that the appellate court will **ONLY** examine the witnesses on matters that were not asked and testimony was not given i.e. where there is a gap in the record it hand!

My dear distance student, the appellate court has also the power under Art 345 (1) to admit additional evidence where it feels that in the interest of justice something which remains Obscure should be cleared up, so that the court may pronounce judgment in a more satisfactory manner.

The third situation where additional evidence may be produced is — for any other substantial cause. — this is a bit complex, and it has generally been interpreted as permitting a party who failed to produce evidence at the trial to produce such evidence on appeal when he can show that there was a substantial cause for its production earlier .

? What constitutes substantial cause?

In determining what constitutes substantial cause within the meaning of this rule, it is argued that we have to refer to Art 6 of the Code, which provides for the production of evidence after the trial is concluded if it could not be introduced at trial for substantial cause. (Please cross-refer our discussion in section (8.1.2.)

In order for evidence to be introduced under that article, the evidence must not have been within the knowledge of the party at the time of the trial, nor available after the exercise of due diligence, and it must be such that had it been known at the time of the trial, it would have materially affected the substance of the decree or order of which review is sought These conditions are basic requirements for the introduction of new evidence on appeal. It has also been held that the evidence must be such as is presumably to be believed, that is it appears to be the kind of evidence that the appellate court would believe to be true and genuine. Such a qualification is sound, since the court should not waste time hearing the evidence if the nature of the evidence is such that the court would not likely to believe it any way.

To summarize, there will be substantial cause justifying the production of additional evidence only where the following communicative conditions are satisfied.

1. The evidence sought to be introduced was not known at the time of the trial or could not have been discovered at that time by the exercise of reasonable diligence.
2. The evidence is such that, if given, it would probably have a significant effect on the decision, and
3. The evidence is presumably to be believed. If any condition is not satisfied, there is not substantial cause for allowing party seeking to introduce the evidence Dear student, in view of these conditions, it will be only in exceptional circumstances that new evidence may be introduced on the ground of substantial cause, and this is as it should be,

? What is then its message?

A party must present all his evidence at the trial. He cannot withhold some of his evidence for production on appeal if he is unsuccessful in the subordinate court. By the same token, if a party fails to cross-examine witness at trial, he cannot obtain permission to examine him before the appellate court if it turns out that it was the testimony of that witness which was curtail to the decision of the case. Or, where a party did not introduce a document at trial because he expected his opponent to testify and wished to confront with the document, and the opponent did not testify, the party cannot introduce the document on appeal. In these cases, the evidence was clearly available at the time of trial and should have been presented there. In addition to this, the failure to produce on the ground of ignorance of law cannot serve as a ground. As long as the evidence is available to the party at the time of the trial, it must have been produced then.

? What would happen if the newly discovered evidence is irrelevant?

The evidence must be such that it would probably have a significant effect on the decision. In other words it has to be material that the appellate court would not be able to pronounce judgment on the matter before it without taking into consideration the additional evidence sought to be admitted. It should not be merely to fill the gaps in evidence. Note here that the introduction of new correct evidence must be found to influence the out come of the case significantly. If, for instance, the correct evidence would simply corroborate what was proven by the circumstantial evidence, it would be cumulative and so it would not be allowed to be introduced as new evidence on appeal. This is the second condition.

The other requirement is that the evidence must be such as to be believed by the court as genuine.

? What document is credible?

Under this rule, a public document, unquestionably genuine may be admitted in appellate stage as additional evidence in appeal. The mere fact that a certain evidence is important is not a sufficient ground to allow additional evidence to be produced. Additional evidence cannot be allowed to be produced under this rule either for shaking the credit of a witness or to allow a litigant to patch up his weakness

? Can the respondent rebut the additional evidence produced?

One of the most fundamental rights of the parties in litigation is to the right of each party to state his version of any issue raised when additional evidence is being produced, opportunity should be given to the opposite party to rebut the evidence by producing credible documents only. The condition that the evidence must be such as to be believed by the appellate court must always be satisfied. Otherwise, if not credible, the production of new evidence should be refused by the appellate court. This discourages the act of

perjury or bribery. Finally, wherever additional evidence is allowed to be produced, the appellate court must record the reason for its admission.

? Why does law require recording the reason for its admission mandatory?

Art. 345 (2) mandatorily requires that the court shall record the reasons for admitting additional evidence. This may be related to the second appeal, that we will discuss in the coming section. If a second appeal is taken, the appellate court may consider the reason for admission of additional evidence. If the first appellate court reverses the decree of the trial court, for example, the High Court in its appellate jurisdiction, must record the reasons of additional evidence. The case may be taken by a second appeal to the Supreme Court, and hence the reasons for admitting additional evidence may be considered by the Supreme Court. If the improper admission of additional evidence by the High court caused it reverse the decree of the Woreda court, then the Supreme Court will set-aside the decision of the High court.

My dear distance student, can you picture the reason why the appellate court is required to record the reasons for admitting additional evidence? If you have any confusion, please discuss it with your friends (those fond of experience by working for longer period in our respected Courts.)

When such evidence is taken, the appellate court may take it itself, or direct the trial court or any other court to take such evidence and send it to the appellate court. In doing so, it must specify the points as to which the evidence is to be confined and record in its proceedings the points so specified. This is the clear message of Art.346 and (b) the Code.

Art. 346.- Mode of taking additional evidence
Where additional evidence is allowed to be produced, the Appellate Court:
(a) may either take such evidence, or direct the court from whose decree or order the appeal is preferred, or any other subordinate court, to take such evidence and to send it when taken to the Appellate Court ; and
(b) shall specify the points to which the evidence is to be confined and record on its proceedings the points so specified.

8.2.4.4. Review of Findings of Facts.

This is the other power of the appellate court. As we already discussed it in the previous section, unless new evidence is introduced exceptionally under Art. 345 the appellate court may not hear evidence on any issue in the appeal proceeding. Evidence, in principle, must be heard and issues of fact must be determined in the trial court. This implies that the appellate court may be bound by the findings of the trial court on issues of fact. A related question here concerns the extent to which the appellate court is bound in its decision by the findings of fact made by the court.

? Should the appellate court accept the findings of fact made by the subordinate court on that issue?

In common law countries such as the United States, many cases are tried before a jury. If a case is tried before a jury (a group of people in lower courts who have been chosen to listen to the facts in a case and to decide thereon), the findings of the jury on issues of fact is final and conclusive. The appellate court has no power to change it, or to put it in other words, the appellate court is bound by the findings of the jury at the trial: it cannot review any of the findings of fact by the jury but if the case is tried without the jury, the appellate courts are not bound by findings of fact made by the subordinate court.

? What about in Ethiopia?

In Ethiopia, where there is no jury, both the question of law and fact will be determined by the judge in the court and hence, the appellate court is not bound to accept all findings of fact made by the subordinate court. But there are no express provisions of the code dealing with

the effect that is to be given to such findings. This assertion, however, seems fallacious. If an appeal is not a retrial of the case, it follows that to some extent the appellate must accept the subordinate courts findings of fact. I can prove this by the following syllogism!!

- Appeal is not a retrial of the case.
- If appeal is not a retrial of the case, evidence cannot be produced to prove a fact.
- Therefore, it follows that the appellate court must accept the subordinate courts finding of fact, and it must base its decision on the record and any documentary evidence.

My dear distance student, I am sure I have convinced you! But before passing judgment on my syllogistic argument, please closely look at the discussion below, which is directly reproduced from Sedlers Material on Ethiopian civil procedure, on pages 245 and 246.

As opposed to oral testimony, where the lower court is in a better position, the appellate court will be in a better position to draw inferences from evidence which consists of documents. If the evidence primarily consists of documents and where the evidence is essentially undisputed, the appellate court should not be bound by the findings of the lower court. This is an aspect of competence of judges to make logical inferences.

To wind up our discussion on the matter at hand, where the evidence heard by the trial court is oral testimony, findings of fact made by it should be accepted by the appellate court. But when the evidence is undisputed written document, and if the findings of the trial court are based on such evidence, the position of the appellate court is equally as good as the trial courts and may make its own, even better inference and make its own findings, which may reverse the findings of the lower court.

So far, so good! Procedures applicable have successfully been addressed following their sequence. What is left is culminating the whole discussion on appeal by addressing the issue of judgments on appeal. It is presented in the flowing manner. Enjoy it!

8.2.5. Judgment on Appeal

My dear distance student, this is the culminating stage of a civil litigation. In this section, we will discuss what powers the appellate court has by reviewing the decision of the rendition

court. Among other things, we will consider how the appellate court reverses or confirms the decision reviewed and also how it corrects some points without the need to tamper with the decision of the lower court. If the decision of the lower court is found to contain error in appreciating issues of fact and erroneous application of law, then it will be reversed or varied. On the other hand, if no error which affects the merit of the case is found, the decision will be confirmed. So, these points will constitute the major part of the presentation in this section, first by looking what powers the appellate court have.

8.2.5.1. Powers of the Appellate court

Pursuant to Art 347 of the code, after hearing the parties or their pleaders and has examined records of the proceedings as is considered necessary, the appellate court will pronounce judgment. Here the appellate court will exert its power over the decision of the lower court.

? What are the powers of the appellate court?

The answer to this question is inferred from Arts 341 -343, 346, and 348 of the code.

Art. 341.- Remand of case by Appellate Court

- (1) Where the court from whose decree or order an appeal is preferred has disposed of the suit upon a preliminary point and the decree or order is reversed in appeal, the Appellate Court may if it thinks fit, by order remand the case, and may further direct what issue or issues shall be tried in the case so remanded.
- (2) Where a case is remanded under sub-art. (1), the Appellate Court shall send a copy of its judgment and order to the court from whose decree or order the appeal is preferred, with directions to re-admit the suit under its original number in the register of civil suits, and proceed to determine the suit.
- (3) The evidence, if any, recorded during the original trial shall, subject to all just exceptions, be evidence during the trial after remand.

Art. 343.- Appellate Court may frame issues and refer them for trial

- (1) Where the court from whose decree or order the appeal is preferred has omitted to frame or try any issue, or to determine any question of fact, which appears to the Appellate Court essential to the right decision of the suit upon the merits, the Appellate Court may, if necessary, frame issues and refer the same for trial to the court from whose decree or order the appeal is preferred, and in such case shall direct such court to take the additional evidence required.
- (2) The court to which issues are referred shall proceed to try such issues, and shall

return the evidence to the Appellate Court together with its findings thereon and the reasons therefor, which evidence and findings shall form part of the record in the suit.

Art. 348.- Power of court of appeal
(1) The judgment may confirm, vary or reverse the decree or order from which the appeal is preferred.
(2) Where the parties to the appeal agree as to the form which the decree in appeal shall take, or as to the order to be made in appeal, the Appellate Court may pass a decree or make an order accordingly.

From close reading of these Articles, we understand that the appellate court is given broad powers with respect to its deposition of the case. Where the evidence on the record is sufficient to enable the appellate court to pronounce judgment, after resettling the issues, it may, if found necessary, finally determine the case even notwithstanding that its decision proceeds on a different basis than the decision of the subordinate court. Arts. 182 and 342 of the code provide for this rule.

Art. 182.- Contents of judgment
(1) The judgment shall contain the points for determination, the decision thereon and the reasons for such decision: Provided that a judgment given in first instance shall also contain a concise statement of the case and a judgment of an Appellate Court shall, where the decree appealed from is reversed or varied, specify the relief to which the appellant is entitled.
(2) A court of first instance may not give judgment on any matter not specifically raised by the parties, but an Appellate Court may pass any decree or make any order which ought to have been passed or made, and may pass or make such further or other decree or order as the case may require.
(3) Where several issues have been framed, the court shall state its decision on each separate issue unless the decision on any one or more issues is sufficient for the decision of the case.

Art. 342.- Judgment on record
Where the evidence upon the record is sufficient to enable the Appellate Court to pronounce judgment, the Appellate Court may, after resettling the issues, if necessary, finally determine the suit. Notwithstanding that the judgment of the court from whose decree in order the appeal is preferred has proceeded wholly upon some ground other than that on which the Appellate Court proceeds.

This situation happens where the interest of justice so demands, especially where the proper interpretation of law is questioned this can be elaborated by the following example.

Example: In a case where there are issues as to the existence of a contract and as to force majeure, the subordinate court finds that there was a contract, but the performance was not prevented by force majeure. The plaintiff appeals from the decree contending the issue on force majeure. The appellate court upholds his

contention However in reviewing the record, it concludes that the evidence does not establish the existence of a contract.

? What will be the decision of the court?

My dear student, before resorting to the answer, please write down your finding in the space provided above.

If you say that the court will confirm the decision of the lower court, which is again in favor of the defendant, you are correct. The appellate court will confirm the judgment for the defendant based on the ground that there was no valid contract, and not on the question of force majeure. Have you noticed here that the defendant, who did not take a cross appeal, could not have challenged the decision on the existence of the contract. But if the appellate court concludes that there was no contract, it can conform on that basis notwithstanding that the basis of the decision of the subordinate court was that performance was prevented by force majeure.

Dear student, have you now pictured how the appellate courts decision proceeds on different basis than that of the decision of the subordinate court?

The other provision, which provides for this possibility is Art 182(2). [Under](#) this provision, the phrase «which ought to have been passed » refers to any decree or order which in law to have been made. This is not the case on first instance court, which cannot decide on any issue which is not raised by the parties. Therefore, the appellate court may give any judgment or pass any decree that should have been given by the lower court and may give any order that the case require. The point here is that the appellate court would make such orders or decrees even when either party does not request them. In this connection, reference should be made to the courts power under Art.40 (5) of the code to join as a respondent any person as a party to the original proceedings, but who was not a party to the appeal.

The court may join him as a respondent and issue a decree or order affecting him. Lets elaborate this point by the following example.

Example: As per Art.2160 of the Civil Code, where several persons have contributed to the same damage, the court is to fix what proportion of the debt is finally to be borne by each of the persons liable. Lets assume that A sues B and C, claiming that each is liable for part of the damage he suffered. Judgment in the trial court is entered against both defendants, but only B appeals. The appellate court finds that B is liable for all the damage. It can issue an order to the effect that B is liable for all the damage and reverse that part if the decree of the lower court holding C liable.

? What problem do you see if the court did not decide that way?

This power of the appellate court should be used to prevent the issuance of incontinent decrees. In the above example, in light of its decision as to Bs liability, the decree holding C liable for part of the damage is inconsistent and cannot stand. Hence the appellate court should exceed, and its decision should proceed on a different basis. The only limitation is that it cannot take away from a party court, which he was granted by the subordinate court and which is not challenged on appeal nor inconsistent with the final decree to be rendered. It is only where third parties are involved, or where a decision on an issue not raised on appeal is necessary for their final disposition of the case that the court should reverse of finding that was not challenged.

? What does it mean? Answer this question in the space provided below.

Suppose that Ato Alemu sues Ato Moltot to recover 5000 Birr, and the Woreda court renders a decree in his favor for 1000 Birr, from which he appeals. Ato Moltot does not cross-appeal. The only issue in this appeal is whether Ato Alemu is entitled to recover the 5000 Birr.

? What would happen if the appellate court finds that, let alone for 5000, Ato Alemu is not entitled for the 1000 Birr?

As I said earlier, the only issue is whether Ato Alemu is entitled to recover 5000 Birr. Whether or not he is entitled to recover the 1000 Birr is not an issue and will not affect the decision on that issue. Therefore, since no objection was made to the Woreda courts finding on that point i.e. on the recovery of the 1000 Birr, the appellate court should not be able to set that portion of the decree aside.

This seem to be a sound approach, since when a party fails to appeal from a portion of the decree, he may be deemed to have admitted the correctness of the decision It is, therefore, only where multi-parties are involved or where decision on an issue not raised n appeal is necessary for the final disposition of the case that the court should reverse a finding that was not challenged.

? Can the appellate court reverse or vary decision in favor of a person who is not party to the appeal?

The appellate court may do so. It happens where there is more than one plaintiff or defendant and the decree appealed from proceeds on a ground common to plaintiffs or defendants. One of them may appeal from the whole decree, and if the appellate court finds that the decree should be reversed or varied, it may do so in favor of all plaintiffs or defendants, even though some were not parties to the appeal. This situation is governed under Art.331 of the code.

Art. 331.- Several plaintiffs or defendants
Where there are more plaintiffs or more defendants than one in a suit, and the decree appealed from proceeds on any ground common to all the plaintiffs or to all the defendants, any one of the plaintiffs or of the defendants may appeal from the whole decree, and thereupon the Appellate Court may reverse or vary the decree in favour of all the plaintiffs or defendants, as the case may be.

Dear student, I hope you will relate this point with our discussion in the First Module on joinder of parties and indispensable parties. Here the only test is whether the decree appealed from proceeded on a ground common to all.

Example: Lets assume that in a suit A sues B, C and D to recover land, demanding that he is the holder and that he is dispossessed by all the three. B, C and D claim to hold separate parcels of land, granted to them by different persons. This example is assumed before 1989 E.C.(where the re-distribution of land in Region 3 took place). The court finds that A is the holder, and is wrongfully dispossessed. B appealed, and the appellate court found that A was not the holder. Since the Social courts decree proceeded on the ground that A was the holder, it proceeded on a common ground to all defendants, and hence the decree will be reversed as to C and D notwithstanding that they did not appeal and that each set up a separate claim of ownership.

? Do you think that the reversal of the decree by the appellate court have effect on the non-appealing parties?

The claim of the plaintiff in the trial court, and the decision thereon is indivisible; the claim of the plaintiff to recover the possession of land from B, C and D, and the decision attached cannot be applicable only on B or C or D. If one benefits, the others will. The non — appealing parties C and D would belief from the reversal of the decree. That is why we said the decree appealed from must be preceded on a ground that is common to all parties. But if the subordinate court and not proceed on the ground common to all parties, it is not proper to reverse the decree in favor of non- appearing parties.

My Dear student so far, we have seen the broad powers of the appellate court which should always be kept in mind. The decision of the appellate court should dispose the case in all its aspects, and the final decree should conclude the litigation once and for all. This is true even where multiple parties are involved as we saw it herein above. The code gives the appellate court the power to settle the rights and liabilities of all parties to the controversy. In the coming sub sections, we will see some specific important powers of the appellate court. I am sure that you are testing the fun of studying civil procedure.

8.2.5.2. Reversal of Judgments

Dear Student, to bring your fresh memory, after examining the memorandum of appeal and hearing the appellant, the appellate court will determine to proceed to review the decision of the lower court or to dismiss the appeal without the need to call upon the respondent. Nowadays, this consideration and determination takes very short period of time if not exaggerated, it will take a maximum of one week. Where the appellate court has determined to proceed with the appeal, it will cause a notice to be served on the respondent. The court will then examine both parties as to what they say on the findings and judgment of the lower court. After all these and referring to the records of the proceedings in the lower court the court will pronounce judgment. This is clearly stipulated under Art.347 of the code.

Art.347. - Giving of judgment

The Appellate Court, after hearing the parties or their pleaders and referring to any part of the proceedings, whether on appeal or in the court from whose decree or order the appeal is preferred, to which reference may be considered necessary, shall pronounce judgment

As we have already discussed, the appellate court has the power to frame issues and refer them for trial, to take additional evidence or to require such evidence to be taken, to remand the case, or to decide the case finally. In this section, we will only discuss how the appellate court finally decides the case, and give judgment.

? What will be the final decision of the appellate court?

As per Art.348 of the code, the judgment of the appellate court may confirm, vary or alter the decision or order of the lower court, from which appeal is preferred (taken). If the appellate court agrees with the judgment appealed from, and finds that there is no reason to reverse it, it will confirm the decision of the lower court. Otherwise, if the appellate court finds the decision of the lower court to be problematic, it will alter it and render its own judgment.

? What kind of problematic decisions of the lower court does the appellate court reverse?

In considering whether a decree should be refereed or varied as a result of error committed by the trial court, it is important to determine whether the error amounts to what is called procedural irregularity. If the error is merely procedural irregularity, the code directs the appellate court not only to correct it, but also provides that the decree may not be reversed on that ground. If the irregularity was such as to prevent a valid judgment from being given, the proceedings in which such judgment was given shall be quashed and the appellate court shall order the retrial of the case. This is what is provided Under Art.211(2) of the code. From this it follows that the decree should only be reversed or varied if the subordinate court committed « substantial error,» which affected its decision. Lets substantiate this by the following example.

Example: The statement of claim, which was signed by the agent of the plaintiff, together with the necessary documents were filed and submitted to the court. At the first hearing, the defendant objected that the agent was not legally authorized since he did not annex the document showing his power as an agent. Despite the objections of the defendant, the court proceeded hearing the case. On appeal, the appellate court found that there was procedural irregularity (Failure to comply with Art 58 and 63 of the Code is also procedural irregularity). In this case, obviously, the error does not necessitate a reversal of the decree, and the appellate court may correct the irregularity by requiring the “agent” to produce the document showing his authorization. The same would be true if the statement of claim was not signed

or there was a misjoinder. The appellate court may, without the need to reverse the decision of the lower court, require the plaintiff to sign over the statement of claim, or order the name of the improperly joined party to be struck out. The judgment of the lower court would not be reversed.

? So, what kind of errors will result in reversal?

In the examples above, it did not affect the substantial rights of the defendant and does not require reversal even though an error was committed. Unless specific prejudice can be shown to have resulted thereby, the decree should not be reversed. Errors usually will occur, and every error cannot justify a reversal. It is only where the error substantially prejudiced the unsuccessful party that the judgment will be reversed or varied. One of the clearest example is that may prejudicially affect the legal right of the unsuccessful party is that of the erroneous application of the law by the subordinate court. In such situations, the appellate will apply the law as it believes to be the applicable law to the given case and this may result in the reversal or variation of the decree or order of the lower court.

? What other ground can you think of?

The other clear example of this kind is where the subordinate court makes an incorrect finding of fact in that it has drawn an improper inference from the facts. In other words, if the appellate court finds that the lower courts appreciation of evidence is not correct, then it will reverse the judgment or order of the lower court. The appellate court, after stating that the lower court has incorrectly applied the law, or that the lower court had incorrectly inferred the facts and had arrived at an incorrect finding, it will declare that the judgment or order of the lower court is reversed or varied. Then, it will substitute its own judgments by applying the correct law or its finding of fact.

? Would procedural errors result in reversal?

Where procedural errors have been committed, the decree is not to be reversed unless the errors were such as to prevent a valid judgment from being given according to the wordings of Art 211(2) of the Code. My dear student, to understand this point you are advised to refer back the discussion as to review of judgments in case of procedural irregularity by the rendition court (8.1.1. of this module!)

Where the procedural irregularity « substantially affected the result of the case,» the proceedings must be set aside. However, once the case has been appealed, the judgment may be reversed only if the irregularity was such as to prevent a valid judgment from being given. In such a case, as discussed above, the appellate court is directed to quash the proceeding and order a retrial of the case. Examples of this type include questions such as material jurisdiction, or the absence of indispensable party, etc. It would also include errors that prevented the appellate from receiving a fair trial in the subordinate court.

? What kind of errors can prevent the appellant from receiving a fair trial in the subordinate court?

The clearest example is that of an aspect of local jurisdiction. If the defendant was compelled by error to try his case in a very inconvenient forum, as a result of which he was unable to bring his witnesses or to attend the trial in person, the decision might require a reversal. The other case is the following. If the court erroneously denied a request for adjournment, following which a party was not able to present his case, or if it did not let a party introduce all his material evidence on an issue, the decision of the lower court might require a reversal.

Note: A decree should be reversed because of procedural errors only where those errors affected the power of the lower court to hear the case or denied a party a fair trial. Such errors «prevent a valid Judgment from being given » and hence the appellate court must quash the judgment, and order a retrial. Other procedural errors, however, should not be construed to have the effect of preventing a valid judgment from being given, and even though committed, should not result in reversal. They may be corrected without affecting the merit of the case. These latter errors are believed not prejudicially affect the legal rights of the unsuccessful party.

So far, so good. Next, we will discuss remand of the case by the appellate court.

8.2.5.3. Remand of Cases

? What does remand mean?

This is the other power of the appellate court. In addition to hearing and deciding cases finally, the appellate court can also remand cases to the lower court. Remand means to send a case from a higher court to a lower court for a new hearing consistent with the higher courts decision.

? Why should the higher court remand cases?

My dear student, the discussion in this section directly or indirectly is related to our discussion in the first Module as to preliminary objections. So, it will be of great importance if you refer Module one in this regard. Here, I will give you a brief.

It may be the case that the subordinate court disposed of the case on a preliminary point, and its decision on that point is reversed by the appellate court. Since the decision was on a preliminary point, the substantive issues in the case have not yet been determined. Suppose, for example, that the subordinate court dismissed the suit on the ground that it was barred by limitation. The appellate court concludes that the decision on the question of limitation was erroneous, and reverses it. The merits of the case remained to be tried.

? What points form preliminary issues?

Literally, preliminary issues are construed to be preliminary objections not going to the merits of the case. But broadly interpreted, it includes any issues which rendered a decision on some remaining issue unnecessary. In this case, the appellate court may, if it thinks fit remand the case and direct which issues shall be tried on remand. Where the case is so remanded pursuant to Art.341 of the code, the appellate court sends a copy of its judgment and order to the subordinate court with directions to readmit the suit under its original number and proceeds to hear the case. Or, the appellate court itself may try these issues, in which case, the parties will present their evidence to the appellate court.

Art. 341.- Remand of case by Appellate Court
(1) Where the court from whose decree or order an appeal is preferred has disposed of the suit upon a preliminary point and the decree or order is reversed in appeal, the Appellate Court may if it thinks fit. by order remand the case, and may further direct what issue or issues shall be tried in the case so remanded.
(2) Where a case is remanded under sub-art. (1), the Appellate Court shall send a copy of its judgment and order to the court from whose decree or order the appeal is preferred, with directions to re-admit the suit under its original number in the register of civil suits, and proceed to determine the suit.
(3)The evidence, if any, recorded during the original trial shall, subject to all just exceptions, be evidence during the trial after remand.

There is one important point here that should be taken in to consideration. Before remanding a case, the appellate court must have to conclude that the decision on the preliminary point is reversed. It must also conclude that the preliminary point was erroneous. Note that the decision of the appellate court on the preliminary point cannot be reopened if the case is

appealed to it again, following the trial after remand. If, for instance, the appellate court concludes that the decision dismissing the case on grounds of limitation was erroneous and reverses and remands it, the defendant appealing from a judgment for the plaintiff on the remand, cannot contend that the original decision of the subordinate court dismissing the suit on grounds of limitation was correct. The question has already been decided on appeal, and cannot be litigated again. If the defendant wished to question that decision, he should have appealed the reversal and remand on that ground to a higher court at once. i.e. to the next higher court within the prescribed time.

To elaborate this point, I will give you some more illustrations, and wind up the discussion by raising one question that is to be answered by you!

Example: Assume that in a suit on a claim for defamation, the defendant denied that he is not the one who defamed the plaintiff, and alternatively if he is found to be the one who made the allegedly defamatory statement against the plaintiff, he contended that they were not defamatory. The subordinate court find that it was not the defendant who made the statement. The plaintiff appealed, and the appellate court finds that the respondent has in fact made the statement. Now, what remained as an issue is the defamatory nature of the statements made by the respondent. The appellate court framed the issue, whether the statements made by the respondent are defamatory or not. Then it remanded the issue framed to the subordinate court. The appellate court already decides the issue that the defendant made such defamatory statements. The defendant now wishes to raise such preliminary point, decided by the appellate court, in the subordinate court.

? Can he do so?

8.2.5.4. Pronouncing Judgment

My dear student, this is the culmination point of the proceedings in appeal. In chapter seven, we discussed the pronouncement of judgment in the court of rendition the provisions regarding the pronouncing of judgment tare equally applicable to the judgment of the court of appeal Hence, you will be better off if you make close reference to the discussions therein.

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In this section we will only focus on some special requirements for the giving of judgment in appeal.

? How does the appellate court pronounce judgment?

Basically, the judgment of the appellate court must be pronounced in court either at once, or what is more likely, at a future day to be fixed by the court. This directly takes you to our discussion in Chapter Seven as to giving of judgments under Art.180 and the following articles of the Code. (Refer the Discussion in Chapter Seven)

? What should be the form of judgment?

In some countries, courts which entertain small claim cases like that of social courts in the Amhara Region, pronounce judgment orally. But in our country, let alone appellate courts, in practices, even Social Courts pronounce judgment by writing every component of their decision. The judgment, therefore, must be in writing, and signed by all members, and pronounced by the presiding judge. This is what is provided under Art 181(1) the code.

Art.181. Form and pronouncement of Judgment

- (1) The judgment shall be reduced to writing, signed by the member or members of the court and pronounced by the judge or presiding judge
- (2) Where a case has been heard by more than one judge, the decision of the majority shall be the judgment of the court: Provided that any judge dissenting from the decision of the majority shall state in writing the decision which he thinks should be made together with the reasons therefor.
- (3) A judgment, when signed, may be pronounced by a judge or judges other than those who signed it.

Since an appellate court will always be composed of a collegiate bench, it is important to note again that the decision is by majority vote, and that a judge dissenting must state in writing the decision, which he thinks, should be made together with the reason therefor. This is important particularly when the dissent involves a disagreement over the law to be applied or the interpretation of a provision of law.

The reasons given by the dissenting judge may be very significant if there is a second appeal, and these reasons help to focus sharply the precise legal question involved.

? What is the practice in the majority of Ethiopian courts?

Experience in other countries has indicated that, the view expressed by the dissenting judges becomes the majority view in the future. And perhaps, it seems this democratic behavior which makes the legal science dynamic. Any ways, the dissenting judge should prepare his opinion as carefully as the judge writing the majority opinion.

As to the contents of the judgment, Art 182 of the code has the following to say.

Art.182.- Contents of judgment

(1) The judgment shall contain the points for determination, the decision thereon and the reasons for such decision:

Provided that a judgment given in first instance shall also contain a concise statement of the case and a judgment of an Appellate Court shall, where the decree appealed from is reversed or varied, specify the relief to which the appellant is entitled.

(2) A court of first instance may not give judgment on any matter not specifically raised by the parties, but an Appellate Court may pass any decree or make any order which ought to have been passed or made, and may pass or make such further or other decree or order as the case may require.

(3) Where several issues have been framed, the court shall state its decision on each

separate issue unless the decision on any one or more issues is sufficient for the decision of the case

In short, the judgment must contain the points for determining the grounds of appeal as set in the memorandum of appeal and the further questions and the reasons for such decision. The appellate court should give its own reasons for deciding it, even where it is confirming the judgment of the subordinate court.

Where the decree is varied or reversed, the judgment of the appellate court must specify the relief to which the appellant is entitled. And where there are several issues, the court must state its decision on each issue unless the decision on any one issue is sufficient for the decision of the case. For instance, if the contract is found to be void, there is no need to decide on the issue of non-performance. It may be that one of the grounds of appeal justifies a reversal and judgment for the appellant, and if this is so, it will not be necessary to consider the other grounds.

As with the judgment of the subordinate court, the operative part of the judgment must be reduced to a decree. The decree may specify by whom and how the costs incurred in the suit are to be paid, and this would include both the costs of the original suit and on the appeal.

With respect to execution, the appellate court may either give the necessary discretion for execution itself or delegate the execution to the subordinate court. This will be the core of the discussion in the next chapter.

Since it is one of the rights of the parties, certified copies of the judgment or decree or both are to be furnished to the parties on application. This copy has to be sent to the court which passed the decree appealed from. They must be filed with entry of the judgment of the appellate court will be made in the register of civil suits.

So far, so good: we said that the opinion of the judges, including the dissenting one, should be stated in the judgment. This, as we stated, is especially important if there is a second appeal. In the next few lines, we will see what a second appeal is.

8.2.6. The Second Appeal

? When is a second appeal possible?

As far as the second appeal is concerned there is no direct reference in the Civil Procedure Code and Proc. 25/96. They do not provide specific provisions like other areas of procedure. But a close examination of Art.321(2) of the code reveals that a second appeal is possible if on appeal the High Court varies the judgment appealed from the Woreda Court .

Art.321.Courts Having Appellate jurisdiction

- (2) where on appeal an Awraja Guezat Court or the High Court varies the judgment appealed from, a second appeal shall lie
- a) from an Awraja court to the High Court
 - b) from the High court to the Supreme Imperial Court .

Since, presently, the Awraja Guezat and the Imperial Supreme courts do not have constitutional recognition, the Awraja court, in the Amhara region for instance, should be understood as the Woreda court, and the Imperial Supreme Court as the Regions Supreme Court. And hence, if the High court in Bahir Dar , on appeal varies the decision from the Woreda court, a second appeal is possible to the Supreme court. It gives the chance to appeal, not to the party who has already appealed, but to the other party who was respondent in the High court. To explain it with an example,

Example: Lets assume that Ato Alemu the plaintiff appealed from the decision of Bahir Dar Woreda court to the Western Gojjam High court. On appeal, the High Court reversed the decision of the Woreda court, and decides for Ato Alemu. The respondent, Ato Melkamu, who won the case in the Woreda court is highly aggrieved by the decision of the High Court. Now the respondent, the then defendant in the Woreda court, appealed to the Supreme Court. This is what we call the **second appeal**. Strictly speaking, it is just a first appeal because it gives the chance to appeal to the party who won in the rendition court, who did not prefer appeal; each party will have one right to appeal.

On the second appeal, the party appealing is considered as an appellant, and the party in whose favor the previous judgment was varied or reversed is considered the respondent. Hence a second appeal is to be a review of the decision of the first appellate court varying the

judgment appealed from and not a review of the decision of the trial court. The issue here is whether the appellate court committed error in reversing the judgment from which the appeal was taken.

The second appeal should be limited to that aspect of the decision of the appellate court reversing the judgment of the first court.

Under proclamation 25/96, it is provided that a party has one right of appeal. If a case is initiated in the Federal First Instance Court, the unsuccessful party may appeal to the Higher Court. This is the first appeal. If the Federal High Court reverses the decision of the Federal First Instance Court, the party when prevails. The Federal First Instance court, but loses in the High court may appeal to the Federal Supreme Court. This is what we call the second appeal.

What the law clearly stipulates is **the possibility of a second appeal in case, on appeal, if the decision of the Woreda court is reversed by the High court, or if the decision of the High Court in its first instance jurisdiction is reversed by the Supreme Court.** But lets assume that the decision of the Woreda court is confirmed by the High court. In this case, the party who appealed from the decision of the Woreda court is now again aggrieved by the decision of the High court on appeal. He is highly dissatisfied with the decision of the High court.

? Can he appeal to the Supreme Court for the second time?

Currently, we have only three levels of courts; the Woreda(First Instance) Court, the High Court, and the Supreme Court. If the case, originated in the Woreda court, the first appeal will be to the High court, and the second appeal will be to the Supreme Court. Unless otherwise we think that appeal is possible from one division of the Supreme Court to the other, there are ONLY two possibilities of appeal; giving each party one chance to appeal. In this regard, the parties will be put on equal footing. So, concerning the question posed above there are two stands. Some argue that each party shall be given the chance to appeal so long

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as there are possibilities, and hence an appellant from the decision of the Woreda court, should have the right to appeal to the Supreme Court if the High Court confirms the decision of the Woreda court. Accordingly, a party can appeal two times. They go on to say that individuals right to present his grievance should not be restricted.

Others argue that each party should be given only one right to appeal. They base their argument on the very structure of courts, and on the very purpose of procedure. Since we have, strictly speaking, only two possibilities of lodging appeal — from the decision of the Woreda Court to their High Court, and from the decision of the High court to the Supreme Court, each party should be given only one right to appeal, though appeal is possible from one division of the Supreme Court to the other. They strengthen their argument by adherence to purpose of procedure. Cases initiated in one court should be decided in as economically & expeditiously as possible, and should come to an end some where for the benefit of both the parties and the court. So, they say, since the law is clear saying that a second appeal is possible only if the decision appealed from is reversed, there is only one right to appeal.

? My dear distance students, which line of argument do you support? Why not the other? Do you have a third alternative?

Some specific legislations have a clear and fast rule on this matter. The Labor Proclamation, for instance, provides that all disputes arising based on the Labor Proclamation will finally be decided by the High court. In this regard, the High Court is the final appellate court, and hence each party will have only one right to appeal. Whether it confirms or reverses the decision of the Woreda court on appeal, the decision of the High court will be final and conclusive on labor matters.

My dear distance student, I hope that you distinguish the arguments, and have decided to have a stand on the issues. If that is the case, then so be it.

The last, but not least, point is whether the second appellate court would have every power of the first appellate court that we discuss previously. Here it is important to remember that the

second appeal is not an appeal from the judgment rendered at the trial. It is just review of the decision to the first appellate court. For instance, in case of remand under Art.341 or the framing of issues for trial under Art 343, the remand or reference should be made to the court which heard the first appeal, and not to the trial court since both articles speak of « The court from whose decree the appeal is preferred. » Therefore, though there is no clear provision, it does not seem possible that the second appellate court exercises all the powers of the first appellate court.

As we discussed before, the judgment of the subordinate court might have been executed pending the appeal since the taking of an appeal by itself does not prevent execution. But what would happen if the judgment of the subordinate court, after it is executed, is reversed by the appellate court in appeal? This is one of the dangers that we were afraid of. My dear distance student, the coming section is meant to answer such problems.

8.2.7. Restitution

? How do you define restitution?

Literally, the term restitution refers to the act of giving something that was lost or stolen back to its proper owner. But in law, the term restitution is defined in the following fashion.

Restitution: - a common law remedy by which the court can, in its discretion, restore the injured party to a previous position, return something to the right full owner, or return the status quo. In contracts, restitution occurs when a party recovers monetary payments already made or when a party is ordered to pay the value of performance already rendered. In torts, restitution is used to prevent unjust enrichment at the expense of others. In criminal law, it may be part of the sentence, when the offender is required to pay to the victim in some way.

To put it differently, the judgment in favor of one party might have been executed and on appeal, that judgment have been reversed. In such a case, the successful appellant is entitled

to restitution, and he must make his application for restitution in the court of first instance. Art. 349 of the Code provides the rule on restitution.

Art.349. - Application for restitution

- (1) Where and is so far as a decree or order is varied or reversed, the court of first instance shall, on the application of any party entitled to any benefit by way of restitution or otherwise, cause such restitution to be made as well, so far as may be, place the parties in the position which they would have occupied but for such decree or order or such part thereof as has been varied or reversed.
- (2) For the purpose of sub-art. (1) , the court may make any orders including orders for the refund of costs and for the payment of interest, damages, compensation and mesne profits which are properly consequential on such variation or reversal.
- (3) No suit shall be instituted for the purpose of obtaining any restitution or other relief which could be obtained by application under sub-art (1).

? What is the basis for restitution?

In addressing issues and requests by the parties, the act of the court should do no harm to litigants It is the first and highest duty of all courts to take care that the act of the court does no injury to a party to a suit. The real basis of the power of the court to order restitution is that a person who has obtained aimed benefit under an order of court, which is subsequently found to be wrong, should not be allowed to retain the benefit, which he had obtained under the wrong order. And such order is appellable.

? Which court is competent to order restitution?

It is the court of first instance. Under Art.349 (1) that court must cause such restitution to be made to place the parties in the same position as they would have occupied. In order to effect such restitution, the court may make any order, including one for the refund of costs and for

payment of interest, damages, compensation and manse profit, which that party is entitled as a result of variation or reversal of the decree. However, if the appellate court has required the respondent to post security for restitution, as per Art.336, it would seem that the application for restitution should be made to the appellate court. In all other cases, the application to restitution should be made to the trial court.

? Against whom shall the restitution be made?

In principle, it is against the party to whom a judgment is executed. But it may also be made against other persons who have acquired ownership or possession of the property. For instance, if a executed a decree for the possession of immovable property against B and then leased the property to C, upon reversal of the decree against A, B may only for an order of removal against the tenant (case) C. Restitution can also be ordered against a trustee or legal representatives.

? What would happen if the decree holder has sold the property that he recovers under exertion?

In so far as possible, the court tries to restore the parties to the exact previous position they would have been in had it not been for the execution of the decree. If the property cannot be returned, say, because it was sold in execution of the decree, the decree holder has to refund the amount. He is also entitled to interest. Bu the same token, if the unsuccessful appellant had obtained a stay of execution by posting security, the decree holder would have been entitled to interest for the time delayed to execute it.

? Is a party claiming restitution to prepare an independent suit?

An independent suit for restitution may not be instituted. Art. 349(3) clearly provide that restitution shall be made to the court that gives the first judgment in favor of the unsuccessful respondent. In this respect, the whole claim of the restitution, which the applicant is entitled, shall be included in the application as per Art.216 (2) of the code. The rational behind prohibiting the splitting of the cause of action is equally applicable to an application for restitution, and a party should be required to include the entirety of this claim for restitution in his application. Otherwise he can be barred from applying for the remaining claim. This is a sound interpretation.

To conclude our discussion, restitution is the procedure by which a successful appellant recover what he lost because of immature execution of a judgment . It is the mechanism by which a status quo between two parties to a suit can be maintained.

8.3. Revision in the Court of Cassation

Overview:

My dear distance student, welcome to the final stage of the discussion in this chapter. In the last two sections, we discussed how a given judgment is to be reviewed by the rendition court, and by the appellate court. In this section, we will discuss how a party who has exhausted his appeal may in exceptional cases, file an application for revision of the judgment on showing that the judgment or decree contains a fundamental error of law. That is what we call review in cassation. Cassation literary is the procedure whereby a final decision of a court is revised for its application of the relevant & proper law. Hence, we may say that it is the final point where litigation comes to an end forever.

Since the concept is introduced as a result of the 1987 P.D.R.E Constitution, there are no detailed rules of procedure. The area is not at all covered by the Civil Procedure Code, excepting some provisions, so to say, which provide for revision by the His Imperial Majestys Chilot , which is by far different from review in cassation Hence, the theme of the discussion here will be based on Proc. 25/96, which provides for the powers of Federal Courts. As to cassation in Regions, there is no rule at all. If we say that there is cassation by Regional Supreme Court, it will be inevitable to apply Proc. 25/96 as a gap filling. Therefore, the relevant provisions in the Constitution and Proc. 25/96 will be discussed and presented in detail. I will reproduce them when necessary. I hope you will enjoy it!

Objectives:

By successfully completing studying this section, you will be able to!

- Explain what cassation is and what differentiates it from appeal,
- Enumerate the grounds of cassation,
- Describe the application of cassation in Ethiopia
- explain the need for cassation
- Interpreter what constitutes basic error of law
- Understand and apply the procedure of cassation

8.3.1. Historical Background

Historically, the concept of cassation court emanates from the civil law legal system, especially that of the French law. There is no such thing as the cassation court in the common law legal system. So, we can say that, in Ethiopia, the idea of cassation court seems to have been taken from the civil law system during the 1987 P.D.R.E. Constitution. Before we discuss the concept in Ethiopia, I found it important to see the concept from the root i.e. by discussing the French system of cassation.

Cassation under French Law

In France, there is a distinct court called the court of cassation (***cour de cassation***) . The court itself comprises of the judges and the prosecution service The court of cassation includes about 85 judges and about 40 assistant judges. These judges are assigned to sit in the six different chambers:

1. First civil law chamber- dealing with issues relating to individual rights, copyright & contract
2. Second civil law chamber dealing with divorce, and civil procedure.
3. Third civil law chamber- dealing with property and urban Affairs.
4. Commercial, Economic and Financial law chamber dealing with corporations, bankruptcy, patent a banking
5. Social law chamber- dealing with labor law, worker compensation and social security
6. Criminal law chamber- dealing with penal law.

These six chambers are classified according to cases which arise based on a distinct law. Each chamber has a chief judge called the president — the entire court is headed by a chief

judge called the **First President**. The First President, the highest judicial officer of France, has responsibilities to administrating the courts and disciplining judges.

? Does Ethiopia have such independent cassation court like France?

In France, unlike the court of Appeal, which can entertain appeals on the ground that the lower court made incorrect factual findings, **the court of cassation decides matters on questions of law or questions of procedure, not questions of fact**. Moreover, lower courts can ask for the opinion of the cassation court early in the proceedings, on a point of law which is new and complex: in this case, the pinion will not be binding.

? Do we have such procedure as lower courts can ask for the opinion of the cassation court in course of the proceeding in Ethiopia?

In France, a case in Cassation is heard by a panel of three or five judges from the appropriate Chamber. In civil cases, there are three judges unless the First President or the president of the Chamber orders five judges to sit on the panel. Additionally, depending on the complexity of the case at hand, any one of the three judges originally assigned to the panel may order an expansion of the panel to five judges. If the matter invites the responsibilities of multiple chambers, e.g. like the issues of property and banking, the president may order the mixed chamber, rather than a panel to review the case.

? How is a case heard by cassation in Ethiopia?

Finally the court of cassation can affirm the earliest decision (dismissal of the petition) or annul it. The annulment may be on part of the decision only. Sometimes, the court may overturn a lower court decision and decide the case itself if all the facts necessary for such a decision are on the record. But in most of the cases, since the cassation court can not entertain incorrect factual findings, when the decision petitioned is overturned, the case will be remanded to one of the courts of appeal usually not the one which decided the case previously, and never with the same judges. What is more, the decision of the panel at cassation is not binding the court of appeal to whom the case is remanded may decide the case as it pleases (the decision of the cassation court has only a persuasive value). In this regard, the decision of the court of Appeal may again be appealed to the court of cassation. In this case, the Full Assembly of the court of cassation hears and decides the case. The determination of the Full Assembly on points of law is binding: the court retrying the case by remind, however, may review the actual facts.

The decisions of the cassation court are extremely brief, citing the facts of the case, the relevant Codal or Statutory texts, and the statement of the decision. Related with this is the practice of *stare decisis*. Unlike common law jurisdictions, there is no strict adherence to *stare decisis* in France and most other civil law countries. The precedents of the court of cassation are not binding on lower courts when they hear another case, but they are often followed since they have persuasive power in nature. This is how the court of cassation reviews final decisions of lower courts if there exists an **alleged fundamental error of law**.

? Are lower courts in Ethiopia bound to follow decisions of the cassation division of the Supreme Court?

We will come to the answer to this question later. Now, we will examine the practice of revision in cassation in Ethiopia in light of the French practice above.

? Can you explain the historical background of revision by the court of cassation in Ethiopia?

Until the adoption of the 1987 PDRE constitution the idea of a cassation court was not known. There was no court that had the power to review final judgments. Before that, the Emperors Zufan chilot, which exist in Ethiopia for long time until 1974, was the highest decision making. So, any person who has cause would petition to the Zufan Chilot to get a final say on his case. This is provided under Art.322 of the Code.

Art 322. His Emperor Majestys Chilot

Nothing in Art.321 shall prevent an appellant who has exhausted his rights of appeal from making a petition to his Imperial Majestys Chilot for a revision of a case under Art. 361 —370

But in the strict sense of the term **<cassation>**, revision by Zufan chilot cannot be taken as cassation though one may rightfully say that it was the prototype of cassation court of its time. This is because, for the first thing, the Zsufan chilot was a court in the regular court system, and it was presided by the Emperor, who was not a judge. For the second thing it had a discretionary power to entertain or reject cases on the basis of its requirements unlike cassation court which revises cases for fundamental error of law, it may revise cases for any type of factual error. This Chilot was abolished with its Emperor in 1974.

For 13 years, from 1974 until 1987, there was no court that had the power of revision in cassation. In this period, the Supreme Court used to hear some cases which needed serious consideration by a panel of 5 judges

The 1987 PDRE Constitution introduced the idea of cassation court, and empowered the Supreme Court to have a cassation Bench, where five or more judges would hear cases which were finally decided. The requirement for revision by cassation was that the applicant had to show fundamental error of law. This implies that error of fact or incorrect finding of fact, whatever its gravity might be, would not give lies to revision by cassation. That time the petitioner had two choices. He may petition to the Prosecutor General or to the Supreme court directly. If the prosecutor General determines that the final decision of the court had fundamental error of law, it would refer the case to the cassation court and the court would be obliged to see the case. It however had ultimate power of affirming their decision of the

lower court if necessary. The reason to empower the Prosecutor General to entertain cases for revision by cassation seems to emanate from the presumption that he acts in the name of the law. Even in France, if the government is dissatisfied with the interpretation of law as stated by the courts, it may ask the parliament to rewrite the law so long as no constitutional question is involved. This constitution was pushed following the down fall of the Military Junta, Dergue in 1991 and the 1995 constitution adopted though the cassation court system was maintained a different cassation system which we will consider in the next sub section.

8.3.2. Cassation under the Present Constitution

The 1995 Constitution provides for two types of cassation courts. They are the Federal Supreme Court and the State Cassation Courts. This is clearly stipulated under Art 80 (3) of the constitution.

Art. 80. Concurrent Jurisdiction of Courts

(3) Notwithstanding the provisions of sub-article 1 and 2 above:

- (a) The federal Supreme Court has a power of cassation over any final court decision containing a basic error of law. Law shall determine particulars.
- b) The state Supreme Court has the power of cassation over any final court decision on state matters which contains a basic error of law particulars shall be determined by law.

From the above provision, we understand that there are 10 supreme courts in Ethiopia; the 9 Regional and one Federal Supreme Courts have the power of cassation. Their power, however, is dependent upon the occurrence of fundamental error of law. This is to mean that the cassation courts must be addressed by a petitioner who is alleging that a final judgment of the court contains basic error of law. In other words, to review final judgments by cassation, the cassation court must first assure that they contain basic error of law. If the alleged decision does not contain any basic error of law, it will not be reviewed by the cassation court.

? Is there any jurisdictional limit of the supreme courts to review a decision alleged to contain a fundamental error of law by cassation?

Dear student, when we discuss the jurisdiction of courts in the third chapter of Module one, we said that a suit can only be brought in a court that has jurisdiction. In determining jurisdiction of courts presently in Ethiopia, the first thing is to establish whether the case falls within the jurisdiction of federal or state courts. We said State Courts have jurisdiction over state matters, Federal courts have jurisdiction only over cases that fall within the jurisdiction of Federal Courts. From this we conclude that Federal Courts do not entertain cases which fall within the exclusive jurisdiction of State Courts. This is the main principle of dual-court system or Federal structure. To strengthen this conclusion, we also said that there are regional Woreda, High and Supreme Courts, and Federal First Instance, High and Supreme Courts having their own jurisdiction. The federal Supreme Court is the highest and final judicial power over federal matters, and state Supreme Courts are the final judicial powers over state matters. It is clear from the reading of Art 80(3) (b) of the Constitution that the State Cassation court does not have a power of cassation over federal matters. Because the provision clearly stipulates that State Supreme Courts have cassation power over state matters which contain a fundamental error of law. The issue here is whether the federal Supreme Court has cassation power over state matters which contain basic error of law.

? Can the Federal Supreme Court review the final decision of Regional courts in cassation on state matters?

My dear student, I hope you noticed that this issue happens practically in our courts. Have you ever encountered such an issue?

There are two lines of arguments. The first group base their arguments on Art.80 (3) (a) of the constitution. Accordingly, the phrase, “...**over any final decision of court**” in Art.80 (3) indicates that the federal supreme court has the power of cassation even on final decisions of state courts on state matters. According to the proponents of this view, they substantiate this interpretation by Art.10 (3) of proc.25/96, which provides for the power of cassation of the Federal Supreme Court. It says ...over decisions of the regional Supreme Court rendered as a regular or in its appellate jurisdiction. So, they say that the power of the federal Supreme Court is comprehensive that includes final decisions of both Federal and Regional Courts.

The other group bases their argument on Art. 80 (1) of the Constitution and argue that the Federal Supreme Court does not have cassation power over decisions of state courts on state matters.

According to the proponents of this line of argument, Art.80 (3) (a) of the constitution is silent as to whether the federal supreme court has power of cassation over any final court decision on state matters. It does not clearly tell as whether it has cassation power or not. So, it needs interpretation. They go on to say that the Federal Supreme Court and the State Supreme courts have nothing in common, except in some ways having concurrent jurisdiction, by delegation. They say that even the rules under Art.10 of Proc 25/96 do not answer this question.

Art. 10 Power of Cassation of the Federal Supreme Court

In cases where they contain fundamental error of law, the federal Supreme Court shall have the power of cassation over.

1. Final decisions of the federal high court rendered in its appellate jurisdiction,
2. final decisions of the regular division of the federal Supreme court
3. Final decisions of the regional Supreme Court rendered as a regular division or in its appellate jurisdiction.

Sub- articles (1) and (2) are clear. The point of departure is on sub- article (3). The proponents of this line of argumentation interpret the power of the federal Supreme Court over **“final decisions of the Federal Supreme Court rendered as a regular or in its appellate jurisdiction”** to refer to Art.80(5) and (6) of the Constitution. As per these sub-articles, the regional Supreme Courts are delegated to have regular or appellate jurisdiction over cases falling within the jurisdiction of the Federal High Court. So, the phrase “over final decisions of the Regional Supreme Court” under Art 10 of Proc. 25/96 refers to final decisions rendered by the Regional Supreme Court in its delegated power, and not on final decisions rendered by the Regional Supreme Court on state matters. This interpretation is substantiated by the fact that judicial powers are **vested in courts both at the Federal and State levels, having their own jurisdiction**. It will be self-defeating if we say that state supreme courts shall have the final and highest judicial power in the one hand, and their final decision is subject to revision by cassation by the federal supreme court on the other. This in turn will render Art.80 (2) and the Art.78 of the Constitution meaningless. So, they conclude saying that the Federal Supreme Court does not have cassation power over final decision of

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state supreme courts over matters that fall within the exclusive jurisdiction of the region concerned. To put it in another way, **cassation over cassation is not possible** since cassation by itself is not a right, but granted exceptionally it has to be interpreted restrictively to comply with the main purpose of procedure, to decide cases in a fair manner and as expeditious and economical as possible.

My dear distance student, I am sure you appreciate the arguments, and I also hope that you have taken sides with one of the groups.

? Which one is tenable? What is your position? Why? Why not the other? (Please write down your own position in the space provided below!)

Constitutionally, state supreme courts are empowered to have cassation power over final decisions of state matters which contain basic error of law. As good practice shows, for instance, in the Amhara Region, the Supreme Court exercises its cassation power. Currently, however, most of the state supreme courts do not have distinct cassation division. Moreover, they do not have their own rules of procedure on cases reviewed by cassation. To the best of my knowledge, there is no procedural rule in the Amhara Region which provides for the powers of cassation of the Amhara Regional State Supreme Court. The constitution simply provides that particulars shall be determined by law in general terms. To date, I have not personally encountered any law, which determines the particulars of Art.80 (3) (b) of the Constitution. One may say that they will apply Proc. 25/96 which provides for the powers of Federal Courts, as a gap filling.

The other point worth discussing here is Art.10 (2) of Proc. 25/96. It stipulates the situation where the federal Supreme Court reviews the final decision of the regular division of its own. The phrase, “regular division of the Federal Supreme Court” is used to identify the divisions of the court which are mainly appellate divisions from the cassation division of the same.

? What does that mean?

The Federal Supreme Court is an appellate court for all cases which are originally tried by, and those decided on appeals from the Federal First Instance court reversed by the Federal High Court. The federal Supreme Court, thus, entertains those cases in its regular division. Its decision will be final since there is no higher court, and so to say it cannot be appealed. But the question is this;

? What is the solution if the Supreme Court itself commits fundamental error of law?

Lets elaborate this by the following example.

Example: Claiming the recovery of one million Birr, A brings a suit in the High court against B. The Federal High Court decided in favor of A. B appealed and the decision of the High court is reversed. The decision of the Supreme Court is final though A, against whom the decision is reversed by the Supreme Court believes that the decision contains basic error of law. Knowing that you are a renowned lawyer, A approaches you to give him a legal advise as to what remedy he has.

? What do you advice? Does he have any remedy?

This is where the provision of Art 10 (2) of Proc 25/96 comes into picture. Though it does not seem logical, he may appeal to the other division of the Supreme Court. But in the case at hand, the decision contains fundamental error of law, and the federal Supreme Court shall have the power of cassation over final decisions of the regular divisions of the Federal Supreme Court. As I said above, all the decisions of the federal Supreme Court are considered final since there is no appellate court above the Federal Supreme Court, which is

the highest judicial authority in the country. So, although decisions of the Federal Supreme Court rendered in its regular division may be reviewed by cassation

Dear student, I hope, everything has been successfully addressed. Good, we have seen the cassation powers of the Supreme Court. We have also impliedly seen that there is no distinct cassation court. It is the Supreme Court which also has cassation power over final decisions. To complete the decussating one point still is left pending i.e. the issue of judgmental error of law. The Supreme Court would revise cases in cassation, which contain fundamental error of law. Let me pose the following question, and you will try to answer it before resorting to the discussion.

? What constitutes **fundamental error of law?**

My dear distance student, the answer is not that simple. Neither the 1987 nor the 1995 Constitutions have provided for the definition and what constitutes fundamental error of law, though they both make it a criteria to review a final decision in cassation in practice, fundamental error of law or basic error of law is under stood to refer to ***an erroneous interpretation of law in applying the law to particular case***. The business of the court is to relate the facts with the applicable law, and to determine the specific type of law based on which a claim can be alleged. In so doing, the judge may wrongly determine the spirit of the law. That constitutes fundamental error of law. For example, whether theft constitutes force majeure or not is an aspect of interpretation of law and such interpretation of the provision of law providing for force majeure may involve fundamental error of law. What we can say at this juncture is that cassation division would not consider cases for error of fact, however grave it may be. If the judgment contains erroneous interpretation of law, it may be reviewed by cassation, when we say that the error of law is fundamental and or not fundamental it is not yet clear. There is no simple guideline or rule that provides the parameter for a fundamental error of law. I hope, our courts of cassation (that division of the Supreme Court) will develop the parameter in practice through their well-founded decisions.

? Assuming that we have common understanding of what constitutes fundamental error of law and the decisions of the cassation division is wise, what impact will it have for similar cases in the future? Does it have a binding force?

In common law legal system, there is what we call the principle of *stare decisis*, and there is strict adherence to this rule. The precedents of the Supreme Court are binding on lower courts when they hear similar cases in the future. I.e. lower courts will be bound to apply the decision of the cassation court in the future.

In France, unlike the common law, there is no strict adherence to the precedents of the cassation court. The decisions on cassation are not binding. But they are often followed and will be applied since they are persuasive.

? What is the situation in Ethiopia?

As we all know, our country has adopted most of its Codes from the civil law legal system and the procedural laws from the common law legal system. Though the Civil Procedure Code is directly copied from a common law source, most of procedures on litigations tilt towards the civil law legal system. In this regard, until recently, we did not follow the principle of *stare decisis*. The decisions of higher courts do not have binding effect on lower courts, and lower courts are not bound to follow the decisions of higher courts for similar cases in the future. But recently, we have adopted a principle called *jurisprudence constante*; the doctrine that judges in lower courts should follow the precedents of the court of cassation. So in Ethiopia nowadays, interpretations of law given in deciding cases by the cassation division of the Federal Supreme Court are binding on lower courts when they hear another similar case in the future with only regard to interpretation of law, and the objective is supposed to create uniformity of judgments.

8.3.3. Procedure in Cassation

The pertinent law, which provides for the procedures to be applied for review in cassation, is Proc 25/96. Under this procedure, the applicant shall state his reasons for alleging the decisions to contain a fundamental error of law, and shall submit the application with a copy of the decision protested and the decision of the lower courts on the case. The time limit is 90 days from the date on which the first decision protested is rendered. Herein under, I have reproduced the pertinent provision of the Proclamation which provides for the provisions. Please, critically understand it. (Proc. 25/96)

Art.22:-Application Procedure for Cassation

1. A decision shall be heard in cassation by the Federal Supreme Court, pursuant to Art 10 herein, subject to the period ruling as to the existence of fundamental error of law qualifying for cassation, by a division wherein three judges of the Federal Supreme Court sit.
2. The application for a hearing in cassation shall state the reasons for alleging the decision to contain a fundamental error of law.
3. The applicant shall together with his application submit a copy of the decision protested and the decisions of lower courts.
4. An application for a hearing in cassation shall be made to the Federal Supreme Court within ninety days from the date on which the final decision protested is rendered.

Generally, the application for a review in cassation should qualify all the requirements of a pleading and I think, for all practical purposes, the procedure applied in case of appeal shall apply, *mutatis mutandis*

? What should the decision look like?

In my opinion the decision of the cassation court centers on the reasoning of the lower court in interpreting and applying pertinent laws. So, in most cases, the decisions of cassation courts are ***extremely brief, citing the relevant provision of the law and a statement of the decision.***

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There must be, in our case, a reasoning included in the judgment to guide in the interpretation of the decision since it will serve as the precedents of the court of cassation binding on lower courts. In its decision, the court in cassation, can affirm the earlier decision or annul it. As I discussed before, in France if the earlier decision is reversed the case will be remanded to one of the courts of appeal. The appellate court to whom the case is remanded then will decide on the question of fact based on the guide in the interpretation of law given by the court of cassation

To finalize the discussion, I will pose the following question for you to answer, and thereby the discussion on review comes to an end. Bye Bye!

? What is the procedure in Ethiopia? DO you think that the court of cassation will decide the case finally or it will remand the case after reversing the decision?

Discuss it with your friends.

My Dear Distance Student, Welcome!! With the discussion of this final and conclusive power of the Supreme Court, we have come to an end of adjudicative aspects of a civil litigation. The case has been instituted, litigated, determined on the merits, and such review of judgments, as is available under the law, has taken place to ensure the trust citizens have on the judicial system. Where the party against whom a decree has been passed voluntarily complied with it, the case will come to an end, and this is desired! The problem is this; the party against whom a decree has been passed will mostly fail to comply with it. In this case, enforcement of the decree is available in the court render it. This will form the major part of the discussion in the next Chapter of this Course!

SUMMARY

In this chapter, we have discussed about review of judgments. Among other things, we have seen how final judgment of a given court can be seen again. This is the mechanism by which the party who is aggrieved or dissatisfied by the decision of the court would have his chance to be heard again. This is one of the fundamental constitutional rights of individuals.

We said that there are three ways by which a judgment of one court can be reviewed.

The first type is review by the rendition court. Though in principle a rendition court cannot revise its own judgment, exceptionally it is empowered to correct some problems. It can do so only if one of the three grounds are proven to exist: (1) if a party proves that procedural irregularity has been committed by the court that affected the outcome of the proceeding; (2) that a new evidence, which was not within his knowledge, has been discovered; and (3) that an opposition is filed. In all these cases, the court will set its judgment aside and retry the case.

The second way is review by way of appeal. This is the normal way of reviewing Judgments so to say. We have learnt that it is a constitutional right and that a party has only one right to appeal. The appellate court will examine the memorandum of appeal. If accepted, it will examine it and either confirm or reverse the decision of the lower court. The appellate court, if it reverses the decision of the lower court appealed from, either it will render its final decision or remand it to a lower court to retry it. We also said that, in principle, there is no retrial of the case and production of evidence in the court of appeal. If the decision is wholly reversed the other party will exercise his right to appeal, and we refer it a second appeal

The last part of the discussion in this Chapter is devoted to address the issue of cassation. It is a reviewing procedure whereby final decisions of courts, containing fundamental error of law, are revised. In Ethiopia, we do not have a separate cassation court, and hence the Supreme Court exercises it. We said that final decision of a court is reviewed in cassation only if the said decision is alleged to have contained a fundamental error of law. Hence, the applicant to the cassation court is required to state the reasons why the judgment he objects contains a fundamental error of law. This is how judgment is reviewed.

REVIEW QUESTIONS

1. What are the three grounds in which the rendition court may review its own judgment?

2. Discuss the three points that a party who is applying for a review of judgment into the rendition court on grounds of newly discovered evidence has to satisfy.

3. What will be the fate of judgment rendered in the absence of material jurisdiction by the court?

4. Which court rejects the memorandum of appeal if the 60 daytime limit lapses? Why?

5. What are the main distinctions between review by a court of rendition and by appeal?

6. When is preliminary matter appealable?

7. Is an independent suit necessary for restitution of the property transferred as a result of early execution?

8. What is fundamental error of law?

9. Prepare a memorandum of appeal and check it for its format.

10. So we need to have a distinct cassation court other than the Supreme Court?

CHAPTER NINE

EXECUTION OF DECREES

Overview:

Dear distance student, welcome to the Ninth Chapter of the Course on Civil Procedure II. In this Chapter, we will discuss how the operative part of a judgment i.e. decree can be executed. Execution of decrees refers to the mechanism under which the decision of the court in favor of the decree holder against the decree debtor can be implemented to satisfy the claim.

The theme of presentation in this Chapter is provided in three sections. The first Section discusses the issue of jurisdiction in execution. In the second Section, we will consider the procedures employed in execution. And finally, problems of attachment and sale of property of the judgment-debtor for executing the decree will be discussed in the third section.

I have reproduced some provisions of the Code when necessary. I believe this will help you save the time that you might have spent in finding the articles from the Code.

Objectives:

Upon successful completion of studying this Chapter, the student will be able to:-

- Explain when application for execution is necessary,
- Determine the court that has jurisdiction to execute a decree, and the possibility of transferring decrees for execution,
- Explain what the application for execution should contain,
- Describe the procedure to be followed in executing decrees,
- Identify and elaborate how joint decrees can be executed simultaneously,
- Determine the period during which execution can and cannot be filed,
- Describe the different methods of attachment in light of the subject matter of each decree
- List out, raise and address objections to attachment
- Differentiate rules applicable to sale of movable and immovable property
- Explain what properties are not subject to attachment and sale for decree execution.

9.1. Jurisdiction in Execution

In the first Module to this Course, when we discuss the issue of jurisdiction, we said that a suit can only be brought in a court that has jurisdiction. Jurisdiction refers to the power of the court to hear and determine a case. Among other things, one of the reasons to the requirement of having jurisdiction to hear and determine a case is to provide the defendant with legally sufficient notice that action is instituted against him in a court of law so that he can appear

and defend the case against him. The failure to do so will result in the unfair treatment of parties.

Execution of decrees is one aspect of litigation which presupposes the determination of the court on some issues. And hence, a decree can only be executed by a court having jurisdiction, which can subject the decree-debtor to its rulings. In this section, we will discuss the court that has jurisdiction in execution of decrees and related issues.

Objective:

After successfully studying this section, the student will be able to:

- Determine the court that has jurisdiction to execute a decree,
- Explain the conditions of transferring a decree for execution,
- Enumerate the powers either the transferor or the transferee court has in executing the decree,
- Describe the relationship between the two courts,
- Understand and apply the rules concerning transfer of decrees for execution.

? Which court has jurisdiction to order the execution of a decree?

In principle, the court which rendered the decree will execute it. In other words, the decree will be ordinarily executed by the court which rendered it. But sometimes the court upon its own motion or by the application of the decree-holder may send the decree to another court for execution. This is legally speaking referred to as transfer of decree for execution. In the next sub-section, we will discuss the conditions under which a decree will be transferred for execution to another court.

9.1.1 Transfer for Execution

In certain circumstances, a decree which ought to have been executed by the court which rendered it may be transferred for execution to another court. For example, where a decree is passed by an appellate court, that court may itself give directions for execution or it may delegate the execution to the court which first heard the case. As we will discuss in section 9.2., if the decree of the appellate court so delegates execution, the party seeking to execute it must then apply to the court which tried the case first. But when the decree is rendered by the Chilot, the party seeking execution must apply to the court from whose decree the petition to Chilot was preferred, and that court is directed to execute the decree or order as though it were its own. The orders made by the Chilot executing the decree of the Chilot are appealable in the same manner and subject to the same rules as orders by the court executing its own decrees. This situation is governed under Art.183 (1) (f) and Art 370 of the code.

Art 183. Framing and contents of a decree

(1) After delivery, the operative part of all judgments shall be reduced to the form of a decree which shall contain Such particulars as are necessary so that it be susceptible of execution

Provided that an appellate court may itself give the necessary directions for the execution of its decree or may delegate the execution thereof to the court which first heard the case. You are kindly advised to read Art. 370 of the Code, this is extracted from the Code in Chapter Seven.

So far so good. We said the court will transfer the execution of a decree to another court of execution by that court is not feasible. It implies that there are some conditions to be satisfied.

? When is transfer of execution authorized?

The conditions to authorize the transfer of execution of a decree from the court which passed it to another court are set-forth in Art.372 of the code.

Art. 372. — Transfer of decree

- 1) The court which passed a decree may, by order in the form prescribed by the Fourth schedule (to the code, of its own motion or the application of the decree-

holder where execution is sought in accordance with Art. 378, send it for execution directly to another court where:

- a) The judgment-debtor resides, carries on business or personally works for gain within the local limits of the jurisdiction of such other court;
 - b) The judgment-debtor has property sufficient to satisfy the decree within the local limits of the jurisdiction of such other court, but not for the court which passed the decree;
 - c) The decree directs the sale or delivery of immovable property situate within the local limits of the jurisdiction of such other court: or
 - d) The court which passed the decree considers, for any other reason to be recorded, that the decree should be executed by such other court.
- (2) Nothing in sub-article (1) shall prevent a court from directing the attachment or sale of immovable property notwithstanding that the entire property is not situate within the local limits of its jurisdiction.

To substantiate this point, let's assume the following example.

Example: Suppose that a dispute arose in Gorgora concerning the sale of a house situated in Gorgora. The Dembia Woreda court ruled for the defendant, though its decision is ruled by the high court. The North Gondar High court reversed the decision of the Woreda court, and passed a decree ordering the transfer of the house to the decree-holder. The decree-debtor refused to execute the decree, and because of this the decree-holder applied to the high court seeking the execution of the decree-the transfer of the house which is situate in Gorgora.

?

Which court do you think should execute the decree?

The subject matter of the decree is an immovable property and is found in Gorgora. In this case, the North Gondar High court will transfer the decree to the Dembia Woreda Court, where the immovable property, the house, is situated. The fulfillment of conditions we discussed above, however, are not mandatory, and the court which passed the decree may execute it itself. Since the North Gondar High court has also local jurisdiction over Dembia,

and all other Woredas found in North Gondar, such transfer will not be mandatory, and it can execute the decree itself.

? What would happen if the house was situated in Lalibella, and by some chance the decree was passed by the North Gondar High court?

Here, it may be questionable whether a court can execute on property outside the local limits of its jurisdiction. Under Art.26 of the code, it has been provided that the court may direct the attachment or sale of immovable property where only a part is located within the limits of its local jurisdiction.

Art. 26. Immoveable property situated within

(1) A suit regarding immovable property situated within the jurisdiction of different courts may be instituted in any court within the local limits of whose jurisdiction any portion of such property is situated.

This would imply that where the entire immovable is outside of its jurisdiction, the court cannot order the attachment and sale of such property. In our example above, the decree passed by the North Gondar High court may concern the sale of immovable property situated in Lalibella. Actually the immovable property, say a house, was not the subject matter of the suit. But may be because the decree debtor becomes unable to satisfy a decree for the payment of money, the court may order the execution of the decree to proceed on the immovable property of the decree-debtor. It does not matter that the immovable property is not within the jurisdiction of the court which issued the decree since immovable property may be, as I said above, executed upon in a suit where a decree for the payment of money is issued. Thus, in our hypothetical example above, where the decree of the North Gondar High court directs the sale of the immovable property situated in Lalibella, the decree should be transferred for execution to the court in Lalibella. Please cross refer our discussion on Art 25 concerning the place of a suit on immovable property.

Note- The court which sends a decree to be executed in another court is called the transferor court, and that court to which the execution of a decree is transferred is

called the transferee court. In our example above, hence the North Gondar High court is the transferor court, and the Lalibella court would be the transferee court.

Dear distance students, I am sure you have easily remembered our discussion in the first part of this course that suits for the recovery of immovable property must be brought at the situs. Very good! The same reasoning here requires that proceedings on execution of immovable property be brought at the situs as well. To refresh your memory, therefore, I advice you t read again the first module in this area.

Lets assume that the court in Debre Birhan passed a decree on movable property of the decree holder situated in Methema Yohannes. Because the decree-debtor refuses to satisfy the decree, the decree holder applies to the court in Debre-Birhan seeking execution of the decree.

? How should this decree be executed?

Do you advise the Debre Birhane court judge to execute the decree itself or else?

I am sure you know that it is about 990 kms from Debre Birhan to Metama. Of course, there is no comparable requirement respecting movable property, and it is held that the court should not be required to transfer a decree involving execution on movable property situated outside the local limits of its jurisdiction. Probably, it is where the applicability of Art. 372 (1) (d) comes into picture. The court which passed the decree, for any other reason which it considers convincing, will order the transfer to another court. In our example, the Debre Birhan court would probably direct transfer of execution of th decree to the court in Metama since the movable property is situated in a very far place.

So far, so good. If both the court which passed the decree, and the court within its jurisdiction the subject matter of the decree is situated are found within the same Regional State, there will be no problem, and the execution of the decree will be transferred. Sometimes it may be the case that the court which passed the decree may be found in one Region and that the property will be situated in another Region.

? Do you think that it is easy and possible to transfer the execution of a decree from a court in one Region to a court of another Region?

Currently, we have 9 Regions, which form the Federal Ethiopia, having their own jurisdiction. Some regions may strongly adhere to the principle of protecting their nationals, disregarding their moral obligation to collaborate with the courts of their counter Regions. Even in practice, for example, there is a rumor that courts in the federal government are reluctant to execute decrees transferred from Regions. Some two years ago, one judge working in Western Gojjam High court told this writer that there was problem of executing decrees by courts in Addis Ababa transferred from this High court in Bahir Dar. Anyways, discuss it with your friends.

? How is the transfer of execution effected?

The court transferring a decree for execution shall send a copy of the decree, a certificate stating that satisfaction of a decree has not been obtained by execution within its jurisdiction, or the extent of partial satisfaction, if this is the case, and a copy of any order for execution it may have made or if no such order has been made, a certificate to that effect. This is the message of Art 373 (1) of the code. The transfer may be made without notice to the judgment-debtor since he will be notified of the execution proceeding by the transferee court in accordance with Art.386 (1). Though there is no prohibition to that effect, the transferring court would send the decree to only one court at a time. If it is sent to more than one court, there is a danger that both courts simultaneously execute the decree, necessitating restitution. The transfer may be recalled if the transferring court concludes that it was not necessary.

? Can you think of the recall?

It may be the case that the decree-debtor may satisfy the decree in the due time, and apply to the transferring court that the execution suit be dismissed. Or it may come to the attention of the transferring court that there is sufficient property within its jurisdiction to satisfy the decree. In these and other similar cases the transfer may be recalled. You can list out such circumstance as much as you can.

? Can the transferee court refuse to execute the decree passed by the transferring court?

The transferee court is directed to execute the decree without further proof unless it, for any reason to be recorded, requires such proof. This is the rule set under Art.373 (2) of the Code. This raises the issue of the scope of the inquiry that can be made by the transferee court. Obviously, it is to be very limited as the special provision indicates. For instance, in India, the Mother of our Civil Procedure Code, it has been held that the transferee court may refuse to execute the decree if the transferring court lacked to render the decision.

In common law jurisdiction, they have what is called **void judgment**, a judgment which does not have any legal effect at all though it is not reversed. If, for instance, the transferring court had no power, say did not have material jurisdiction to hear the case, the judgment would be void, and the transferee court would not execute it. The “judgment” will be considered as if it were not rendered. But in Ethiopia, I do not personally think this is true because of Art.212 of the code. No judgment shall be void if it is not reversed. There is no void judgment. And hence, the transferee court should not refuse to execute a decree though it was rendered by a court having no power to hear the case.

Art. 212 Validation of proceedings

No proceeding in which an irregularity has occurred shall be void where no appeal is made against the judgment given in such proceedings or where such judgment is confirmed by the appellate court.

? Can the transferee court alter, vary or add to the terms of the decree passed by the transferring court?

Sometimes, it may be the case that the decree passed by the transferring court is vague or ambiguous. Where it is so, the transferee court can alter it, and resolve the ambiguity. As far as possible, the transferee court should look for the intention of the transferring court. For instance, if the appellate court upon confirming the decision of the lower court failed to mention the costs of litigation in the original proceeding, and transferred the execution of the decree to any court other than the rendition court, the transferee court could refer to the decree of the trial court to determine what costs were awarded. Otherwise, if the decree is clear, the transferee court cannot alter, vary or add to the terms of the decree.

? What powers, then, does the transferee court have in executing the decree transferred to it?

As we said before, the transferee court is directed to execute the decree, and in so doing, it has the same power as if it had passed the decree itself. This is provided under Art 374 (1) of the code.

And as per Art.332, the transferee court retains the power to execute the decree notwithstanding that an appeal has been taken from the judgment in the suit. As we discussed in Chapter 8 an appeal in itself, unless stay of execution is granted, does not operate as stay of execution. By the same token, the transferee court is only authorized to execute the decree,

and therefore, cannot transfer the decree for execution to another court. Here you have to remember the regal maxim which says “a ***delegate cannot redelegate***”. Where it executes the decree, it shall certify this fact to the transferring court. And if it fails to execute, it shall advise that court of the circumstances attending such failure in accordance with Art. 374 (2) of the code, which is provided above. In other words, the transferring court still has indirect control over the case as a principal over the agent. That is to say that the transfer of a decree for execution does not deprive the court which transferred it of control over the proceedings. That court may also order another transfer of executing the same decree notwithstanding the first transfer. So, if the judgment-debtor has some property within its jurisdiction for instance, it may execute on that property and transfer the decree to another court with directions to execute the decree for the balance. As we have seen previously, the transferring court can recall, and if it does so, it may entertain an application for execution even before the decree is returned to it.

? Can the transferee court order stay of execution of the decree?

Pursuant to Art 376 (1) of the code, any application for a stay of execution must be made to the court which passed the decree. The transferee court is only directed to execute it. However, the transferee court may stay the execution of the decree for a reasonable time to enable the judgment-debtor to apply for such a stay to the court which passed the decree. But it does not mean that it is authorized to grant a stay itself. By the same token, where the judgment debtor desires to question the validity of the transfer, he must raise the question in the transferring court, although he may apply to the transferee court to give him time to raise the question. According to Art.374 (4), any order of the transferring court in relation to the execution of the decree is binding on the transferee court. However, if the transferring court ordered his arrest, or seized the property of the debtor, transferee court may order the discharge of the judgment debtor of the restitution of the property pending the result of the execution, and it has such power under Art.376 (2) of the Code. Here you have to note that the fact that such an order has been issued does not prevent the property from being seized subsequently or the judgment, debtor from being re-arrested in execution of the decree. Upon doing so, the court may require security from the decree debtor.

My dear distance student, have you noticed how the transferring court supervises the execution of its decree in the transferee court? Good. The court to which the decree is transferred for execution must execute the decree as passed and cannot vary or alter it. Generally speaking, it is bound by any order passed by the transferring court. In the coming sub-section, we will discuss in details about the powers of the court having direct control over the decree upon execution.

9.1.2 Power of the Court upon Execution

Before directly going deep into discussing the subject matter at hand, I would like to make the following remark. Execution, though it is a result of the proceeding at trial, is not an extension to it. It is essentially a separate proceeding initiated by a distinct pleading in the sense of Art. 80. Besides, a decree is not executed automatically following the winding up of the trial, but only upon an application by a decree — holder to the court which issued the decree. If the judgment-debtor satisfies the decree, the case is considered closed, and the court will have no power at all upon the execution of the decree in this regard. So, the discussion herein after presupposes the refusal of the decree debtor to execute the decree by his personal obedience. In this latter case, the power of the court upon execution of the decree will come into being.

? What powers does the executing court have?

Once an execution application is made, the court executing the decree has complete control over the proceedings, and all questions arising between the parties in the suit in which the decree was passed concerning the execution, discharge or satisfaction of the decree must be determined by the court and not by a separate suit. This rule is provided under Art.375 of the code.

Art. 375. - Questions to be determined by court executing decree

(1) Any question arising between the parties to the suit in which the decree was passed concerning the execution, discharge or satisfaction of the decree, shall be determined by the court executing the same and not by a separate suit.

(2) Any question arising as to whether or not any person is the representative of a party shall, for the purposes of this Article, be determined by the court executing the decree.

The theory is that the execution proceeding must have the same finality as the original suit, and that all questions could have been raised regarding the execution must be raised before the court executing the decree. If the questions which could have been raised are not raised here, it will result in resjudicata. (Cross refer our discussion on Art.5). From the cumulative reading of Arts.374 (1) and 320 (1), we understand that the decision of the court on execution is subject to appeal. But if no appeal is taken against the decision of the court on execution, the proceedings are final, and what happened in those proceedings cannot furnish the basis for a separate suit between the parties. Now, we will consider the rule enshrined under Art 375 of the code, especially sub-article (2).

? What would happen if the judgment-debtor dies pending the execution?

Upon the death of the debtor, the obligation subsists and the representative becomes a party to the suits, and it does not matter that another person whose property was wrongfully attach could bring a separate suit with respect to the property. Since the representative is a party to a sit, he is bound by the provisions of Art. 375. A suit by such a person would be authorized under Art.421 of the code. Some of examples of questions that must be raised before the court executing the decree include claim for damage caused by the judgment-debtor to property prior to surrendering possession, claim by the judgment-debtor that the decree holder took the execution property not included in the decree or in excess of the decree, claim for refund or deficiency following execution on mortgaged property where an error in the amount of mortgaged is subsequently discovered, etc. In all these cases, a separate suit by the affected party would be barred. This rule also prohibits the asserting of defences that involve matters which could have been raised before the court executing the decree.

? Can the decree-debtor request the court to order stay of the execution at this stage?

This is the other power of the court executing a decree. The court which issued the decree may, on such terms as to security or otherwise it thinks fit, stay the execution of the decree until the pending suit has been decided.

? What is the purpose of staying the execution of the decree here?

The theory is that if the judgment debtor is successful in another suit against this judgment-creditor, there will be cross-decree. That is to mean the judgment — debtor in this case will become a judgment — holder in another case against this decree — holder. In this case, when the cross-decrees are executed altogether, the decree in favor of this decree-debtor may cancel out or may require execution of a lesser amount. Art. 397 of the Code provides for this situation.

Art. 397.- Execution in case of cross-decrees

- (1) Where applications are made to a court for the execution of cross-decrees in separate suits for the payment of two sums of money passed between the same parties and capable of execution at the same time by such court, then :
- (a) if the two sums are equal, satisfaction shall be entered upon both decrees; and
- (b) if the two sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction on the decree for the smaller sum.
- (2) The provisions of sub-art. (1) shall apply where either party is an assignee of one of the decree and as well in respect of judgment-debts due by the original assignor as in respect of judgment-debts due by the assignee himself.
- (3) The provisions of sub-art. (1) shall not apply unless ;
- (a) the decree-holder in one of the suits in which the decrees have been made is the judgment-debtor in the other and each party fills the same character in both suits, and
- (b) the sums due under the decrees are definite.
- (4) The holder of a decree passed against several persons jointly and severally may treat it as a cross-decree in relation to a decree passed against him singly in favour of one or more of such persons.

To substantiate this point, let's assume the following example.

Example: Suppose that Ato Zelalem becomes a decree — holder against Ato Tatek for 80,000 Birr. Pending the execution of this decree, Ato Tatek becomes successful against Ato Zelalem in another suit for 50,000 Birr. He is awaiting Ato Zelalem to

execute the decree by his personal obedience, but it is to no avail. Ato Zelalem informed Tatek that he will not satisfy the decree. In this case, Ato Tatek, the decree — debtor applies to the court executing the decree to stay execution of the decree so that the decree in his favor will be executed altogether.

The two decrees are called **cross — decrees**. Therefore, the court is given the discretion to stay execution until the pending suit has been decided if it is pending or until Tatek files an execution suit for execution of the decree against Ato Zelalem. Note that the other suit may be pending in any court and need not be pending in the court which issued the decree. However, only the court which issued the decree may stay execution. That is to mean that execution of a decree, as we discussed in the previous sub-section, may not be stayed by the court in which the other suit was filed. In our example above, execution may be taken out only by the holder of the decree for a larger sum and for so much only as remains after deducting the smaller sum. Since the decree of Ato Zelalem in the above example is the larger sum (80,000 Birr), the decree in favor of Ato Tatek against Ato Zelalem (50,000 Birr) will be deducted. The balance is 30,000 Birr. The judgment debtor, Ato Tatek, will be entitled to execution of a lesser amount. He will pay 30,000 Birr, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction on the decree for the smaller sum. If, by chance, the two sums in the two decrees were equal, satisfaction shall be entered upon both decrees, and one of the decrees will set-off the other.

9.2 Proceedings in Execution

Dear student, we said that execution is an independent suit initiated by a pleading. In this section, we will discuss how execution proceedings are to be litigated, i.e. how the decree-holder institutes execution proceedings, and the procedure to be followed in such proceedings.

Objective

After successfully studying this section, the student will be able to:

- Explain what the application for execution should contain:
- Describe the procedure to be followed:
- Identify and elaborate how joint decrees can be executed
- Apply the rules on execution of decrees.

9.2.1 Application for Execution

? When is it necessary to apply for execution?

To institute a court action against someone, there must be a cause of action, and the applicant must have a vested interest in the subject matter of the suit. It may be that the judgment-debtor will satisfy the decree voluntarily. For example, the judgment debtor may pay the amount due under the decree or transfer the property to the decree holder. In these cases, execution proceedings are unnecessary. However if the decree is not satisfied by the judgment-debtor, the decree-holder may institute proceedings in execution by applying to the court which passed the decree to issue process for its execution. See our discussion above on Art 378, and if the decree-holder is dead, the application may be made by his representative as per Art. 381. If the subject matter of the decree has been transferred by assignment or by the operation of the law, the transferee may apply for execution of the decree.

Art.381. - Application for execution by transferee of decree

- (1) Where a decree, or if a decree has been passed jointly in favour of two or more persons, the interest of any decree-holder in the decree, is transferred by assignment in writing or by operation of law, the transferee may apply for execution of the decree to court which passed it.
- (2) Subject to the provisions of sub-arts, (3) and (4), the decree may then be executed in the same manner and subject to the same conditions as if the application were made by such decree-holder.
- (3) Where the decree, or such interest as aforesaid, has been transferred by assignment, notice of such application shall be given in the form prescribed by the Fourth Schedule to this Code to the transferor and the judgment-debtor, and the decree shall not be executed until the court has heard their objections, if any, to its execution.
- (4) Where a decree for the payment of money against two or more persons has been transferred to one of them, it shall not be executed.

Here you have to note that the general rules applicable to the institution of the suit are not applicable since an execution application is a continuance of the originally decided suit. The application may be made as soon as the judgment-debtor is in default. If, for instance, he has been given time to satisfy the decree, the application may be made when the time has passed without the decree having been satisfied. Otherwise, it may be made upon the passing of the decree pursuant to Art. 378 (2) of the Code. Good practice, however, shows that the decree — debtor will be given some time to satisfy voluntarily, and the decree-holder waits such reasonable time before instituting proceedings.

? What should the application for execution contain?

What the application for execution should contain is provided under Art.378 (3) of the code. (See the provision extracted from the code above) Among other things, the application for execution must contain the following information: the number of the suit, the names of the parties, the date of the decree, whether an appeal has been preferred, what payment or other adjustment, if any, has been made. Subsequently to the decree, whether any previous application for execution have been made, and if so, the dates and results of the application, the amount due in the decree with interest, if any, or other relief granted together with the particulars of the decree, the amount of the costs awarded if any, and the mode in which the assistance of the court is required. The mode of execution refers to how the court should order the satisfaction of the decree. He is most importantly aware of how the decree in his favor should be executed i.e. Whether by delivery of the property decreed, by the attachment and sale of property, by the appointment of a receiver, or otherwise as the nature of the relief granted may require.

? Can the application be made orally?

According to Art.378 (3), the application shall be made in writing, signed by the decree-holder and verified in the same manner as a pleading, and a certified copy of the decree sought to be executed shall be annexed. Where the application seeks the attachment of movable property belonging to the judgment-debtor, it shall be accompanied by an inventory of the property containing a reasonable description of the same. Art. 379 of the code provides for particulars in application for attachment.

Art. 379.- Particulars in application for attachment

- (1) An application for the attachment of any movable property belonging to the judgment-debtor shall be accompanied by an inventory of the property to be attached, containing a reasonably accurate description of the same.
- (2) An application for the attachment of any immovable proper belonging to the

judgment-debtor shall contain:
(a) a description of such property in accordance with Art. 225 (2) Provided that, where such property is entered in the register of immovable property, the court may require the applicant to produce a certified extract from such registers; and
(b) a specification of the judgment-debtor's share or interest in such property to the best of the belief of the applicant and so far as he has been able to ascertain the same.

Where the application seeks the attachment of immovable property, it shall contain a description of the property in accordance with Art.225 (2) of the Code, and a specification of the judgment — debtors interest in such property to the extent believed or ascertained by the applicant. If such a description is lacking, the application should be returned to the applicant with directions to furnish the description within a prescribed period of it since it does not qualify the formal requirements of a pleading.

My dear distance student, have you seen now why I said execution is an independent suit though it is a continuance of the originally decided suit? Good. Even in our discussion on pleadings, we said that the listing under Art. 80 (1) is not exhaustive. And, inter alia, we said that the phrase “--- **any other document originating proceedings**---” under this article includes applications for execution. I hope you are clear now!

? How is a decree in favor of several persons executed?

A decree passed in favor of two or more persons is called a joint decree. In this case, one of them, unless the decree imposes a condition to the contrary, may apply for the execution of the whole decree for the benefit of all, or when one has died, for the benefit of the survivors and legal representatives of the deceased. The rule governing this situation is provided for under Art.380 of the code.

? Do not you think that this will affect the interests of joint decree-holders?

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If the decree itself imposes a condition that it can be enforced upon the application of all persons in whose favor the decree is passed, any one of them cannot apply for the execution of the whole decree. But where it is executed by the application of one of the joint decree holders, the court shall make such order as it thinks fit (necessary) for protecting the interests of the persons who have not joined in the application. This situation is provided for under Art.380 of the Code, which is given above.

The court may decide to require the depositing of security in order to protect the interests of the persons who have not joined in the application. This is the rule designed for the convenience of the parties, and the court should grant permission with a view towards achieving such convenience. If there are several parties so that a representative class suit may have been justified under Art.38 of the Code, one holder of the joint decree should be able to file the application on behalf of the others. Or, if one of the joint decree-holders is outside of the jurisdiction of the court, the others should be able to apply for execution. This point should not be confused with a decree rendered in a suit which involves joinder of parties. In the 4th Chapter of this course, in module one, a number of parties under Art.35 of the Code, may join claims arising from the same transaction and involving a common question of law. In this case, the court will issue a decree in favor of each party separately, and hence there is no joint decree. Each party is using a separate claim.

? When do we say that there is a joint decree?

We say a decree is joint or there is a joint decree when a decree passed in favor of two or more persons on a claim, although their share or more persons on a claim, although their share or interest in the decial amount may be different. The best example of this kind is where the decree has been assigned to two or more persons jointly, or where the decree holder dies leaving several heirs. In these cases, one joint assignee or one of the heirs may execute the decree on behalf of others. There is only one decree held by two or more persons unlike separate decrees in case of joinder of claims or joinder of parties.

? What would happen if the decree specifies the interest of each decree-holder?

This practically speaking amounts to the rendition of several decrees. Where the joint decree specifies the interest of each decree-holder, each may execute his portion of the decree. If for instance, Ato Abebe and Ato Masresha obtained a joint decree against Ato Kenyalfal for 100,000 Birr, and the decree directed that Ato Abebe receive 25,000 and Ato Masresha receive 75,000 Birr, Ato Abebe will execute only his portion of the decree. If Ato Abebe and Ato Masresha were entitled for 100,000 Birr against the decree —debtor, both of them would have to join, or one of them would have to file an application to execute the decree for him, and on behalf of the other. In this latter case, for sure, the court will require the posting of security in order to protect the interest of the party who has not joined the application.

My dear distance student, in a joint-decree lets assume that the decree-debtor wants to satisfy the decree voluntarily. And in so doing, he was requested by one of the decree-holders to execute the decree. The decree-holder is not clear whether he can execute the whole claim for one of the joint decree — holders. Believing that you are a renowned lawyer in the vicinity, he approaches you seeking your advice as to what he can do.

As we said before, where the joint decree specifies the interest of each decree holder, each may execute his portion of the decree, and the decree holder can pay the portion of such party. Where the judgment debtor has paid one joint decree holder his share, the other may not execute the whole decree, and he can execute only as to his share. This situation is contingent upon the fact that payment be certified, since the payment can be denied. But in a joint-decree, which does not specify the interest of each joint-holder, the decree-debtor should not execute to only one of the joint decree-holders, unless the latter is authorized to execute on behalf of others. By the same token, where the judgment-debtor paid the entire amount to one joint decree holder, but the payment was not certified, the other decree holder could execute on the amount due to him. He may be subject to a second execution. This can be inferred from Art.396 of the Code.

Art 396. - Payment out of court to decree-holder

(1) Where any money payable under a decree of any kind is paid out of court, or the decree is otherwise adjusted in whole or in part to the satisfaction of the decree-holder, the decree-holder shall certify such payment or adjustment to the court whose duty it is to

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execute the decree, and the court shall record the same accordingly.
(2) The judgment-debtor may also inform the court of such payment or adjustment and apply to the court to issue a notice in the form prescribed by the Fourth Schedule of this Code to the decree-holder to show cause, on a day to be fixed by the court, why such payment or adjustment should not be recorded as certified.
(3) If, after service of a notice issued under sub-art. (2), the decree-holder fails to show cause why the payment or adjustment should not be recorded as certified, the court shall record the same accordingly.
(4) A payment or adjustment which has not been certified or recorded as aforesaid shall not be recognized by any court executing the decree.

? Who can apply to execute the decree in case of assignment or transfer?

Pursuant to Art 381 (1), where the decree is transferred from the original decree-holder to another person in writing or by the operation of the law, the transferee may apply for execution. Here you should not confuse transfer of the right in the decree with that of transfer of decree for execution. In this discussion, what is transferred is the right obtained by the decree of the court. It is transferred from the original decree-holder to any other person, may be by assignment, which you discuss in your discussion on the law of contracts, or by inheritance, which you discussed in the law of successions. Therefore, it is the person to whom the right in the decree is transferred can apply for execution. Once the application is granted, the decree may be executed in the same manner and subject to the same conditions as if the application were made by the original decree-holder. This is the message of Art.381 (2) of the code. This includes the transfer of the interest of a joint decree-holder. The transferee may apply for execution of his interest where ascertained or may apply as a joint decree-holder. Notice of application shall be given to the original decree holder and the judgment debtor when the assignee applies for execution. As per Art.381 (3), the decree shall not be executed until the court has heard any objection either may have to its execution. And the purpose of such notice is to permit the raising of defences to execution by the assignee, say for example, the assignee did not satisfy his agreement with the assignor or the judgment debtor to pay the assignor. Such notice, however, is not necessary where the transfer has been made by operation of the law. For a better understanding of the notion of transfer of right or assignment, you are advised to refer to pertinent provisions of the Civil Code, and your discussion on the law of contracts II.

? Can a decree be executed against another person than the decree-debtor?

In principle, a decree can be executed against the decree-debtor. It may, however, be executed against a person who has become surety for the performance of the decree or for a matter related to such performance. We must distinguish between the person who has become surety for performance of a decree and the one who was surety for performance of the original obligation. In the latter case, for instance, if Ato Wondimnew guarantees Mihirets debt to Ato Damtie, and Damtie sued Ato Mihret, but not wondimu, Ato Damtie cannot obtain execution of his decree against Wondimu by making him a party to the execution. In this case, the obligation of Ato Wondimu runs only on the original obligation. He does not guarantee the performance of the decree.

? In what circumstance, then we execute a decree against a surety or representative?

The best example of this kind is where a person has become surety for the performance of all or part of a decree in case of stay of execution under Art. 335 (1), or where a person has become surety for the restitution of property in execution under Art. 336, or for the payment of money or the fulfillment of any condition imposed on a party pursuant to court order under Art. 382.

My dear distance student, in these all cases above, the decree will be executed against the surety to the extent that he has made himself personally liable, and he is deemed to be a party to the execution of the decree proceeding. As such he would have to raise all questions relating to execution, discharge or satisfaction before the court executing the decree under Art.375 of the Code.

The other case where a decree may be executed against another person than the decree - debtor dies before the decree has been fully satisfied. In his case, the decree holder may apply

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to the court which passed it for execution against the legal representatives of the deceased judgment-debtor. In your discussion on the law of succession, you learnt that heirs are also legal representatives of the deceased.

? Do you think that the decree against the deceased decree-holder will always be executed against his children?

Lets assume that Ato Bedlu died after he became a judgment-debtor, leaving no property, and that his children inherited no property of Ato Bedlu. Realizing that one of the children of Ato Bedlu, Habtamu, is a millionaire, the judgment-holder decides to apply for execution of the decree against Ato Habtamu, the deceased decree-debtors child. Do you think that he will succeed? Will the decree be executed against the child of the deceased who inherits no property? Please, refer your discussion on the law of succession, and discuss it with your friends.

To execute a decree against another person than the decree-holder, the requirements making a person the legal representative of the deceased, or making him the surety of the decree-holder under the substantive law must be satisfied. If that is so, the decree will be executed against these persons in accordance with Art.383 of the Code.

Art. 383.- Application for execution against legal representative
Where a judgment-debtor dies before the decree has been fully satisfied, the decree-holder may apply to the court which passed it to execute the same against the legal representative of the deceased.

Until the legal representative has been brought on record as a party, the proceedings cannot continue, though the failure to add the legal representative does not cause the suit to abate. The provisions as to abatement under Art.50 (4) of the civil procedure code do not apply to proceeding on execution. The court should not proceed where a named party is not on the record, which reflects a policy requiring the presence of a named party in a proceeding.

Art. 50 — Death of ----- a party

(4) Nothing in this article shall apply to proceedings in execution of a decree or order.

Unless otherwise the execution is barred by a period of limitation, it will be executed against the legal representative. This point will be discussed next.

9.2.2 Period of Limitation

? What is the period during which an application for execution can be filed?

The code does not specify a period in which the first application to execute the decree must be filed. So, does it mean that an application for execution is not barred by limitation?

Art. 1845 of the civil code provides for the ten years period of limitation for the enforcement of obligations. Although this article refers to contractual obligations, it represents the general period of limitation as to all obligations. This is the import can infer that since the decree creates an obligation for the benefit of the decree-holder, the ordinary period of limitation for the enforcement of obligations should be applicable, and if the application for execution is filed more than ten years. After the decree is passed, it should be barred by limitation. This is a sound interpretation

? What is the import of Art.384 of the code?

Art.	384.-	Execution	when	barred
		Where an application to execute a decree, other than a decree granting an injunction, has been made, no order for the execution of such decree shall be made upon any fresh application submitted after the expiration of ten years from;		
		(a) the date of the decree sought to be executed; or		
		(b) where the decree or any subsequent' order directs any payment of money or the delivery of any property to be made at a certain date or at recurring periods, the date of the default in making the payment or delivery in respect of which the applicant seeks to execute the decree.		

The code under Art.384 above provides a period of limitation for a second application, and all matters relating to a second application are governed by this Article. An application for the execution of a decree might have been discontinued for different reasons. After this, the

decree holder may apply for a second time. Once an application to execute a decree has been made, no fresh application for the second or third time may be entertained after the expiration of ten years from (a) the date of the decree sought to be executed, or (2) where the decree or a subsequent order directs the payment of money or at recurring periods, the date of the default. Lets assume the following hypothetical example.

Suppose that a decree in favor of Ato Tadese was rendered in 1990 E.C against Ato Tewdros. In 1993, the court found that the judgment-debtor Ato Tewodros, was unable to pay the amount due under the decree, and it orders that the process of execution be discontinued as per Art.392 (2) of the Code.

? What will be the fate of the judgment-holder Ato Tadesse?

In 2000, the Ethiopian Millennium attracted so many diasporas to homeland, and the coming of his uncle from America brings a windfall to Ato Tewodros. Upon the unexpected death of his uncle Ato Tewodros, the only successor of the deceased inherited 5 million Birr. Now, the judgment-debtor has become able to pay the amount due under the decree. In this case, since it is only seven years from the date of the decree sought to be executed (1993), Ato Tadese, the judgment creditor, can bring a second application for execution.

? What would happen if still the judgment debtor is unable to satisfy the decree?

There is no restriction on the number of applications that the decree-holder may file within ten years. In the opinion of this writer, the period of limitation will be discontinued to be run if a second application is filed within the ten years period.

In determining whether the period has expired, the following points should be noted. The “date of the decree sought to be executed” means the date when the particular decree as to which enforcement is sought was issued. This is the reference to count the period of limitation for the first application. For the second application, this date will be the date where the court directs the process of execution, for instance under Art.392 (2), to be discontinued.

If, concerning Art 384 (b), the decree is for the payment of money in installments, the period runs from the date of default as to each installment. To elaborate this a little bit, let's consider the following example.

Example: After examining the judgment — debtor, why the decree should be executed, and order the debtor to make payments on installments. Accordingly the debtor were to make the first payment on Meskerem 1991, until the 24th payment was made on Nehassie 1992. To the courts surprise, he did not pay even the first installment. In this instance, each installment has its own period of limitation. As such, a fresh application as regards execution of the amount of the first installment will be barred on Meskerem 30, 2001 and by the same token, a fresh application as regards the execution of the amount of the 24th installment would be barred by Nehassie 2002. In effect, it means that on Tikimit 1, 2001, the decree-holder will be barred to execute the installment on Meskerem 1991, though he can claim and apply for the execution of recurring periods until the 24th payment.

? How is the period of limitation calculated if there is a subsequent order by the court?

As I have already discussed it above, the process of execution may be interrupted by the subsequent order of the court. Where there has been a subsequent order, such as an order under Art 392 (2), the period of limitation for the second application runs from the date of the order of the court to discontinue the process of execution rather than from the date of the decree.

The other situation where the period runs from a subsequent order of the court is where there is a compromise under Art.277 of the code. The period runs from the date that the compromise decree was recorded.

? Is there a third application after the ten years period is interrupted by a second application? For how long shall the right of the decree-holder subsist to execute the decree in case the debtor is unable to pay?

This will be the subject of a subsequent discussion. Next, we will see how the application for execution will be processed.

9.2.3 Process of Execution

My dear distance student, so far we have discussed how the application for execution can be made and the period within which it should be brought to court. We said that the application in principle should be made by the decree-holder against the decree-debtor. But exceptionally, the application for execution of a decree may be made by those persons to whom the right in the decree is transferred against the decree-debtor or his legal representatives. In this sub-section, we will concentrate on how such issue in execution can be addressed.

9.2.3.1 Examination of the Judgment-debtor

In the first subsection above, we discussed the conditions which should be complied with to file an application for execution. Upon receiving the application, the court must first determine whether there has been compliance with all the conditions we have just discussed.

? What conditions must be complied with to apply for execution of a decree?

My dear distance student, I will not provide the answer for this question. This question is raised, not to introduce you with a new idea, but is intended to check your level of understanding by yourself: discuss it with your friend.

If the conditions have not been complied with, the court must reject the application, or if the defect in the application can be remedied, the court must allow the applicant to do so on such terms it shall fix. Art. 385 of the code governs this condition

Art. 385. - Procedure on receiving application for execution

(1) On receiving an application for execution the court shall ascertain whether such of the requirements of the preceding Articles as may be applicable to the case have been complied with and may if they have not been complied with, reject the application or allow the defect to be remedied on such terms as it shall fix.
(2) Where an application is amended under sub-art. (1), it shall be deemed to have been an application in accordance with law and presented on the day when it was first presented.

(3) Every amendment made under sub-art. (1) shall be dated and signed or initialled by the presiding judge.

As per this provision, any amendment so made shall be dated and signed or initialed by the preceding fudge. The application is then deemed to be in accordance with the law. Where after all this, the application for execution is admitted, a copy is served on the judgment-debtor together with a summons requiring him to appear before the court on the day fixed in the summons to show cause why the decree should not be executed.

? What is the need to summon the judgment-debtor?

The main purpose to call upon the judgment-debtor is not to respond to the suit against him as the defendant or respondent does. But only to examine him and to see if he has any reason why he has not yet executed the decree. So, the summons will be issued as per Art.386 (1) of the code. To have a comprehensive understanding of the issues, I have extracted all pertinent provision for our discussion at hand from the code.

? What would happen if the judgment-debtor does not appear?

The answer to this question depends on the type of decree passed and the relief sought. Generally, if the judgment-debtor does not appear, the court will order the execution of the decree and it issues process for such execution. But it may be that the decree cannot be executed in the absence of the judgment-debtor. Where the application is made for execution of a decree for the payment of money, but the judgment-debtor does not appear, the court must order the judgment debtor to be arrested and brought before the court for the purpose of being examined as to his means in accordance with Art.386 (4). The judgment-debtor who is brought before the court in this manner will not have the opportunity to raise any objection to the execution. It would, however, seem that he could show that th summons was never served on him or that he was prevented from appearing for good cause. In such cases, he should have the opportunity to raise objection to the execution.

? When is the arrest of the judgment-debtor necessary?

Sometimes, notifying the judgment-debtor through summons may result in delaying the execution of the decree by the judgment-debtor. If the court is satisfied that the judgment-debtor is to leave the local limits of the courts jurisdiction, or to dispose of his property or remove it from those limits, with the purpose of delaying or obstructing execution, it may dispense with the initial service of summons and order the immediate arrest of the judgment-debtor as per Art.387 (1) of the Code. Such an order may be made pending the filing of an application for execution. The arrest warrant will serve the purpose of the summons, and hence no summons shall be issued under Article 386 (1). The judgment-debtor brought before the court in this manner, however, would not be precluded from raising objections to the execution, since he has been arrested in lieu of the service of summons. Any warrant of arrest must direct the officers so instructed with its execution to bring the judgment-debtor before the court unless he satisfies the decree by his personal obedience. This requirement is stipulated in Art 388 (1), and where he satisfies the decree, for example, by paying the money owed under the decree to the decree-holder, the warrant of arrest shall not be executed see sub-article (2) of the same.

Now, assuming that the appearance of the judgment debtor is ensured in one way or another, the court will consider the objections made by him to the execution of the decree, and make an appropriate order.

? What could be the possible order of the court?

According to Art.386 (2), where the judgment debtors appears, he shall be bound to answer, on oath, such questions as may be put to him by the court and the decree-holder. The court may summon any person or require the production of any record for the purpose of examination. Here you have to note that the purpose of this proceeding is to determine whether the judgment debtor is able to satisfy the decree, since a decree can only be executed

against the judgment-debtor who is able to satisfy it. If the court finds that the decree has been satisfied, or that the application is barred by limitation or otherwise objectionable, it will dismiss the application. This point answers the question I posed before, i.e. as to what conditions must be complied with to apply for execution. In this case, it means that the conditions for an application to execute a decree are not complied with; hence the court will dismiss it.

If the application is not dismissed, i.e. if the objection by the judgment-debtor is ruled out, the court will proceed to issue the process of execution, and if possible will order execution of the decree out rightly.

? How should the court determine the execution process?

Where the decree directs the delivery of specific property or the performance of an act which the judgment-debtor is able to perform, there will be no difficulty; the decree will be executed by attaching the property. Most decrees, however, will be for the payment of money, and in this case, the court first has to determine whether the judgment-debtor has the means to pay the amount due under the decree or any installment as to which execution is sought. Where the court considers that the judgment-debtor does not have the means to pay the amount due, it may not issue any process for execution. The burden should be on the judgment-creditor to persuade the court that the judgment debtor has sufficient means.

? Can the court dismiss the application if it considers that the judgment-debtor does not have any means to pay?

If the court considers that the judgment debtor is not able to pay the amount due in the decree, the court cannot issue process for execution. But it should not dismiss the application. As per art 392(2), the application will be pending, and a fresh application will not be necessary. Later on, it may issue process of execution at any subsequent time on being satisfied that the judgment-debtor has become able to pay such amount. In this case, the court should treat the application as pending until such time as the decree is satisfied or the

judgment-debtor dies and his estate is settled. This is particularly important in view of the period of limitation under Art 384 of the Code. But in the opinion of this writer, if the court cannot issue process of execution because it considers that the judgment-debtor cannot pay the amount due, the suit should be discontinued by the order of the court, save the right of the judgment-holder to apply when the judgment-debtor has sufficient means. This interpretation is in line with the practice in our courts.

I think this practice is logical, and is in light of the purpose of Civil Procedure. I do not think it will be logical to treat the application as pending how long? In determining whether the judgment debtor is able to pay the amount due, the court should not consider his property or income that is exempt from attachment, which we will discuss in the coming sections. Therefore, the court should not issue process for execution unless it is satisfied that the judgment debtor possesses more than the amount and his property or income, which he could surrender or pay to the decree-holder.

My dear student, I hope you enjoy the presentation, and the way issues are addressed. To refresh your memory, we are now answering the question on what possible decisions can the court give once the application for execution is admitted we said it will dismissed the application if the objection by the decree-debtor is sustained. The other decision may be a decision not to issue process of execution when the decree-debtor is unable to pay what is due. Next, we will see how and when the court will issue process for execution.

The court at, this stage, concludes that the judgment debtor is able to pay, and that he has not shown cause why the decree should not be executed.

? How does the court issue process for execution of the decree?

As we said earlier, the court will issue process for execution of a decree in such manner as the nature of the relief granted may require. The decisive factor in the determination of how the court should issue process of execution, therefore, is the type of relief granted. The code

specifically directs how various kinds of decrees are to be given, and how they should be executed. Hence, the court must issue process in accordance with such directions.

The court is authorized to order the detention of the judgment-debtor as a means of forcing him to comply with the decree in addition to issuing process for execution.

? In what circumstances can the court order the detention of the judgment debtor?

It has to be clear that the order of detention here is not an end in itself. But only is a means to force him to satisfy the decree. The court may issue such an order in two situations. The first is if the court concludes that prior to the time when the application for execution was filed, the judgment debtor was in a position to satisfy the decree and willfully failed to do so. That is to say that since he had the means to satisfy the judgment or the ability to perform the required obligation, there would no excuse for his failure. The other situation is if, after the court has examined the judgment-debtor and ordered him to comply with the decree; he refuses without good cause to do so. This is the clear message of Art.391 (1) of the Code. In either of the cases above, the court may order his arrest if he is not already under arrest and detention in a civil prison for a period not to exceed six months. But there seems to have some problem in practice. The writer of this material personally observed one of the Woreda courts in North Gondar ordering the detention of the judgment-debtor because he was unable to pay the amount due in the decree. You cannot force the person, who is unable to pay, by detaining him. Therefore, one has to take due care before ordering the detention of the judgment-debtor, especially in a country where there is no civil prison. It may result in punishing a person without criminal conviction. The sole purpose here is to detain a resistant judgment-debtor so as to force him to comply with the decree.

? What is the rationale behind this?

The rationale behind this is the judgment-debtor, who is able to pay, would satisfy to avoid detention. Have you ever encounter, in criminal cases, who preferred to be fined to imprisonment? Yes! Especially, those who can pay money do not want to restrain their privacy. The judgment-debtor will be psychologically forced to satisfy accordingly.

? Is detention a substitute for paying the amount due? What will be the fate of the detained judgment-debtor after the expiry of six months?

The sole purpose of detention here is to force the judgment-debtor to comply with the decree. It bakes no bread t the judgment-creditor if the judgment-debtor is detained. What the judgment-creditor really needs to get compensation so, the detention is not a substitute for satisfying the decree. Once detained, he may be released upon paying the amount due under the decree in accordance with Art.390 (1) or when the decree holder requests so, or at the expiry of the six months period. Once he has been released, whether by paying or not, he may not be rearrested in execution of the same decree. This is the message of Art.390 (2) of the code.

Note: whether to order the detention of the decree-debtor or not is in the discretion of the court. The court should do so only when persuaded that the judgment debtor is failing to comply with the decree despite the fact that he is able to do so. Among other things, the detention of the judgment-debtor should not be the result of the wishes of the judgment-creditor. Since, as I said, the detention is not substitute for execution, the court is still to issue process for execution, notwithstanding an order of arrest or detention. To put it in other words, the arrest or detention or the release therefrom does not operate in a way to discharge him from the debt or obligation.

So far, we have seen how the order to process is issued. The order of process shall contain all requirements under Art. 392(3) and (4), and be delivered to the execution officer. He is required to execute it in accordance with the provisions of the Code. In the coming section, we will discuss execution of some specific decrees.

? Do we have execution officer in Ethiopia? Which organ is to be called execution officer?

9.2.3.2. Execution of Decrees for payment of Money

Dear student, we said that the code specifically directs how various kinds of decrees are to be executed. The decree itself may provide for the payment of money or the payment of money as an alternative to some other relief. In this case, the decree may be executed by the attachment and sale of the judgment-debtors property. But when the decree orders the payment of money as an alternative to other relief, it must first be shown that the other relief was unavailable. See our discussion on “Giving judgment and Decree” especially the discussion on art 185.

According to Art.394, the property attached may be movable or immovable property, and that there is no requirement that the decree first proceed against movable property. However, it will be more convenient for the decree holder to proceed against movable property first. The Code only provides different rules governing sale of movable and immovable property. Not to affect the interest of the decree-deptor, however, the value of the property attached must as nearly as may be, correspond with the amount due under the decree. The decree-holder cannot require the sale of valuable property to satisfy the decree where less valuable property would suffice.

? To whom shall the money be paid?

Dear student, the money payable under the decree may be paid into the court whose duty is to execute the decree or to the decree holder out of the court or otherwise as the court which passed the decree may direct. This rule is provided under Art.395 of the Code.

Art.	395.-	Modes	of	paying	money
(1)	All money payable under a decree shall be paid as follows, namely:				
(a)	into the court whose duty it is to execute the decree:				
(b)	out of court to the decree-holder; or				
(c)	otherwise as the court which passed the decree directs.				

(2) Where any payment is made under sub-art. (1), notice thereof shall be given to the decree-holder.

A payment of a portion of the decretal amount is valid to the extent of such amount, although the decree holder can still obtain execution for the balance. As per art 395(2), notice must be given to the decree-holder if the payment is made to the court. When the money is paid out of court or the decree is otherwise adjusted in whole or in part to the satisfaction of the decree-holder, he must certify such payment adjustment to the court whose duty is to execute the decree, and the court must record the same. This is what has been provided for under Art.396 of the Code.

? Can you list some examples of adjustment that would have to be certified under this rule?

The following are examples of adjustment that would have to be certified to the court under this rule. The first is an agreement to accept a portion of the decremental amount to be paid in installments as full satisfaction. And the other is a discharge by the decree-holder of one joint judgment-debtor, and the third one is an agreement to hold property jointly where the decree directs a division. If there are joint decree-holders, satisfaction should be certified by all of by one authorized to certify by the others and to give a discharge; otherwise, the certification will not be on the others who can still execute on their portion of the decree. Also the judgment-debtor may inform the court of such payment or adjustment, and apply to the same to issue a notice to the decree-holder to show cause, on the day fixed by the court, why such payment or adjustment should not be recorded as certified. If after service of notice, the decree-holder fails to show such cause, the court records the payment or adjustment in accordance with Art.396(3) of the Code. If the decree-holder fails to appear, the court should still require proof of the payment or adjustment before recording it.

? What is the need to require the decree-debtor to prove the adjustment?

The decree-holder may fail to certify the adjustment. Thus, the decree-debtor is protected against the decree-holders failure to certify the payment. Such protection is very important since the payment or adjustment which has not been certified or recorded cannot be recognized by the court executing the decree according to Art.396(4) of the Code. This in effect means that if the judgment-debtor has paid the amount of the decree but this has not been certified or recorded, he cannot object the execution on the ground that he has made payment. The objection as such cannot be entertained. This rule applies even though he contends that he was misled by the decree holder, and therefore failed to apply for certification. To avoid any such problems, the judgment-debtor who has paid the money out of court or entered into an out-of-court adjustment should always apply to the court for certification unless he is certain that the decree-holder has done it.

9.2.3.3. Execution of Cross-Decrees

My dear student, as a result of two independent judgments, or as a result of a consolidated suit, both parties may be judgment-holder and judgment debtor. It means that the judgment-holder in the case at hand may be a judgment-debtor in another judgment.

? How can the two decrees like that be executed?

If an application is made by a decree-holder against the judgment debtor for execution of a decree for the payment of money at the same time the judgment-debtor has also applied for execution of a decree for payment of money against the decree-holder, which was obtained in a separate suit, their decrees are called cross-decrees. The execution of such decrees is governed by special rules.

In what circumstances do the rules relating to cross-decrees apply? In order for the rules relating to cross-decrees apply, the following conditions provided under Art. 397 of the Code must be satisfied. Art 397.

? Can you list out the conditions?

My dear distance student, there are five conditions to be satisfied in order for the rules relating to cross-decrees apply:

1. Both decree-holders must have made application to the same court for execution of their decrees. This implies that both decrees should be issued by the same court since only the court which passed the decree can execute. The principle of consolidation will apply;
2. The decrees must have been obtained in separate suits. If, for instance, they were obtained in the same suit, the court in its judgment would have set-off one's claim for the other;
3. Both decrees must be for the payment of money. If one of the decrees is for the payment of money, and the other for recovery of property, the rules relating to cross-decrees will not apply for execution of such decrees;
4. The parties must be the same in the sense that the decree-holder in one of the suits was the decree-debtor in the other suit and the parties were involved in both suits in the same capacities; that is to say if the judgment-debtor in one of the cases in his own capacity was the legal representative of the judgment-creditor in the other suit, the rules relating to execution of cross-decrees would not apply; and
5. Both decrees must be capable of execution at the same time by the court.

As per Art.397 (4), the holder of a decree passed against several persons jointly and severally may also treat it as a cross-decree in relation to a decree passed against him singly in favor of one or more of such persons. What is important is the fulfillment of the five conditions under that provision of the code.

? Can the judgment-debtor consider his decree against an assignee of a decree as cross-decree?

As we discussed before, the rights in a decree may be assigned to any person who was not party to the original suit, and the assignee may apply for execution of the decree. In this case, for all practical purposes, the claims in the decree sought to be executed belong to the assignee. So, we can say that the judgment-creditor is the assignee, and not the original previous decree-holders. Decrees may be treated as cross-decrees where the assignee of the decree assumed judgment-debits due by the assignor to the judgment-debtor or where the judgment debtor himself holds a decree against the assignee. This situation is treated under Art.397(2) of the Code. Therefore the judgment-debtor, against whom an application for execution has been filed, can consider the decree he himself, holds against the assignee as a joint-decree, and seek the execution thereof altogether.

? How are joint decrees-executed?

Where the decrees constitute cross -decrees, the following rules enshrined under art. 397 of the code govern execution.

Art. 397.- Execution in case of cross-decrees

(1) Where applications are made to a court for the execution of cross-decrees in separate suits for the payment of two sums of money passed between the same parties and capable of execution at the same time by such court, then :
(a) if the two sums are equal, satisfaction shall be entered upon both decrees; and
(b) if the two sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction on the decree for the smaller sum.
(2) The provisions of sub-art. (1) shall apply where either party is an assignee of one of the decree and as well in respect of judgment-debts due by the original assignor as in respect of judgment-debts due by the assignee himself.
(3) The provisions of sub-art. (1) shall not apply unless ;
(a) the decree-holder in one of the suits in which the decrees have been made is the judgment-debtor in the other and each party fills the same character in both suits, and
(b) the sums due under the decrees are definite.
(4) The holder of a decree passed against several persons jointly and severally may treat it as a cross-decree in relation to a decree passed against him singly in favour of one or more of such persons.

If the sums due under both decrees are equal, the court enters satisfaction upon both decrees. In effect, one decree cancels out the other, and hence both are deemed to be satisfied. Where the sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for only so much as remains after deducting the smaller sum. Suppose that Ato Gelata has a decree for 100,000 against Ato Balcha, and Ato Balcha has a decree for 40,000 Birr against Ato Geleta. The decrees are considered as cross-decrees. So long as both applications for execution are pending before the same court, Ato Balcha cannot execute his decree. Rather Ato Geleta can execute his decree against Ato Balcha only for 60,000 Birr; the 40,000 claim of Ato Geleta is cancelled by the 40,000 Birr decrees of Ato Balcha. In this regard, as per Art.397(1) (b), satisfaction will be entered upon both decrees. If however, both decrees were for 1000,000 each, Geletas decree will cancel Balchas.

To sum up, in order for the rules on execution of cross-decrees to apply, both decree holders must apply for execution to the same court, and the five conditions must be satisfied cumulatively. At this stage, you have to distinguish cross-decrees from cross-claims under the same decree. In the latter case, there is only one decree. If the court finds in favor of the plaintiff in the principal claim and in favor of the defendant on the counter-claim or set-off, the decree shall state what amount is due to each party and the final decree shall be for the recovery of the balance due to either party. There is no cross-decree, and this situation is governed by Art.195 of the code. Also read arts 398 and 399 art. 195.

Art. 398.- Execution in case of cross-claims under same decrees
Where application is made to a court for the execution of a decree under which two parties are entitled to recover sums of money from each other, then :
(a) if the two sums are equal, satisfaction for both shall be entered upon the decree; and
(b) if the two sums are unequal, execution may be taken out only by the party entitled to the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered upon the decree.

9.2.3.4. Execution of other Decrees

My dear distance student, so far we have discussed execution of decrees for the recovery of money, and how cross-decrees can be executed. As we said before, the decree may provide for the recovery of specific movable property or a share of such property is to be executed by the seizure of the property and the delivery to the decree-holder or such person as he appoints to receive delivery on his behalf. Art 399 provides the rule for this situation.

The rule under Art 399 is applicable only to property in the possession of the judgment-debtor. If the property is in the possession of someone else, the decree-holder must proceed

to attend that property. Or if the property is in the custody of the bank, Art 399 would not be applicable. In this case, the provisions of Art 409 of the code will apply.

The person who is in possession of the property of the decree-debtor might have his own interest. When the decree-holder proceeds to attach that property, the person in possession may have the chance to raise an objection to the attachment that the property belongs to him than the decree-debtor. This point will be addressed when we discuss the issue of objection on attachment in section 9.3.

? Is this rule applicable to all types of property?

This rule, the rule on seizure and delivery of property to the decree-holder, refers only to specific movable property or a share in property that is capable of being delivered. In this case, the solution will be to proceed by way of attachment.

If the decree directs, as we discussed under Art.195, that the decree-holder recover specific movable property, say a bicycle, and that he receive the value of the property if delivery of the thing is impossible, the decree-holder must first apply for recovery of the movable property under this rule. And, unless otherwise the decree directs that the decree-holder may elect whether to receive the property or the sum of money, he cannot elect to enforce the money portion of the decree. He can do so only when it is directed by the decree.

In case of a decree for the delivery of immovable property, possession is to be delivered by the execution officer or such person as he may appoint to receive delivery on his behalf. This is governed under Art.402 of the Code.

Art. 402.- Decree for immovable property
(1) Where a decree is for the delivery of any immovable property, possession thereof shall be delivered to the decree-holder, or to such person as he may appoint to receive delivery on his behalf, and, if necessary, by removing any person bound by the decree who refuses to vacate the property.
(2) Where a decree is for the joint possession of immovable property, possession shall be delivered by affixing a copy of the decree in some conspicuous part of the property and proclaiming by beat of drum or other customary mode the substance of the decree.
(3) Where possession of any building or enclosure is to be delivered and the person in possession, being bound by the decree does not afford free access, the execution officer may remove or open any lock or bolt or break open any door or do any other act necessary for putting the decree-holder in possession.

In necessary, remove any person bound by the decree who refuses to vacate the property. Where possession of a building or enclosure is to be delivered and the person who is bound

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by the decree is in possession does not afford free access, the execution officer may remove or open any lock or break any door or do any act necessary for putting the decree holder in possession. In our discussion under Art 36(4), we said that all occupants must be made parties in a suit to recover possession of immovable property. Such persons for sure would be bound by the decree, and the execution officer could take action against them.

? What other decrees than those discussed above can be passed by the court?

The plaintiff may in his suit against the defendant, claim the specific performance of the contract under Art.1776 of the Civil Code, and that the court may direct the judgment-debtor to specifically perform a contract. On the other hand, the decree may contain an injunction that the judgment-debtor do or refrain from doing a specific act as per Art.2121 of the Civil Code.

? How is then such kind of decrees executed?

Where the judgment-debtor has had an opportunity to comply with the decree and has willfully failed to do so, the decree may be executed by the attachment and sale of his property and the court may award the decree-holder such compensation as it thinks fit out of the proceeds of the sale. Art 400 of the code provides for this situation.

Art. 400.- Decree for specific performance or injunction

(1) Without prejudice to the provisions of Arts. 389, 415 and 427, where the party against whom a decree for the specific performance of a contract or for an injunction has been passed has had an opportunity of complying with the decree and has wil-fully failed to do so, the decree may be executed by the attachment and sale of his property and the court may, out of the proceeds, award to the decree-holder such compensation as it thinks fit.
(2) Nothing in sub-art. (1) shall prevent the court from directing that the act required to be done may be done as far as practicable by the decree-holder or some other person

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appointed by the court, at the cost of the judgment-debtor, and upon the act being done the expenses incurred may be ascertained in such manner as the court may direct and may be recovered as though they were included in the decree.

If that is the case, the judgment-debtor may avoid the attachment or sale by paying the money. As long as the party has had the opportunity to satisfy the decree, there is no requirement that he be given notice before the property is attached. The court awards such monetary compensation as a substitute for the performance ordered in the original decree. However, once such compensation is paid, the decree is satisfied, and the decree-holder cannot enforce the decree further.

? What would happen if the decree could never be compensated?

In one case, an employee of the Amhara Development Association was summarily dismissed. Upon his application to the Bahir Dar Woreda court it was found that the ground for summary dismissal under art 27 of the labor proclamation were non-existent in the case, and the court held that the dismissal was unlawful thereby ordering the ADA to reinstate the employee in his previous position. The judgment-debtor and not appeal, and at the same time did not reinstate the employee to work. The employee (the judgment-holder apply for execution, though still Amhara Development Association refuse to reinstate the employee.

? How would you execute such decree if you were the presiding judge?

My dear friend, if especially the judgment-holder wants to be replaced to his previous work, the order of attachment and sale of the property of the judgment-debtor may never be a solution. The court instead may order the arrest and detention of the judgment-debtor, and the judgment debtor will not be released until he sees to the court that the required act is performed. So, do not you think that ordering the head of the Amhara Development Association to a detention is a solution?

If you do so, believe me, the decree will be executed the next day! This is what Art. 400(1) intends to tell you. I am sure you got my point. Pursuant to Art. 400(2), the court may also direct that the act required to be shall be done, as far as practicable, by the decree-holder or some other person appointed by the court, at the expense of the judgment-debtor. When the act is done in this way, the costs incurred will be determined by the court and may be recovered as though they were included in the decree.

My dear distance student, we have now come to conclude the discussion on different types of decree passed by a court. Next, we will see how assets of the judgment-debtor may be shared by various decree-holders.

9.2.4. Ratable Distribution

Sometimes, a number of decree-holders against a single judgment-debtor may apply for execution. To the best of this writers knowledge, there was one case against which a number of independent judgment-debtors applied for execution of their respective decrees. When the then Bure Baguna Mineral Waters co. were unable to pay its debts, among others, works for severance pay and wage, the Bank for recovery of the mortgage, the tax authority, and some creditors were among those who applied for execution of independent decrees in the west-Gojam High Court.

? How would then the court executing the decrees distribute the assets of the debtor for these various decree-holders?

If assets are held by or under the authority of the court, and more than one application for execution of money decree is pending before the court, Art 403 of the Code provides that the assets be shared by the various decree-holders.

Art.	403.-	Distribution	of	assets
Where assets are held by or under the authority of a court and more persons than one have, before the receipt of such assets, applied to the court for the execution of decree for the payment of money passed against the same judgment-debtor and have not obtained satisfaction thereof, the assets, after deducting the costs of realization shall be distributed among all such persons in the prescribed manner.				

When the assets of the decree-debtor are to be shared by the various decree-holders in this manner, such a procedure is called ratable distribution. The main objective in rateable distribution is to provide an inexpensive and expeditious remedy for execution of money decrees held against the same judgment-debtor without the necessity of separate proceedings.

? What are the conditions for a ratable distribution to take place?

In order for a ratable distribution to take place, the following conditions must be satisfied:

- 1) Assets of the judgment-debtor must be held by or under the authority of the court;
- 2) Prior to the receipt of such assets, more than one person must have applied for execution;
- 3) The applications must be for the execution of decrees for the payment of money rendered against the same judgment-debtor; and
- 4) The decrees must be unsatisfied.

According to Art 403, if the aforementioned conditions are cumulatively satisfied, the assets after deduction of the costs of realization shall be distributed among all persons “in the prescribed manner.” That is to say according to the amount that each is entitled to receive at the time of distribution, and each decree-holder should receive what is called a prorata share of the proceeds i.e. the proportion of the proceeds that his decree bears to the other decrees.

? What do we mean by a prorata share of the proceeds?

Dear student, suppose that three judgment holders A, B & C have decrees against the judgment debtor x. A has a decree 10,000, B has for 20,000 and C has a decree for 60,000. In the final analysis, the total asset of the judgment-debtor is found to be 30,000, which is one-

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third of the total claim i.e. 90,000 Birr. So, each applicant would be entitled to receive one-third of his decree.

A would get $\frac{1}{3} \times 10,000 = 3,333$

B Would get $\frac{1}{3} \times 20,000 = 6,666$

C Would get $\frac{1}{3} \times 60,000 = 20,000$

This will constitute 30,000 Birr. This procedure on rateable distribution ensures that all applying decree-holders will share his claim in the assets available for distribution. The problem is when there are parties who have priority in case of distribution under special laws over others claiming the same.

? Which parties have priority?

In case the total asset of the judgment-debtor is not enough to cover the whole debt against him, some parties to such a proceeding are given priority over the others. For instance, under the labor law, workers claiming wage are given priority over any other person claiming execution against their employer. The mortgagor is given priority over any other person claiming execution of a decree over a mortgaged immovable property of the judgment-debtor. On the other hand, if the government has a decree for the recovery of unpaid tax by the judgment-debtor, the tax law gives priority of claim to the tax authority over other decree holders. This implies that different legislations give priority to different category of persons. Such group of persons having priority of claim over others is called secured creditors. It means that if there are a number of decree holders, some secured and some ordinary, the rules on rateable distribution based on prorata basis will not be applied. It is only after the decree of secured creditors (those decree-holders) having priority over others) have been executed and satisfied that the decree of unsecured creditors will be executed. If the total asset only satisfies one of the secured decree holders, there is no prorata distribution, and the decree of unsecured creditors will remain unexecuted.

Suppose that Dashen Bank, the mortgagor, Ato Abebe and Ato Lema has become decree-holders against Ato Temitim, Dashen Bank has 100,000 Birr, Ato Abebe has a decree for 50,000 Birr, and Ato Lema 40,000 Birr. The only asset of the judgment-debtor is his building

found in Bahir Dar, which is mortgaged by Dashen Bank. After attachment, it was sold 100,000 Birr.

? How should the proceeds of this property of the judgment-debtor be distributed?

It is clear that Dashen Bank has priority over others since it has mortgaged the property at hand. As such, first, Dashen Banks claim will be satisfied, and hence the 100,000 birr will be paid to Dashen Bank. The decree of Ato Abebe and Ato Lema against Temitim will remain unexecuted; awaiting for the time that Temitim becomes able to pay the amount due under the decree.

My dear distance student, till now the discussion is progressing excellently. If applicants have the same status, one having no priority over the other, the decrees applied for execution will be satisfied based on rateable distribution, and each will get his prorated share of the asset. Good I will pose the following question for your own discussion, and thereby wind the discussion of this section.

? How are decrees by all parties claiming to have priority executed?

9.3. Attachment and Sale

Overview;

Dear student welcome to the final section of Chapter 9. This is the most important section of the execution process. Every effort in the decree execution process is to ensure that the decision of the court will be complied with and that the decree holder will receive what is due in the decree holder will receive what is due in the decree. If the judgment-debtor voluntarily satisfies the decree, that will be safe and healthy. But in the practical world that is not the case. The judgment-debtor, at least, will willfully delay the execution of the decree,

and that is where the involvement of the court to execute the decree is justified and comes into being. The most important part of the execution process is the attachment and sale of property of the judgment-debtor to satisfy the decree. The term attachment refers to the process in which the property of the decree-debtor is brought under control of the court. The court then transfers the result of the attachment to the decree-holder if it is what the decree directs or it will sell the property, and pay the proceeds of the sale to the decree holder. This is the primary method by which decrees are executed.

Although coercive methods against the judgment-debtor may be employed, it is only by attachment and sale of the property of the judgment-debtor that the court can guarantee the satisfaction of the decree. It is this process that we will discuss in this section.

Objective:

After successfully completing the study in this section, the student will be able to;

- identify where attachment may be ordered
- describe the different methods of attachment in light of the subject matter of each decree
- raise and address objections to attachment
- differentiate rules applicable to sale of movable and immovable property
- explain what properties are not subject to attachment and sale for decree execution.

9.3.1. Attachment

Dear student, I hope you remember that the decree-holder, who files for execution, must indicate whether he wishes the decree to be executed by the attachment and sale of property of the decree-debtor, and if he does so in accordance with art. 387(3), the application for attachment must be accompanied by certain particulars the term attachment refers to depending on the nature of the decree to be executed, different methods of attachment may be employed. And hence, the discussion in the next sub-section will be advocated to address issues on the methods of attachment.

9.3.1.1. Methods of Attachment

The code under Art.379 provides for the rule governing directions as to how various types of property are to be attached and it must be clear that the application for attachment must be for the attachment of specific property of the judgment-debtor.

Art. 379.- Particulars in application for attachment

(1) An application for the attachment of any movable property belonging to the judgment-debtor shall be accompanied by an inventory of the property to be attached, containing a reasonably accurate description of the same.

(2) An application for the attachment of any immovable property belonging to the judgment-debtor shall contain:

- (a) a description of such property in accordance with Art. 225 (2) Provided that, where such property is entered in the register of immovable property, the court may require the applicant to produce a certified extract from such registers; and
- (b) a specification of the judgment-debtor's share or interest in such property to the best of the belief of the applicant and so far as he has been able to ascertain the same.

? Can the decree-holder apply for the attachment of every specific property of the decree-debtor?

Here, we must note that certain properties belonging to the decree-holder are exempt from attachment. In any circumstances, property belonging to the judgment-debtor listed under art 404 cannot be attached.

Art. 404.- Property not liable to attachment

The following property shall not be liable to attachment or sale at any stage of the proceedings:

- (a) the necessary wearing-apparel, cooking vessels, bed and bedding of the judgment-debtor and his family;
- (b) tools, instruments or implements of any kind used by the judgment-debtor in his profession, art or trade;
- (c) where the judgment-debtor is an agriculturist, such cattle and seed-grain as may, in the opinion of the court, be necessary to enable him to earn his livelihood;
- (d) such amount of food and money as may, in the opinion of the court, be necessary for the judgment-debtor and his family for a period of three months;
- (e) pensions and alimonies;
- (f) without prejudice to the provisions of Art. 121 of the Maritime Code, two thirds of the judgment-debtor's salary, provided that the entire salary shall be exempt from liability to attachment where it does not exceed two dollars per day and the judgment-debtor has no other income;
- (g) any other property declared by or in accordance with any law to be exempt from liability to attachment or sale.

? What is the rationale behind this rule?

There is no minimum amount of property that the judgment-debtor can retain, but exemptions are made so that the judgment-debtor will not be deprived of the necessities of HUMAN LIFE and the opportunity to earn a livelihood. This is an aspect of human rights. It is clear that the exemptions are made as an attempt to leave the judgment-debtor with the minimum amount of property that he needs to subsist, and to ensure his human existence. On the whole, relatively little property is exempt from attachment, and it is likely that the decree holder will receive some satisfaction despite the exemptions.

Since the issue of property exempt from attachment is highly contentious in practice, I am sure you will substantiate your understanding by reading real cases decided by our supreme courts. You may find some compiled cases in “*የኢትዮጵያ ፍርድ ቤቶች የፍርድ ውሳኔዎች*”. Now it is time to consider specific directions for attachment of various kinds of property. Depending on the nature of the property and the person who has control over it, different methods are to be employed.

? How is the attachment of movable property effected?

If the decree holder indicates, and the court decides that a specific movable property to be attached, the attachment is made by physical seizure of the property in the hands of the judgment debtor, other than agricultural produce. The execution officer must keep the property in a safe place and be responsible for its custody. Art 406 of the code provides for this situation.

The order under this article should direct the execution to seize the property provided that it is in the possession of the judgment-debtor. Where the goods are stored in a warehouse or a similar place and it is inconvenient to remove them, an attachment can be effected by

affixing the warrant of attachment to the outdoor of the building. However, the attachment officer should ordinarily take care of the goods. If the property is subject to natural decay, for example tomatoes, or the expense of keeping it in custody is likely to exceed its value, the execution officer may sell it at once as per art 406(2) of the code. The proceeds then obtained will be brought before the court for execution.

? How is agricultural produce to be attached?

Art 407 of the code provides for the mechanism of attaching agricultural produce. The attachment, where the property is agricultural produce, will be made by affixing the warrant rather than by physical seizure. Where the produce is a growing crop, the warrant of attachment is to be affixed on the land on which the crop is growing. If, however, the produce has been cut or gathered, the warrant is affixed on the threshing floor or place of treading out grain or the like or fodder-stack in which it is deposited. Another copy of the warrant must be affixed on the outdoor or some other conspicuous part of the house in which the judgment-debtor ordinary resides, or with leave of court, on the place in which he carries on business or personally works for gain, or in which he is known to have last resided or carried on business. Once the warrant is affixed, the produce is deemed to have been passed into possession of the court, and it is as if the property were physically taken away into the custody of the execution officer. Thus the decree-debtor may not legally remove the produce.

Once the agriculture produce is attached the court then will make such arrangements for custody as it deems necessary, and the decree-holder must, in his application for attachment of a growing crop, specify the time at which it is likely to be cut or gathered. This is what has been stipulated under art 408 of the code.

Sometimes, the property sought to be attached may not be in the possession of the judgment-debtor, but in someone elses custody. In this case, the method of attachment depends on the nature of property to be attached.

Lets assume that the judgment-debtor has a claim of 100,000 Birr against Ato Mersha, and in his application the judgment-creditor to be attached. The debt was not a secured one.

? How do you attach this claim of the debtor against Ato Mersha?

Where the property to be attached is a debt not secured by a negotiable instrument, the attachment will be made by a written order prohibiting the judgment-debtor from receiving the debt and at the same time prohibiting his debtor from paying the judgment-debtor until further order of the court is given. A debt so attached is said to be “garnished” and the person owing the debt to the judgment-debtor is said to be the “garnishee.” A copy of the order is to be affixed on some conspicuous place of the courthouse and another copy is to be sent to the garnishee. For a better understanding, you have to read art 409 of the code.

Art. 409.- Attachment of property not in possession of judgment-debtor

- (1) Where the property to be attached is a debt not secured by a negotiable instrument or a debt owing to the judgment-debtor under another decree, the attachment shall be made by a written order prohibiting the creditor from recovering the debt and the debtor from making payment thereof until the further order of the court.
- (2) Where the property to be attached is a share in the capital of a corporation, the attachment shall be made by a written order prohibiting the person in whose name the share may be from trans-fering the same or receiving any dividend thereon and the corporation from registering any transfer of such share.
- (3) Where any other movable property or a sum of money is to be attached, the attachment shall be made by a written order prohibiting the person in possession of the same from giving it over to the judgment-debtor.
- (4) A copy of the order made under sub-arts. (1)-(3) shall be affixed on some conspicuous part of the court-house, and another copy shall be sent in the case of the debt, to the debtor, in the case of the share, to the proper officer of the corporation, and, in the case of any other movable property, to the person in possession of the same.
- (5) A debtor prohibited under sub-art. (1) may pay the amount of his debt into court, and such payment shall discharge him as effectually as payment to the party entitled to receive the same.
- (6) Any order under this Article shall be accompanied by a notice informing the person in possession of the property that he may appear before the court on a day to be fixed in the notice to show cause why he should not comply with the order.
- (7) When such person so appears, the provisions of Arts. 418-421 shall apply by analogy.

Where the property to be attached is a share in the capital of a corporation, the attachment is made by a written order prohibiting the person in whose name the share may be, i.e. the judgment-debtor or the person holding the share on his behalf, from transferring the share or receiving any dividend, and the corporation from registering any transfer of the share. Please

scrutinize exhaustively the provisions incorporated under art 409 until art 413 of the Code. I will skip it for your personal reading by extracting the articles from the code.

Art. 410.- Attachment of share in movables

Where the property to be attached consists of the share or interest of the judgment-debtor in movable property belonging to him and another as co-owners, the attachment shall be made by a notice to the judgment-debtor prohibiting him from transferring the share or interest or charging it in any way.

Art. 411.- Attachment of salary

(1) Where the property to be attached is the salary of an employee, the court may order that the amount due be withheld from such salary either in one payment or by monthly instalments, as the court may direct.

(2) A copy of an order made under sub-art. (1) shall be sent to the employer of the judgment-debtor and the amount due under the order, or the monthly instalments, as the case may be, shall there upon be withheld from the judgment-debtor's salary and remitted to the court.

(3) Where the attachable proportion of the judgment-debtor's salary is already being withheld and remitted to a court in pursuance of a previous and unsatisfied order of attachment, the employer of the judgment-debtor shall forthwith return the subsequent order to the court issuing it with a full statement of all the particulars of the existing attachment.

Art. 412.- Attachment of negotiable instruments

Where the property is a negotiable instrument not deposited in a court, nor in the custody of a public officer, the attachment shall be made by actual seizure, and the instrument shall be brought into court and held subject to further orders of the court.

They all refer to the attachment of an intangible right of the judgment debtor. Whenever an order for the attachment of these rights is made under these provisions, it must be accompanied by a notice informing the garnishee, the officer, or the employer in case of attachment of the salary of the judgment-debtor, or any person ordered to do so. Thereby the court will require such person to appear before it on the day to be fixed in the notice to show cause why he should not comply with the order. This gives that person the opportunity to contest the judgment-debtors right to the said property, and if that is the case, the provisions of the code relating to the filing of objections, which will be discussed subsequently will apply.

? What could be the possible objection raised by such person?

The person ordered, who is supposed to be the employer of the judgment-debtor, to attach one-third of the salary, any object that the judgment-debtor is not his employee. On the other hand, the garnishee could contend that he is not indebted to the judgment-debtor or that though he was indebted, the debts are set-off, etc. At this time, any objection relating to the right of the judgment-debtor to receive that intangible right may be raised as an objection.

My dear student, at this stage what is worth discussing is the method employed in the attachment of immovable property.

How is the order of the court to attach immovable property belonging to the judgment-debtor effected?

Dear student, it is not an easy matter to attach immovable property. In the case of attachment of immovable property and a number of actions must be taken. Concerning the ownership of immovable property, what is important is not the actual possession of the thing, but the title. Therefore, the court should take care with regard to prohibiting the transfer of title. In this regard, the court should, first, issue an order prohibiting the judgment-debtor from transferring or charging the property with any right in rem. This means that the court should prohibit the charging of any right against the property itself such as mortgage, and prohibiting all persons from taking any benefit from a transfer or charge. This is the clearest message of art 414 of the Code.

Art. 414.- Attachment of immovable property
(1) Where the property is immovable, the attachment shall be made by an order prohibiting the judgment-debtor from transferring or charging the property with any right in rem, and all persons from taking any benefit from such transfer or charge.
(2) The order shall be proclaimed at some place on or adjacent to such property by beat of drum or other customary mode, and a copy of the order shall be affixed on a conspicuous part of the property and then upon a conspicuous part of the court-house.

In the previous times, before the introduction of modern means of communication, the order of the court would be proclaimed at some place on or adjacent to the immovable property by

beating of drums or any other customary mode. But nowadays, a copy of the order will be affixed on a conspicuous part of the property, and a copy of the order will be sent to the authority of the government responsible for registration of immovable property so that such copy will be annexed to the file documenting and evidencing title to such immovable property. This publicity of the attachment order will protect the interest of third parties (potential buyers or mortgagors). In this case, there will be no possibility that the property will be charged with such a right after it is attached. If the third party does so after the order of the court is proclaimed as provided above, such third party would not get any right in the property. For a better understanding, I advise you to resort to your discussion on the law of property, especially on the provisions of the civil code on arts 1195, 1196 and 1266. The immovable property will be effectively attached.

Dear student, at this stage, the property is effectively attached, and among other things, the judgment-debtor is prohibited to transfer the title on immovable property to third parties.

? What is the next step?

The decree-debtor will be given the chance either to satisfy the decree or to subject his property for sale so that the decree will be satisfied by the proceeds of the sale. The attachment will be valued until the conditions mentioned under art 415 of the code are satisfied.

Art. 415.- Removal of attachment after satisfaction of decree

Where:

- (a) the amount decreed with costs and all charges and expenses resulting from the attachment of any property are paid into court;
- (b) satisfaction of the decree is otherwise made through the court or certified to the court; or
- (c) the decree is set aside or reversed, the attachment shall be deemed to be withdrawn, and, in the case of immovable property, the withdrawal shall, if the judgment-debtor so desires, be proclaimed at his expense, and a copy of the proclamation shall be affixed in the manner prescribed by Art.414 (2).

The attachment is to be withdrawn only under one of the following circumstances.

- 1) When the amount decreed with costs and all charges and expenses resulting from the attachment of the property have been paid to the court; or
- 2) When satisfaction of the decree is otherwise made through the court or certified to the court; or
- 3) When the decree which is the subject of attachment is set aside or reversed

The code says the attachment shall not be withdrawn. However, upon the satisfaction of any of the three conditions mentioned above, the attachment is automatically withdrawn, and no further action on the part of the court is necessary. In addition to this, the attachment will be withdrawn if the judgment debtor satisfies the decree, and then the court will proclaim the withdrawal of the attachment of the immovable property at the expense of the judgment-debtor. Once the attachment is withdrawn, any property in the custody of the court will be returned to the judgment-debtor or to the person from whom it was taken.

? How would the attachment on currency be withdrawn?

Art 416 of the code provides for the order of payment of coin or currency notes to the party entitled under the decree. When the property attached, therefore, is current coin or currency notes, the court may at any time during the continuance of the attachment direct that the coin or notes or the part there of sufficient to satisfy the decree be paid over to the party entitled under the decree to receive it the attachment will be withdrawn. This does not, however, mean that execution has been had on such property, but only that it has been turned over to the decree-holder pending the determination of execution. The decree holder may be, finally, required if the decree-is satisfied or execution otherwise does not take place.

? What would happen if the court becomes unable to proceed due to the default of the decree-holder?

According to at 417 of the code, if due to the default of the decree-holder, the court is unable to proceed further with the application for execution, after property has been attached, it may dismiss the case and proclaim the withdrawal of the attachment, or for sufficient cause, adjourn the proceedings to a further date.

Art. 417.- Determination of attachment
(1) Where any property has been attached in execution of a decree but by reason of the decree-holder's default the court is unable to proceed further with the application for execution, it shall either dismiss the application or for any sufficient reason adjourn the proceedings to a further date.
(2) Upon the dismissal of such application the attachment shall cease.

The decree-holder must cooperate fully with the court. It is believed that he has a better information about the financial position of the judgment debtor. If he fails to do so, and is in default, the application for execution will be dismissed, and the attachment is thereby extinguished automatically.

Up to now, we were discussing how the order to attachment can be effected, and how it is withdrawn. In practice, upon effecting the order of attachment, third parties may object the attachment for different reasons. Hence, we will address this issue next.

9.3.1.2. Objections to Attachment

Dear student, among the problems our courts in realty face concerning the attachment of property for the execution of decrees is objections to attachment. So, investigation of claims to the attached property constitutes the most important part of the attachment process. in executing a decree property may not be subject to attachment either because it is exempt from attachment or because it is not the property of the judgment-debtor.

? Who can object the attachment, and why?

Obviously, it is the judgment-debtor may file an objection to the attachment on the ground that the property is exempt from attachment under Art 404, and any person claiming that the property belongs to him rather than to the judgment-debtor may object the attachment. This rule is provided under Art 418.

Art. 418.- Investigation of claims to attached property
(1) Where any claim is preferred to, or any objection is made to the attachment of, any property attached in execution of a decree on the ground that such property is not liable to

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such attachment, the court shall proceed to investigate the claim or objection with the like power as regards the examination of the claimant or objector, and in all other respects, as if he was a party to the suit: Provided that no such investigation shall be made where the court considers that the claim or objection was designedly or unnecessarily delayed. (2) Any claim or objection under sub-art. (1) shall be made by presenting a written application to the court executing the decree. (3) The claimant or" objector shall adduce evidence to show that at the date of the attachment he had some interest in, or was possessed of, the property attached. (4) Where the property to which the claim or objection applies has been advertised for sale, the Court ordering the sale may postpone it pending the investigation of the claim or objection.

Also where a debt allegedly owing to the judgment-debtor is a share in the capital of corporation or property in the possession of third party and has been attached, the garnishee, officer of the corporation or any party in possession may file an objection to the attachment or prefer a claim to the property under art 409(7) of the code.

As to the question who can make objection on the attachment of property under art.404, it is only the judgment-debtor who can raise the objection that the property is exempt from attachment.

? How is the objection made?

Pursuant to art 418 (2) of the code, the objection is made by presenting a written application to the court executing the decree. Upon receipt of the application, the court proceeds to investigate the claim or objection. Where the objector was not a party to the original suit, he becomes a party to the proceedings for the purpose of the courts hearing his claim or objection, and is subject to the power of the court with respect to examination and the like as if he were a party. The objector must show that he had some interest in the property at the time of the attachment. This is the message of art 418 (3).

? What can the court do if it had already set the date for sale?

Where the property to which the objection applies has already been advertised for sale, the court may postpone the sale-pending its investigation. After the investigation, if the court is satisfied that for the reason stated in the application, or for any other reason the property is not subject to attachment, it is to release the property, wholly or to the extent it thinks fit, from the attachment. This rule is provided under art 419 of the code.

419.- Decision on claim or objection

(1) Where upon the said investigation the court is satisfied that for the reason stated in the claim or objection or for any other reason such property is not liable to attachment, it shall make an order releasing the property, wholly or to such extent as it thinks fit, from attachment.

(2) Where the court is satisfied that such property is liable to attachment, it shall disallow the claim or objection.

As per art 420, the court has the discretion to continue the attachment subject to mortgage or right in rem. When such property, subject to the mortgage, is advertised for sale, the fact that it is subject to mortgage will be included in the proclamation, and the interest of the person having the right will be fully protected. Since the purchaser is already informed the encumbrances thereon, he will take into consideration the fact of mortgage upon deciding the value of the property. Stated otherwise, this fact will influence the amount bid. Herein under I have extracted provisions of the civil procedure code governing the matter.

Art. 420.- Continuance of attachment subject to claim of encumbrance

Where the court is satisfied that the property is subject to a mortgage or right in rem in favour of some person not in possession, and thinks fit to continue the attachment, it may do so, subject to such mortgage or right in rem..

Art. 423.- Proclamation of sales by public auction

(1) Where any property is ordered to be sold by public auction in execution of a decree, the court shall cause a proclamation of the intended sale to be made.

(2) Such proclamation shall be drawn up after notice to the decree-holder and the judgment-debtor and shall state the time and place of sale, and specify as fairly and accurately as possible:

(a) the property to be sold and the estimated value thereof;

(b) any encumbrance to which the property is liable;

(c) the amount for the recovery of which the sale is ordered;

(d) the terms and conditions of the sale and manner in which and time within which the purchase price shall be paid; and

(e) every other thing which the court considers material for a purchaser to know in order to judge of the nature and value of the property.

(3) The proclamation shall also draw attention to the provisions of Arts.440-442 of this Code.

? What is the procedure involved in litigating the objection?

My dear student, there is no full-scale trial, and the court does not frame issues the objection procedure simply proves an expeditions remedy for the objector his right to the attached property. What is simply expected from the lower court litigating the objection is to properly conduct the investigation. The rights of the litigants have not been litigated as they would have been in ordinary suit over the property. It is, therefore, provided that where a claim or objection is preferred, the party against whom an order is made may institute a suit to establish the right which he claims to the property in dispute, but subject to the result of the suit, if any, the order shall be conclusive in accordance with art 421 of the code.

The purpose of this provision is to enable the claimant to establish his right to the attached property or the decree-holder to recover property that has been released from attachment in accordance with the ordinary judicial proceeding. If a suit is not brought, the order of the court upon the objection will be conclusive. After all these procedures have been implemented, and the court rules the objection out, the court will proceed to sale the property attached to satisfy the decree.

9.3.2. Sale

Dear student, welcome to the discussion on the apex of execution procedure to satiety a decree we can say that this is the concluding point where the proceeding on execution of decrees comes to an end. Once property has been attaches and, in case of objection, found to be subject to attachment, the court proceeds to order to attachment, the court proceeds to order the sale of the properly as far as the execution of the decree necessitates. The general rules governing sale generally are provided under Articles 422 to 431 of the Code. Also there are some specifically applicable to the sale of different types of property to the sale of different types of property we will first consider rules applicable to all sales for the satisfaction of a decree

9.3.2.1. Rules Applicable to All sales

Following the attachment of property of the decree debtor, unless otherwise directed all sales must be conducted by an officer of the court or a person appointed for this purpose, and made by publication Art.422 of the code provides for this

Art. 422.- Order for sale of property attached

(1) Any court executing a decree may on application order that any property attached by it and liable to sale, or such portion thereof as may seem necessary to satisfy the decree, shall be sold, and that the proceeds of such sale, or a sufficient portion thereof, shall be paid to the party entitled under the decree to receive the same.
(2) Unless otherwise directed, every sale in execution of a decree shall be:
(a) conducted by an officer of the court or by such other person as the court may appoint in this behalf (hereinafter referred to as the auctioneer); and
(b) made by public auction in accordance with the following Articles.
(3) Nothing in this Article shall prevent the court from authorizing a sale by private contract at the request or with the consent of the judgment - debtor and after hearing the decree-holder.

The persons legally authorized to conduct the sale is referred to as the auctioneer. The court, however, after hearing the decree-holder, may authorize a sale by a private contract at the request of or with the consent of the judgment debtor. This cannot be authorized against the objection of the judgment debtor, who has an interest in seeing that he highest sale price be realized and applied in satisfaction of the decree against him.

Under Art 422 (1), for the sale to be conducted, the decree holder is to make an application, which must be accompanied by a statement signed and verified in the manner prescribed for the signing and verification of pleadings as per Arts.92 and 93 of the code. This application should also contain the matters, in so far as they are known or can be ascertained, required to be specified in the proclamation of the sale as provided under art.424 of Code

Art. 424.- Application for sale

(1) An application for an order for sale under Art. 422 shall be accompanied by a statement signed and verified in the manner described for the signing and verification of pleadings and containing so far as they are known to or can be ascertained by the person making the verification, the matters required by Art.423 (2) to be specified in the proclamation of sale.
(2) For the purpose of ascertaining the matters to be specified in the proclamation, the court may summon any person whom it thinks necessary to summon and may examine him with respect to any such matters and require him to produce any document in his possession or power relating thereto, and may appoint an expert to estimate the value of the property to be sold.

Where the sale is to be made by public auction, the court must cause a proclamation of the sale to be made since the very idea of public sale assumes that the public will be advised and will have an opportunity to bid.

? What will be the effect of the absence of any publication?

The proclamation of sale may be drawn up only after notice to the decree holder and the decree debtor, and it must state the time and place of sale and must specify as farly and

accurately as possible the information contained under Art.423 of the Code. In the case of immovable property, the proclamation is to draw attention to requirements for the deposit following purchase and the effect of failure to pay the balance.

The sale still will be public if there are sufficient bidders.

? What would happen if no bidder appears or the highest bid is not obtained?

If no bidder appears or if the highest bid does not reach the sum equal to the minimum value of the property as specified in the proclamation, a second sale must be held as per Art.428 (1) so that there will be no danger that the property will be no danger that the property will be sold at an inadequate price as a result of the variation.

Art. 428. - Second auction
(1) Where the highest bid at a sale by auction does not reach a sum equal to the value specified in the proclamation in accordance with Art. 423 (2) (a), a second sale by auction shall be held after the issue of a fresh proclamation in the manner and within the time specified above and the sale shall thereafter be effected to the highest bid, whatever its amount.
(2) Where no bidder presents himself at the second auction, the court may, notwithstanding any provision to the contrary, authorize the decree-holder to take possession of the property ordered to be sold at its estimated value in full or partial satisfaction of the decree, as the case may be.

In proclaiming the sale, the court should be very careful to see the proclamation contains the necessary information since the details containing the information in the proclamation may substantially affect the amount that will be realized from the sale. The court, inter alia, must itself determine the estimated value, and its all information that might affect the amount bid, such as the fact that a third party has made a claim, etc. If the court makes sure that an accurate proclamation of sale is issued, a second auction is less likely to be necessary. The proclamation of sale must be publicized as provided under Art.425, and the consent of the judgment — debtor must be secured as per Art 426 until the property attached is perishable.

Art. 425.- Mode of making proclamations
(1) Every proclamation shall be made and published, as nearly as may be, in the manner prescribed by Art 414 (2).
(2) Where the court so directs, such proclamation shall also be published in a newspaper circulating at the place of the sale and the costs of such publication shall be deemed to be costs of the sale.
(3) Where property is divided into lots for the purpose of being sold separately, it shall not be necessary to make a separate proclamation for each lot unless proper notice of the sale cannot, in the opinion of the court, otherwise be given.

Art. 426.- Time of sale
Save in the case of property of the kind described in Art. 406 (2), no sale hereunder shall, without the consent in writing of the judgment-debtor, take place until after the expiration of at least thirty days in the case of immovable property, and of at least fifteen days in the case of movable property, calculated from the date on which the copy of the proclamation has been affixed on the court-house of the court.
Ordering the sale or, where the proclamation has been published in court newspaper, from the date of such publication, whichever is the later.

? Can the decree- holder bid at the sale?

Previously, we said that the court should take due care to protect the interests of both the decree holder and that of the judgment-debtor. If the decree- debtor, having interest in the outcome, bids at the sale, it may be detrimental to the decree debtor. Hence, the decree — holder, as a rule, may not bid at the sale without the written permission of the court, and the court must give a copy of the order granting permission to the auctioneer. The purpose of this restriction is to enable the court to impose conditions on the decree — holder if it thinks fit. This condition is provided for under Art. 430.

Therefore, for the decree — holder to participate in the sale, prior — permission of the court must be obtained. However, if the decree — holder purchases without permission, or has another purchaser the property for him, the court may, upon application of the judgment debtor or any other person whose interests are affected by the sale, set the sale aside and direct a resale as per the same provision extracted above.

The decree — holder must not commit any act of misrepresentation in the process of sale, and rather should collaborate with the court as well as the auctioneer. It is also provided that the auctioneer, or other person having any duty to perform in relation with the sale cannot, directly or indirectly, bid for, acquire or attempt to acquire any interest in the property sold. Such persons must perform their duty impartially and should not have any interest in the outcome of the auction. If the sale takes place in contravention of this rule, it may be set

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aside in accordance with the rules governing the setting aside of the sale where the decree — holder bid without permission. This rule is provided under Art. 431

Art. 431.- Restriction on bidding or purchase by officers
(1) No auctioneer or other person having any duty to perform in connection with any sale shall, either directly or indirectly, bid for, acquire or attempt to acquire any interest in the property sold.
(2) Where a sale takes place in contravention of the provisions of sub-art. (1), the sale may be set aside in accordance with Art.430 (3).

? Is there any condition under which the sale may be interrupted?

The main objective of the sale of the property belonging to the decree — debtor is to execute a decree in favor of the decree — holder. Thus, before the judgment — debtor can save the property from being should by auction by paying the amount of the debt an the costs initialed. At any time before the auctioneer hammers the sale to a close and declares the highest bid, the sale must be interrupted if the debt and costs, including the costs of the sale are tendered to the auctioneer or proof is given to his satisfaction that the is amount has been paid into the court which ordered the sale in accordance with Art 427. If there is a question as to whether the amount has been paid into the court, the auctioneer should stop the bidding until he has been paid.

Art. 427.- Stoppage of sale
Every sale shall be stopped if, before the lot is knocked down, the debt and costs, including the costs of the sale, are tendered to the auctioneer, or proof is given to his satisfaction that the amount of such debt and costs has been paid into the court which ordered the sale.

? Assuming that the sale is complete how is the payment to be made?

As is clearly stipulated under art 429(3), the proclamation of sale must specify how payment is to be made. Upon payment of the purchase money, the auctioneer is to issue a receipt and the sale becomes obsolete. If the purchaser does not pay the purchase price, or deposit

according to the provisions of the law or terms of the sale, the sale will be automatically cancelled, and a resale may be ordered by the court after the issuance of a fresh proclamation in accordance with the prescribed rules under Art.429(1). If the resale brings in the same or more price as the original sale, there will be no liability is imposed on the defaulting purchaser. If it brings less, however, he will be held liable at the instance of the decree—holder. In practice, it has been held that the 25% advance payment he made will be subject to forfeiture despite the resale entails less or more price.

Art. 429.- Defaulting purchaser answerable for loss on re-sale

- (1) Where the purchase price is not paid or deposited according to the provisions of the law or the terms and conditions of sale, such sale shall be deemed to be cancelled and a resale may be ordered by the court after the issue of a fresh proclamation in the manner and within the time specified above.
- (2) Any deficiency of price, which may happen on such resale and all expenses attending such resale, shall be certified to the court by the auctioneer and shall, at the instance of either the decree-holder or the judgment-debtor, be recoverable from the defaulting purchaser under the provisions relating to the execution of a decree for the payment of money.
- (3) On payment of the purchase money, the auctioneer shall grant a receipt for the same, and the sale shall become absolute,
- (4) For purposes of bidding, a resale by auction ordered under this Article shall be deemed to be a first auction.

? What would happen if the property is not sold because the highest bid does not reach?

In practice, this is the most frequent problem. Because of different reasons, such as boycotting, the property of the judgment — debtor will not be sold at the first auction. This is what the commercial Bank of Ethiopia faced in most towns of Amahara Region During 1986-1990 E.C. the Bank granted loan mortgaging the immovable property of debtors in Injibara, Delghi, Debre Tabor, etc, After the property subject to mortgage was for close and reclaimed to sale, it was extremely difficult to sell at the first auction.

Where the highest bid does not reach a sum equal to the value specified in the proclamation of sale, the property is not to be sold. Instead a second sale by auction will be held after the issuance of a fresh proclamation in accordance with the proscribed rules at the second sale, the highest bid, whatever its amount, must be accepted and the property sold as per Art. 428(1) In other words, there is to be a second sell before the property is sold at less than its estimated value. If there is no bidder at the second sale, the court may authorize the decree-holder to take the property in full or partial satisfaction of the decree as the court determines. That is why, as one of the attorneys to the Bank told this writer, the commercial Bank owns a number of immovable property in Injibara, Debejabor, etc.

So far, we have seen general rules available to sale of property for the purpose of effecting a decree. In the coming section, we will see sale of movable property.

9.3.2.2. Sale of Movable property

Dear students I hope you have good knowledge of the practice of sale of property for the purpose of executing a decree. Since almost 85% of the countrys populations is agriculturalist, the discussion in this sub section, especially where the property to be sold is agricultural produce, deserves great attention. Thirty years before, execution of decrees by way of attachment and sale of agricultural produce was very important and pragmatic, and still though this is practice. That is why I begged you to pay attention to the discussion here.

? How is agricultural produce sold to execute a decree?

Where the property to be sold is agricultural produce, the sale is to be held in certain places. If the produce is a growing crop, the sale is to be held on or near the land on which the crop has grown. If, on the other hand, the court is of the opinion that the sale will bring a higher price if held there, the court will order the sale to be made at a place of public resort. This is the clear message of Arts 432 and 433 of the code.

Art. 432.- Sale of agricultural produce

- (1) Where the property to be sold is agricultural produce, the sale shall be held :
(a) if such produce is a growing crop, on or near the land on which such crop has grown;
or
(b) if such produce has been cut or gathered, at or near the threshing-floor or place for treading out grain or the like or fodder-stack on or in which it is deposited :
Provided that the court may direct the sale to be held at the place of public resort, if it is of opinion that the produce is thereby likely to sell to greater advantage.
(2) The sale shall as far as possible be held on a market day.

? How is delivery of such property effect to the purchases if sold on the auction?

If the agricultural produce is attached as per Art 406, it will be simply delivered to the purchase after the sale. Where it is, on the other hand, in the possession of some other person than the judgment debtor, the delivery is to be made by giving notice to the person prohibiting him from delivering possession of the property to anyone except the purchase. The rule to this effect is provided under Art.436 of the Code.

In the case of sale of a share in corporation, delivered effected by a written order of the court prohibiting the person in whose name the share may be standing from making any transfer of the share to anyone except the purchase. The corporation may avail itself of the right to preemption In such as case, it should apply to the court for permission to pay that amount into court and ask the court to dissolve its order to sell on action. If the transfer thereof requires an endorsement, it may be made by the execution officer in accordance with Art 401 (4) of the Code. Until the transfer is effected, the court may appoint some person o receive any interest or dividend that is due and to sign receipt for the sale, which is as valid as if signed by the partying whose name the instrument or share stands. This is alone in accordance with Art 437

Art. 437.- Transfer of negotiable instruments and shares

- (1) Where the execution of a document or the endorsement of the party in whose name a negotiable instrument or a share in a corporation is standing is required to transfer such negotiable instrument or share, the provisions of Art. 401 (4) shall apply and the execution or endorsement shall have the same effects as an execution or endorsement by the party.
(2) Until the transfer of such negotiable instrument or share, the court may, by order,

appoint some person to receive any interest or dividend due thereon and to sign a receipt for the same, and any receipt so signed shall be as valid and effectual for all purposes as if the same had been signed by the party himself.

? How is ownership of the property sold on auction transferred?

Upon the completion of the sale, the court will make an order vesting the property in the purchaser. The purchaser is then considered the owner, and the order of the court operates as proof of ownership, enabling him to bring suit to recover the property and to resist a suit by another person to obtain the property from him as per Art.438 of the Code.

? What will be the effect of irregularity inconsistent with the sale?

We said the sale will be void if no proclamation of sale has been issued and the property is sold. However, in case of irregularities created in publishing or conducting the sale, the sale remains valid despite the irregularity. A person who has sustained any damage by the irregularity may institute a suit for compensation against the person responsible for the injury, or if that person is the purchaser, for the recovery of specific property and for compensation in default of recovery (see the discussion on Art.424). In case of sale of movable property, the sale is valid despite the irregularity; the rule on this is provided for under Art 435, which is not applicable in case of sale of immovable property, which will be discussed later.

Art. 435.- Irregularity not to vitiate sale
No irregularity in publishing or conducting the sale of movable property shall vitiate the sale, but any person sustaining any injury by reason of such irregularity at the hand of any other person may institute a suit against him for compensation or, if such other person is the purchaser, for the recovery of the specific property and for compensation in default of such recovery.

9.3.2.3. Sale of immovable Property

Dear student, in the third Chapter to the first module, we outlined the importance of immovable property to the Ethiopian people. As such, detailed rules govern its sale on execution. Therefore, to address fully the interests of all parties concerned in a fair manner, I advise you to invest much of your attention to the discussion in this part as you have done before. The discussion in this part is presented in two categories.

A. Special Provisions as to the sale

In case of sale of immovable property of the judgment — debtor, in order to enable the judgment — debtor to raise the amount of the decree and thus prevent the sale of property in execution, there is always a matter of postponement of the sale as soon as an order for the sale has been made, the judgment — debtor may apply for a postponement. If the court is satisfied that there is reason to believe that the amount of the decree may be raised by lease or private sale or some part thereof or of other immovable property, it may after hearing the decree — holder postpone the sale of the property on such terms and for such time as it thinks fit in order to enable the judgment debtor to raise the amount of the decree. The question simply is whether the court has reason to believe that he may raise the required amount

? Should the court always grant the postponement of the sale any time requested by the decree debtor?

Since the judgment debtor may lose his land if the sale is carried out, and since any order merely postpones the sale for a specified period, as far as is practicable the court should resolve any doubts in favor of the decree — debtor. Any doubts in favor of the decree — debtor and should not hesitate to postpone the sale. It does not, however, mean that the court should postpone the sale for no reason. It must be satisfied that the entire amount of the decree can be raised otherwise; the postponement would not be of any benefit rather than delaying the execution of the decree. Usually, save the order of the court otherwise, the decree holder could insist on the sale of the property to satisfy the remainder of the decree. Where a court orders the postponement, it issues a certificate to the judgment debtor authorizing him within a specified time, to make the proposed mortgage, lease or sale. Once

a postponement has been granted if there is a sale, it is not to be public and is not conducted by and officer of the court Art.439 of code provides for this situation.

Art. 439.- Postponement of sale to enable judgment-debtor to raise amount of decree

(1) Where an order for the sale of immovable property has been made if the judgment-debtor can satisfy the court that there is reason to believe that the amount of the decree may be raised by the mortgage or lease or private sale of such property, or some part thereof, or of any other immovable property of the judgment-debtor, the court may, on his application and on the conditions laid down in Art 422 (3), postpone the sale of the property comprised in the order for sale on such terms and for such period as it thinks proper, to enable him to raise the amount
(2) In such case the court shall grant a certificate to the judgment-debtor authorizing him within a period to be mentioned therein and notwithstanding anything contained in Art. 422, to make the proposed mortgage, lease or sale: Provided that all moneys payable under such mortgage, lease or sale shall be paid, not to the judgment-debtor, but, save in so far as a decree-holder is entitled to set off such money under the provisions of Art.430 (2), into court.
(3) No mortgage, lease or sale under this Article shall become absolute until it has been confirmed by the court.
(4) Nothing in this Article shall be deemed to apply to a sale of property directed to be sold in execution of a decree for sale in enforcement of a mortgage of such property.

If the property sold is a share of jointly owned immovable property and one of the bidders is a co shareholder, his bid for the property or for any lot takes priority over the bid of another person for the same amount. The theory is that a co-shareholder should have the property in preference to a stranger unless the stranger is prepared to bid higher, to enable the judgment debtor to raise the amount of the decree

Even in this situation if the stranger purchase the share, it is more likely that the property will be partitioned, and to prevent this, the co shareholder is given preference in the bidding. This is what is stipulated in Art 443

Art. 443. - Bid of co-sharer to have preference

Where the property sold is a share of undivided immovable property and two or more persons, of whom one is a co-sharer, respectively bid the same sum for such property or for any lot, the bid shall be deemed to be the bid of the co-sharer.

As I tried to explain somewhere earlier, upon the sale of immovable property, the person declared to be the purchase must deposit 25% of the purchase price with the auctions.

So, if the purchaser fails to make the deposit, it would be proper for the court to reopen the bidding since the first sale was not considered completed until the deposit is made. It has

been held that he may withdraw his bid if the purchaser persuades the court that he bid under a misrepresentation.

? Would it be different if the purchaser were the decree- holder upon permission of the court?

In this case, the purchase money and the amount due on the decree may be set off against one another, and the court executing the decree shall enter satisfaction of the decree in whole or in part in accordance with the provisions of Art 430(2).

Otherwise, the full amount must be paid to the auctioneer within 15 days from the sale of the property. But in practice, since the value of immovable property is more expensive and higher than movable property, the purchaser may need some time to obtain additional money particularly if he bid more than he originally anticipate. If the balance is not paid within 15 days, the court may, if it thinks fit and after defraying the expenses of the sale, order the deposit to be forfeited to the government. It must then order a resale, and the default in purchase forfeit all claim to the property or to any part of the sum for which it may subsequently be sold and for any deficiency in price, the defaulting purchaser would be liable to the decree holder and the decree debtor for. In this case, Art.429 (2) is applicable to all sales and the provision provided under Art 442 should be read in conjunction with this Article. Of course, this Article is applicable to both sales of movable and immovable property

Art. 440.- Deposit by purchaser and re-sale on default
(1) On every sale of immovable property the person declared to be the purchaser shall pay immediately after such declaration a deposit of twenty-five per cent on the amount of his purchase-money to the auctioneer.
(2) Where the decree-holder is the purchaser and is entitled to set off the purchase-money under Art.430 (2) the court may dispense with the requirements of sub-art. (1).

Art. 441.- Time for payment in full of purchase money
The full amount of purchase-money payable shall be paid by the purchaser to the auctioneer within fifteen days from the sale of the property: Provided that. In calculating the amount to be so paid, the purchaser shall have the advantage of any set-off to which he may be entitled under Art.430(2).

Art. 442.- Procedure in default of payment
In default of payment within the period mentioned in Art 441, the deposit may, if the

court thinks fit, after defraying the expenses of the sale, be forfeited to the Government, and the property shall be resold and tike defaulting purchaser shall forfeit all claim to the property or to any part of the sum for which it may subsequently be sold.

B. Setting - Aside the sale

Dear student, in most cases, after the sale is over, there will be setting aside of the sale. The reasons to do so may be because some irregularities were entailed or parties unworthy of bidding might have participated in the auction or elso. The main significant difference between sales of immovable property is that in certain circumstances a sale of immovable property can be set aside.

? What are the conditions under which a sale may be set aside?

Taking the aforementioned facts in to consideration, there are basically three conditions where this can be done i.e. a sale can be set aside. They are the following;

1. where the judgment — debtor has no saleable interest in the property
2. where another person has interest in the property and
3. Where there was material irregularity or fraud in the conduct of the sale resulting in substantial injury to the applicant.

These situations are clearly stipulated under Arts 445 and 446 of the code.

Art. 445.- Application to set aside sale on ground of irregularity or fraud

Where an immovable property has been sold in execution of a decree, the decree-holder, or any person entitled to share in a rateable distribution of assets, or whose interests are affected by the sale may apply to the court to set aside the sale on the ground of a material irregularity or fraud in publishing or conducting it: Provided that no sale shall be set aside on the ground of irregularity or fraud unless the applicant satisfies the court that he has sustained substantial injury by reason of such irregularity or fraud.

Art. 446.- Application to set aside sale where no saleable interest

The purchaser at any such sale in execution of a decree may apply to the court to set aside the sale, on the ground that the judgment debtor had no saleable interest in the property sold.

Among the three conditions, the third one is a complex one A sale may be set aside on the ground of a material irregularity or fraud in publishing on conducting the sale provided that

the applicant satisfies the court that he has sustained substantial injury by reason of such irregularity or fraud.

? What does that mean?

The irregularity in this regard might have effected the judgment- debtor for instance by lowering the amount of the sale so that the proceeds of the sale will be insufficient or any other person who could have been the potential buyer might not have participated in the auction. Thus they may seek to set aside the sale. The application to set aside on this ground may be made by these persons or by any person entitled to shares in a ratable distribution of assets. If the sale is set aside the irregularity could be rectified by the court

? What constitutes material irregularity?

There is no clear and fast rule as to what constitutes material irregularity and the code is silent in this regard Generally a material irregularity could have occurred if there has been a failure to comply with the provisions of the civil procedure code designed to ensure, and realize prospective buyers have all the necessary information necessary to make a proper bid. In India, where our code is directly copied from, among others, failure to list an encumbrance to which the property was subject improper valuation of the property to result in a sale at much less than real vale, and changing the place of sale without issuance of fresh proclamation of are held to constitute material irregularity.

Dear student, even though a material irregularity or fraud have occurred, the sale will not be set- aside unless the applicant can prove that he suffered substantial loss as a result of such irregularity. The injury must be proved independently and it is not presumed from the existence of the irregularity itself.

? What if the purchaser acted in good faith?

Here you have to note that there is no requirement that the purchaser be aware of the irregularity. Even though he acted in good faith, since its main objective is to raise the amount of the sale in favor of the judgment debtor, the sale will be set-aside where it results in substantial injury to the applicant. The application to this effect will be entertained as per Art 444 of the code.

Art. 444.- Application to set aside sale
(1) Where immovable property has been sold in execution of a decree, any person, either owning such property or holding an interest therein by virtue of a title acquired before such sale, may apply to have the sale set aside on such conditions as the court may determine.
(2) Where a person applies under Art. 445 to set aside the sale of his immovable property, he shall not, unless he withdraws his application be entitled to make or prosecute an application under this Article.
(3) Nothing in this Article shall relieve the judgment-debtor from any liability he may be under in respect of costs and interest not covered by the proclamation of sale.

9.3.3 Conclusion of the sale

Dear student, as we are approaching to finalize our discussion on execution of decrees, you have to once stop reading and try to recapitulate the main points. The court has ordered the attachment of property, proclaimed the sale thereof, and the property is sold on public auction. At this stage, those persons whose interests are affected by the sale applied to set it aside. Lets assume that the application failed to prove that he suffered substantial injury. The court will reject the application, what is more it will confirm the sale and proceed to effect delivery of the thing sold. These points will form the major part of the discussion in this last sub section of the chapter.

9.3.3.3.1. Confirmation of the sale

? When does the court confirm the sale and the sale become absolute?

The first condition is where no application to set-aside it is made. Where no application to set it aside is made within two months from the date of the sale, the sale becomes absolute, and it is not necessary for the auction purchaser to make an application to this effect. By the same token if the application to set it aside is disallowed, the sale becomes absolute. As a result of this, i.e. if the sale becomes absolute, the court will order confirming the sale, and issue a certificate specifying the property sold, the name of the purchaser and the date on which the sale become absolute. The Code, under Art.447 provides for this situation.

Art. 447.- Sale when to become absolute or be set aside

- (1) Where no application is made under Arts. 444-446 within two months of the sale, the sale shall become absolute.
- (2) Where any such application is made but it is disallowed, the court shall make an order confirming the sale and thereupon the sale shall become absolute.
- (3) Where a sale of immovable property has become absolute, the court shall grant a certificate specifying the property sold and the name of the person who at the time of sale is declared to be the purchaser. Such certificate shall bear date the day on which the sale became absolute.
- (4) Where any such application is made and allowed, the court shall make an order setting aside the sale: Provided that no order shall be made unless notice of the application has been given to all persons affected thereby.
- (5) Where a sale of immovable property is set aside under sub-art. (4), the purchaser shall be entitled to an order for repayment of his purchase-money, with or without interest as the court may direct, against any person to whom it has been paid.

Generally, if the sale has been set aside, the purchaser is entitled to an order of reinstatement of the purchase money with or without interest as the court may direct against any person to whom it has been paid. The purchaser in any case should be placed in as good a position as he was before the sale. However if no application to set, aside the sale was made, or if it was made but disallowed, the court will proceed to deliver the property to the auction purchaser.

9.3.3.2 Delivery of possession

? How the delivery of immovable property sold at auction is to be delivered to the auction purchaser?

In case of movable property, delivery of the property to the purchaser is a simple matter. He will be physically delivered with the property. Since immovable property, however, cannot be seized physically, and also resistance may be made by the person in possession, it is very necessary to provide a strict mechanism for delivery of the property to the purchaser. The code provides a method by which he may be put in possession as part of execution without institution a separate suit to recover possession. Where the property is in the possession of the judgment debtor or some other person in his behalf, the purchaser, may make application for delivery, and the court will order delivery by putting the purchaser or his appointee in to possession, and if necessary, by removing any person who refuses to vacate the purchaser agreed with the judgment debtor that the latter would remain in possession of the property, the judgment debtor may cause this to the attention of the court and, the court will be direct his removal under the same provision .

Art. 448.- Delivery of property in occupancy of judgment-debtor

Where the immovable property sold is in the occupancy of the judgment-debtor or of some person on his behalf or of some person claiming under a title created by the judgment-debtor subsequently to the attachment of such property and a certificate in respect thereof has been granted under Art 447 (3), the court shall, on the application of the purchaser, order delivery to be made by putting such purchaser or any person whom he may appoint to receive delivery on his behalf in possession of the property, and, if need be, by removing any person who refuses to vacate the same.

? Would it be different if the property is in the possession of other person entitled to possession?

Among others, a tenant, a lessee or any other person entered into possession is a person who may be legally in possession of the property sold to execute the decrees. Thus if the property is in the possession of such persons, the delivery is executed in accordance with Art.449 of the code. After the certificate has been granted and on application of the purchaser, the court will order the delivery to be made by affecting a copy of the certificate in some conspicuous place on the property ad proclaiming at any convenient place that the interest of the judgment-debtor has been transferred to the purchases. As of time, the tenant is advised that the purchaser is the owner of the property and entitled to receive the rent. The certificate of sale placed on some conspicuous place on the property constitutes notice to all that the

purchaser is the new owner and that the judgment- debtor cannot deal with the property further Art.449

9.3.3.3. Resistance to Delivery of possession

Dear student, if the immovable property sold at public auction is delivered peacefully; title will be transferred from the judgment- debtor to the auction purchases. This may be the case that the delivery of possession to the purchaser or for his appointee will be resisted. In this case, the applicant should first apply to the court to be put in possession under Art.448.

? What can the court do when possession is resisted?

As we have already discussed it, the court official is authorized to remove the person who refuses to vacate the same, but this may not be possible when the person so resists uses armed force to repel the court official or the purchaser. Whenever possession is resisted in this manner, upon the application of the purchaser, the court shall investigate the matter and shall summon the person against whom the application has been made to appear and answer the charge in accordance to Art. 450. This procedure applies only where the decrees-holder or the purchaser has never put into possession and any person causes the resistance. Once he has been put into possession, and is subsequently dispossessed, he cannot apply under this rule, and the litigation in this case will resort to an ordinary suit to recover possession based on Art.1149 of the civil code. This is the message of Art.450 of the Code.

Art. 450.- Resistance or obstruction to possession of immovable property

- (1) Where the holder of a decree for the possession of immovable property or the purchaser of any such property sold in execution of a decree is resisted or obstructed by any person in obtaining possession of the property, he may make an application to the court complaining of such resistance or obstruction.
- (2) The court shall fix a day for investigating the matter and shall summon the party against whom the application is made to appear and answer the same.

If the purchaser is still resisted against the decision of the court that directs that the purchaser shall be put in possession as per Art. 448, the court may order the detention of the person resisting for not more than thirty days under Art.451 of the Code.

? What would happen if the person resists is claiming in good faith to be a possessor?

Art.452 of the code provides for this rule. If the court is satisfied that a person other than the judgment-debtor occasions the resistance, claiming in good faith to be in possession in his own account an account of some person other than the judgment-debtor, the court shall make an order dismissing the application. You have to note, however, here that the court does not determine the claim of the person who is resisting. In such a case, the purchaser should institute a separate suit. Therefore, we can say that the crucial point is the status of the person who is resisting possession and the reason why he is doing so.

If the person is the judgment debtor or one holding for him or claiming through him, the court must determine whether there is good cause for his resistance. If there is not good cause if such person does not have a legal right to possession, and if the order is still resisted. But if the person resisting is not the judgment debtor, the court must dismiss the application since the litigation will resort to ordinary proceedings.

Art. 452.- Resistance or obstruction by bona fide claimant
Where the court is satisfied that the resistance or obstruction was occasioned by any person, other than the judgment-debtor, claiming in good faith to be in possession of the property on his own account or on account of some person other than the judgment-debtor, the court shall make an order dismissing the application.

My dear student, I hope you have tried to recapitulate the points discussed previously to substantiate the readings at hand. If that is the case, you are making a better understanding of the subject. That is good. The provisions just discussed above as to addressing the issue of resistance are applicable to both the situation where the decree passed was for recovery of immovable property and the situation where immovable property has been sold to satisfy a decree for the payment of money. In the first situation however, a person claiming rights with respect to that property must have acquired such rights prior to the time the suit resulting in the decrees for possession was instituted. Articles 453 and 454 govern this situation.

9.3.3.4. Subsequent suit.

As far as possible, the purchaser should be put in possession following the conclusion of sale. Until now, we have been considering the procedure employed to put the purchaser into possession. The procedure is summary only because the court is not determining who is entitled to the property. It is therefore provided that any person other than the judgment-debtor against whom an order regarding possession of immovable property is made may institute a suit to establish the right, which he claims to the present possession of the property as per Art.455 of the code.

Art. 455.- Orders conclusive subject to regular suit
Any person not being a judgment-debtor against whom an order is made under Art. 451, 452, or 453 (3) may institute a suit to establish the right which he claims to the present possession of the property, but, subject to the result of such suit, if any, the order shall be conclusive.

However, if no such suit is brought, the order is conclusive. The question at this point is as to the identity of the person making such suit.

? Who can bring a suit under this rule?

In our previous discussion, we said that the court under Art.452, will dismiss the application by the purchaser if it finds that the person resisting claims in good faith to be in legal possession so, if the purchaser or the decree holder was denied the application to avoid the resistance, and the applicant contends that person was not a good faith possessor, the applicant could sue to obtain possession against such person. Say the tenant. In that case, for instance, if the applicant contends that the person claiming to possess the property by agreement of tenancy, the question of tenancy could be lighted. On the other hand, the tenant could bring suit to establish his right to possession if the application of the purchaser had been granted, and the tenant was dispossessed. In the subsequent suit like this, the plaintiff has to show his right to present possession of the property.

To conclude the discussion, I would like to make the following remark. The procedures just discussed are only applicable to delivery and resistance on delivery of immovable property sold at public auction for the satisfaction of a decree. Once movable property has been sold, the sale is final, and no one may make a claim to dispossession or ownership of that property since ownership is acquired only by physical delivery of the property, unlike that of immovable property, in which case transfer of title matters most. In case of movable property any such claim we discussed above may be made only at the time of attachment, and not during or after sale.

SUMMARY

This is the final chapter of the course on Civil Procedure II. In this chapter, we have discussed how the operative part of a judgment i.e. decree can be executed. Execution of decrees refers to the mechanism under which the decision of the court in favor of the decree holder against the decree debtor can be implemented to satisfy the claim. The presentation in the chapter is provided under three sections.

The first section deals with jurisdiction of courts having power to execute a decree. In principle, we said that it is the court which passed the decree that will execute it. If, however, execution by that court is not feasible, the court rendering the decrees may, upon its own motion or by the application of the decrees holder, transfer the decrees to another court for execution. The transferee's court, in this case is directed to execute the decree and it may not in principle alter vary or add to the terms of the decrees. The problem here is whether the regional court can transfer as of right the execution of the decrees to federal courts and direct the execution therefore and the vice versa.

The second section presents the procedures to be followed in execution in the due time. It may be that the decree- debtor will satisfy the decrees voluntarily. In this case, execution proceedings are unnecessary. Hence, execution proceedings presuppose the failure of the decrees- debtor to execute the decrees. The decree holder will apply to the court and institute a proceeding in execution. Based on this application the court will examine the reason why the decree-debtor fails to satisfy. We said that depending on the nature of the decrees. The court will issue process on execution and if necessary may detain the decree-debtor who without good cause fails to execute the decree. The period of limitation to apply for execution is also provided to be ten years from the date of the decrees the court then will issue process of execution in the third section of this Chapter, we discussed the process of execution. The judgment- debtor will be examined. Where the court considers that the judgment-debtor does not have the means to pay the amount due in the decree, it, may not issue process of exception, save the right of the decree- holder to apply at any subsequent time on being satisfied that the judgment debtor has become able to pay. In the event that the judgment debtor has not shown cause why the decree should not be executed, the court will issue process for execution. In the final analysis, the decree will be executed by the attachment and sale of any property other than those properties listed in Art. 404 of the Code. It is where a civil proceeding comes to an end, and a case initiated sometime in the past will be considered closed. Cheers!

Self — Check Exercise

1. When is an execution proceeding necessary, and unnecessary?

2. Discuss the powers that the transferee court has in relation to executing the decree passed by another court.

3. Some people argue that there is no time limit for a first time application for execution under Art.384. Do you agree? Why? Why not?

4. Ato Belay has decrees sundered by the Sekota High court for 100,000 birr against Ato Yitagesu. On the other hand, Ato yitagesu has a decree rendered by the Awi High Court for 50,000 birr against Ato Belay. Ato Belay applied for execution in the Sekota High court. In the mean time, Ato Yetagesu, has applied for the court to executed his decrees against Ato Belay. Do you think that these decrees will be executed altogether as cross- decrees?

5. While the Commercial Bank of Ethiopia was applying for the sale of the property attached in Kuchi, (nowadays such matter are governed by Mortgage proclamation) W/ro Habtam opposed the attachement as per Art.418 of the Code claiming that she has bought the attached property from the judgment- debtor in 1987 E.C. The mortgage by the bank was registered in 1986. She, now, opposes the attachments and sale on the ground that the property belongs to her, and not to the judgment debtor. How would you resolve the case if you were the presiding judge?

6. Discuss “priority” in case of retable distribution when more than one application for execution is pending.

7. Explain the main difference concerning attachment and sale of movable and immovable property.

8. Why is the auctioneer expected to free from any interest in the outcome of the sale?

9. Can the decrees- holder bid at the sale of the property of the decrees- debtor at public action? Why? Why not?

CHAPTER TEN

OTHER PROCEDURAL MATTERS

Overview:

Dear distance student, I would like to welcome you to this last chapter of the course on Civil Procedure. In this miscellaneous chapter, issues of procedure, which are not in one or another way addressed in the previous nine chapters will be discussed. There are a number of procedural matters, which on the face seem minor problems of procedure. But practically, they are very technical and need great attention since they are more complex.

Among others, the chapter addresses the issues of summary and accelerated procedure, temporary injunctions and interlocutory orders, and procedure in arbitration.

Dear student, there are a number of such rules in the civil procedure code, and in this chapter I will only give you a brief discussion. This Chapter is not meant to discuss aspects of procedure governing the areas above in details, but only is intended to give you a brief introduction of the concepts. I hope you will picture the main differences among related concepts with the discussion in this chapter, and clearly identify when to apply the procedures addressed in this chapter.

Objective:

After successfully studying this chapter, the student will be able to;

- Explain what summary and accelerated procedures are
- Enumerate cases litigated either in summary or accelerated procedure

- Describe what orders are interlocutory and explain what effects they have
- Identify when temporary injunctions are ordered
- Explain the effect of temporary injunctions
- List out instances of interlocutory orders.

10.1. Summary and Accelerated Procedure

Under normal circumstances, the plaintiff will bring his case to court and will request the court to summon the defendant and defend his case before the court of law. Assuming that the statement of claim is sufficient both technically and legally, the court will cause the statement of claim to be served on the defendant together with the summons requiring him to appear in court with his statement of defense. What is important here is that the defendant is entitled to an opportunity to defend the case against him. That is to say that under normal circumstances, there is the necessity of employing a full scale trial; the plaintiff will institute a proceeding the defendant will defend, issues will be framed, evidence will be produced, and finally the court will render judgment. There are, however, cases where such full-scale trial may not be employed. Two of such instances are hence summary procedure and accelerated procedure. These two procedures, although they are different, they are related in the sense that the questions involved in both kinds of cases may be determined without full scale suit.

10.1.1. Summary Procedure

? What is Summary Procedure?

Summary procedure refers to a procedure by which the plaintiff may lodge his claim without the necessity of instituting a full scale suit. It is a proceeding that settles a controversy or disposes of a case in a relatively prompt and simple manner. Where a case falls on the provisions of summary procedure, the plaintiff has the option to employ it. And since the procedure is expeditious, the plaintiff will usually do so.

? When is Summary Procedure Available?

With regard to civil proceedings, the common law was wholly stranger to summary proceedings, and especially in India, summary procedure is available only in a suit on a negotiable instrument. In Ethiopia, a plaintiff can lodge his claim using summary procedure only if his case falls under the conditions listed out in Art.284 of the Civil Procedure Code. Accordingly, summary procedure is available where the plaintiff seeks only to recover a debt or liquidated demand in money payable by the defendant and arising;

- a. upon a contract, express or implied such as on a bill of exchange, promissory note, or other simple contract debt, or
- b. on a bond or contract written for payment of a liquidated amount of money, or
- c. on a guarantee where the claim against the principal is in respect of a debt or liquidated amount

To elaborate the issue a little bit, let's assume the following example

Example: Ato Wondu draws a Cheque to Ato Bayih, which orders Awash Bank to pay the latter 50,000 birr. Upon presenting the Cheque to the Bank, Ato Bayih was told by the Bank that Ato Wondu, who draws the Cheque does not have the said amount. The Bank simply refuses to effect payment. Though Ato Bayih informs Ato Wondu to give him the money, the latter again refused to pay the amount due. In this case, Ato Bayih is entitled to recover, and a summary suit for that amount would be proper.

The crucial question for the availability of a summary procedure is the liquidated amount of the debt.

? What constitutes a liquidated amount?

As a practical matter, it is difficult to exactly say what a liquidated sum is. In short, it may be said that a liquidated sum is an amount, which is certainly fixed, and ascertaining in advance, in contradistinction to a sum, which is uncertain, or it is a sum exactly determined at the time of the trial. The plaintiff must be entitled to recover a specific sum of money ascertained upon bringing the suit. If, for example, the defendant accepted goods under the contract but refused to pay the price, we can say that the plaintiff is entitled to recover a sum ascertained, and hence a summary suit for recovery of the price would be proper since the amount claimed is liquidated. If, however, the defendant did not accept the goods and if as a result of which the plaintiff incurs a loss, a summary suit would not be proper since the damages suffered by the plaintiff is not liquidated.

? How should a summary suit be filed?

Where the plaintiff wishes to employ summary procedure, his statement of claim should be endorsed as “Summary Procedure under Art.284” accompanied by an affidavit made by the plaintiff or by any other person who can swear positively to the facts, verifying the cause of action, and the amount claimed. Moreover, the plaintiff should state in his statement of claim that the defendant in his belief has no defence to the suit.

Note-summary procedure is designed for cases where the defendant is not likely to have any valid defence to the claim. As a result of this, the statement of claim is not served on the defendant. Instead, the court serves a special summons to the defendant advising him that he has been sued for a sum of money and that he must obtain leave to defend the suit, if he has any defence. Unless otherwise he applies to that effect, and obtains such leave from the court, he may not at all defend the suit against him.

? What would happen if the defendant so summoned does not appear?

As we said previously, to defend a summary suit, the defendant should apply for leave to defend. The defendant is given ten days from the service of summons to apply for leave. If the defendant fails to make such an application within the ten days, the plaintiff is entitled to a decree for an amount not exceeding the sum claimed in the statement of claim together with an interest, if any. This situation is provided for under Art.285 (2) of the Code. In other words, if the defendant does not apply for leave, his failure to apply demonstrates that he does not have a valid defence, and hence judgment will be entered against him.

As to how the application for leave to defend be filed, and what it should contain, I advice you to read Art.286 of the Code.

? What will the Court do if Application for Leave to Defend is made?

If the defendant applies for leave to appear and to defend, the plaintiff must be served with notice of the application. Then the court may do one of the following three things.

1. It may reject the application and refuse the leave as per Art.287 of the Code, or
2. It may grant leave, as per Art. 290 if it is satisfied that the defendant will establish a legally sufficient defence. For example, the defendant may argue that he has already made the payment, or
3. The court should grant leave unconditionally if it is persuaded that there is a bona fide dispute as to the existence of the debt.

My dear student, the main objective of summary procedure is to enable the plaintiff to have his claim determined as soon as possible. Thus, if the issues are clear following the application by the defendant, the court will order an immediate hearing, and decide the case summarily.

? What would happen if the service of summons was defective?

Usually, the court will render judgment in a relatively prompt and simple manner. If the court has entered judgment for the plaintiff, but subsequently discovers that the service of summons was not effective, it may set-aside the decree in favor of the plaintiff, and will grant the defendant leave to appear and defend. In this case, the provisions enshrined under Art.292 of the code will apply.

Dear student, so far, we have discussed the provisions applicable to summary procedure. Next, we will briefly discuss when accelerated procedure is available.

10.1.2. Accelerated Procedure

? How do you define accelerated procedure?

The Code does not define the term accelerated procedure. It refers to the procedure, which provides for the immediate hearing of certain kinds of cases speedily and without a full-scale trial. In this regard, it is similar with that of summary procedure.

What distinguishes accelerated procedure from summary procedure is that there is no named defendant in case of accelerated procedure. What is expected from the party applying to be heard under accelerated procedure is just to specify the capacity in which he acts, and the provision of the law (mostly substantive) under which it is made.

Note: The proceedings under accelerated procedure are ex-parte, and there is no defendant named to be served with the summons. Moreover, what the court do is to ascertain whether the party applying is qualified to act in such proceeding or not. And if he is not qualified to act, the court will simply dismiss the application.

? What will be the effect of dismissal of the application during accelerated procedure?

If the court considers that the subject matter of the application cannot be properly disposed of under accelerated procedure, or if the applicant is not qualified, the application will be dismissed. And a dismissal of the application does not result in **res judicata** as to the subject matter of the application, but a fresh application under accelerated procedure may not be made on the same ground again. However, when the necessary qualification is met, say the capacity in which the applicant acts is ascertained, a fresh application may be filed. Art.302 of the Code governs this situation.

Pursuant to Art.303 (2) of the Code, where the application is allowed, the court must make a decision under accelerated procedure in the form of a judgment or written order. Ordinarily, the court will make its decision on the basis of the application, but if it thinks fit, may require additional evidence.

? What kinds of matters are litigated under accelerated procedure?

Art. 305(2) of the code provide for the list of specific applications and contain directions to be followed in the disposition of such applications under accelerated procedure. Accordingly, the following cases will be litigated under accelerated procedure;

1. An application for change of name based on Art. 139 of the Civil Code;
2. An application for refusal to celebrate a marriage under the respective Family Code;
3. An application against refusal to permit an interdicted person to contract marriage, and an application for opposition to marriage under the Family Code;

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4. An application against refusal to prepare a record of civil status under Art. 470 of the Civil Code;
5. An application for withdrawal of interdiction, and dispensation from observance period of widowhood before contracting another marriage under the respective Family code;
6. An application against refusal to register an association under Art-601 of the Civil Code; etc

? Do you think that the listing under Art. 305(2) of the Code are exhaustive?

This provision only refers to specific application, litigated under accelerated producer. And a close reading of Art.300(2) envisage that the listing is not exhaustive. According to this provision, if the court concludes that they may be properly disposed of in this manner, applications other than those expressly referred to in Art. 305(2) may be heard under accelerated procedure. Therefore, the listing is not exhalative. Among others, an application or declaration of heirship may be heard under accelerated procedure.

? Can you think of such other application heard under accelerated procedure?

My dear distance student, as this section is meant to give you a brief introduction, the answer for the question I raised above is left for your own discussion. I advise you to list out as much as you can.

Upon making the necessary investigation and decision in favor of the application, the court will provide the applicant with a dated and signed certificate which states the contents of the decision in a concise form. This is the message of Art.305 (1) of the Code. The successful applicant then can present the certificate to the appropriate official, who will presumably make the required entry or permit in favor of the applicant to perform the desired act. If the

official wishes to contest the matter, he may move the court to set aside or modify its order. For a detailed understanding, I advise you to read provisions of the code from Art.300-306.

Note: previously, upon receiving the application under accelerated procedure, the court used to announce and notify any would be interested party to appear and oppose the granting of the application via news papers like Addis Zemen. It used to take a very longer period of time and it used to entail delays. But nowadays, the courts do not announce in that manner, and give decisions on the basis of the application in accordance with Art-303 of the code. Where another party would be interested, he could move the court to modify or set-aside it order granting the application. This practice in the opinion of this writer, will give they would be interested party the opportunity to appear and posse the order granting the application without delaying the proceeding.

My dear student I would like to make the following conclude remarks the provisions discussed in this section are designed to facilitate the disposition of cases where the claim is not likely to be disputed or where the nature of the claim is such the an immediate decision is required and feasible. While summary procedure is employed in cases where the defendant is presumed not to have a valid defence, in case of accelerated procedure, like do not have any defendant at all. Accelerated procedure involves only one party. Otherwise, both procedures provide an expeditious remedy in appropriate cases by avoiding of full-scale proceeding.

In the coming section, we will discuss temporary injunctions and interlocutory orders.

10.2. Temporary Injunctions and Interlocutory Orders

Dear distance student, in this section, we will discuss some provisional remedies pending the trial of the suit. In our courts, mostly, litigations will take some longer period of time to be finally decided. In the meantime, the subject, matter of the litigation may be affected due to the act or negligence of the party against whom it is requested or the defendant may refrain from doing his duty. In these cases, it will be necessary to make provision for the protection of the parties and the maintenance of the property in dispute pending the final determination of the case. In this regard, the court has extensive powers to ensure the purpose of bringing the suit will not be defeated by the action that occurs during the pendency of the case and that the property in dispute will be preserved. Next, we will discuss two of such remedies; temporary injunctions and interlocutory orders.

10.2.1. Temporary Injunctions

? What is an injunction?

An injunction is an equitable remedy in the form of a court order whereby a party is required to do, or to refrain from doing certain acts. It is an order of the court restraining a party, and the plaintiff may ask for injunctive relief as part of the final decree. At the core of an injunctive relief is recognition that monetary damages cannot solve all problems. Hence, a relief other than compensation, which cannot be calculated in terms of money, can be ordered by the court. For example, money damages would be of no relief to a land possessor who wished simply to prevent someone from repeatedly trespassing on his/and.

? What would happen if a party against whom an injunction is ordered fails to observe it?

As usual, the order of the court should be observed and adhered to. The party that fails to adhere to the injunction faces. Civil or criminal penalties as the case may be, and may have to pay damages or accept sanctions for failing to follow the courts order. In some cases, breaches of injunctions are considered serious criminal offences that merit arrest and possible prison sentence. This is one element of civil contempt under articles 480 and 481 of the Code. This is all about injunctions in general. There are so many cases of injunctions, but I will discuss only temporary injunctions.

A temporary injunction is a provisional remedy granted to restrain activity on a temporary basis until the court can make a final decision after trial. Before an injunction is granted, it is usually necessary to prove the high likelihood of success upon the merits of ones case and a

likelihood of irreparable harm in the absence of a temporary injunction. Otherwise, a party applying for such temporary injunction may have to wait for trial to obtain a permanent injunction. If it is granted, it may be issued on a short-term basis.

In Ethiopia, a temporary injunction is issued during the pendency of the suit to prevent certain action from taking place that would prejudice the other party to the suit. Art.154 of the Code provides for the mechanism under which a temporary injunction may be ordered. Accordingly,

1. Where action taken with respect to property will prejudice the other party, or
2. Where reach of a contract or the commission of an act, the defendant is threatening to breach the contract, the issuance of an temporary injunction will be authorized

? What specific condictions should be satisfied to grant a temporary injunction under Art.154 of the Code?

Among other things, the court should determine that the applicant has a prima facie case that protection is necessary so that inconvenience or harm is likely to result to the applicant if the injunction is not granted. Therefore, in accordance with Art.154 of the Code, a temporary injunction may be granted if the court is satisfied that;

- a. the property in dispute is in danger of being wasted, damaged or alienated by the party to the suit,
- b. the property in dispute is in danger of being wrongfully sold in execution of a decree
- c. the defendant threatens or intends to remove or dispose of his property with a view to defraud his creditors, or
- d. The defendant is breaching the contractor committing other act prejudicial to the applicant.

? How the application for temporary injunction is be heard?

The party applying for a temporary injunction must make a motion to the court, and the facts necessitating the injunction may be proved by affidavit under Arts. 154 and 155. Where the injunction is to restrain the breach of a contract, or else, notice of the application should be given to the opposite party. The party against whom it has been issued may then apply as per Art. 158, to have the injunction set aside on the ground that it was improperly granted. This implies that a temporary injunction will be issued only after the defendant receives notice and an opportunity to be heard. However, exceptionally, the injunction may be issued *ex parte* if the object of the injunction would be defeated by the delay in giving notice.

My dear student, once granted, the injunction subsists until the suit is disposed of pursuant to Art. 158, however, the court may vary or set the injunction aside on application made by any party dissatisfied with such order. Now, I can say that you have a clear picture of temporary injunctions. Next, we will consider interlocutory orders.

Interlocutory Orders

As we discussed earlier, in litigating a case, the court has extensive powers. In the course of a proceeding, the court makes orders that will not finally dispose of the case, and there are also orders, which will finally determine the case.

? What is an interlocutory order?

Broadly defined, an interlocutory order is any order of the court during the course of the proceeding that the court considers necessary or expedient to be made pending the determination of the case finally, which can refer to an order of the court given in an intermediate stage between the commencement and termination of a cause of action, used to provide a temporary or provisional decision on an issue. Thus, an interlocutory order is not a final decision of a court. Articles 160 to 165 of the Code provide for the provisions governing interlocutory orders. I advise you to go through them thoroughly.

? When is an interlocutory order given?

Pursuant to Art.165 of the Code, the court may at any time pending the decision of the suit make such orders upon application by one party and notice to the other. Once granted, interlocutory orders are not appealable in many legal systems. Also in Ethiopia, the decision on an interlocutory matter is not generally appealable. When a case is concluded, any aspect of interlocutory order that has become debatable may be challenged in an appeal from the judgment. However, according to Art.320 (4), an interlocutory order is appealable if the order directs,

- a) The arrest or detention of any person, or
- b) The transfer of property from the hands of one party into the hands of the other,
- c) An application for grant of habeas corpus is refused.

Other than these cases, no appeal lies against interlocutory orders. This rule is set in Art.320 (3) of the code.

? Can you list out some kinds of interlocutory orders?

My dear distance student, it is difficult to list out all instances of interlocutory orders. However, the following decisions of the court may be called as instances of interlocutory orders; an order on adjournment, order on preliminary objections, a decision on the admissibility or inadmissibility of oral or documentary evidence, a decision on permission to sue as a pauper, an order for the arrest of the defendant, an order to proceed on ex parte, and the likes.

My dear distance students, the Code consider certain provisions regarding specific kinds of interlocutory orders. So, I advise you to read them. Next, we will discuss procedure in arbitration

10.3 Procedure in Arbitration

? How do you define arbitration?

Blacks Law Dictionary defines the term arbitration as “a method of dispute resolution involving one or more neutral third parties who are usually agreed to by the disputing parties and whose decision is binding. So, it is the process whereby the parties to a dispute entrust its resolution to a third party called the arbitrator, who undertakes to settle the dispute in accordance with the principles of law.

It has also international importance. For instance, the great majority of today's collective bargaining agreements provide for an impartial arbitrator to hear and decide grievances under the bargaining agreements. In the common law legal system, for instance, the arbitration procedure for labor grievances is set out in the collective bargaining agreement.

In Ethiopia, arbitration is governed by the civil code from Arts. 3325 — 3246. In these Civil Code provisions, it is provided that the procedure to be followed in arbitration shall be governed by the civil Procedure Code. That is why we decide to discuss it here.

The Civil Procedure Code, from Arts.315 -319 sets forth the rule, and provides for the procedure to be followed on arbitration.

Pursuant to Art.315(2), the provisions governing the procedure in arbitration are applicable where arbitration is required by law, or the parties have entered into a written agreement to submit present or future disputes to arbitration. In the latter case, upon the parties, for instance, might have included a clause upon the conclusion of the contract stating that their differences will first be resolved in arbitration. In this case, the ordinary court will not have

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first instance jurisdiction to try such parties If a party who concluded an agreement to submit his case for arbitration brings a court action, an affirmative defiance asserting that the subject matter of the action has already been settled in arbitration, may be raised.

? When is arbitration required by law?

This is what we call compulsory arbitration when the law says so, the parties will be forced to settle their dispute in arbitration. For instance, under the Labor Law, if a dispute arises concerning collective agreement, the parties will be forced to settle their dispute in arbitration; there will be arbitration of employees grievance relating to the alleged violation of their rights under a collective bargaining agreement.

? How is the arbitrator appointed /selected?

An arbitrator is a neutral person to the case who resolves the dispute between parties. In most cases, both parties are required to choose their arbitrator. Sometimes it may become necessary for the court to appoint an arbitrator, especially where an arbitrator is disqualified or removed as per Art.317 (2). Nowadays, there are specialized bodies, which are entrusted with the power of arbitration. In Addis Ababa, for instance, there is the Ethiopia Arbitration and Reconciliation center. Also there are some specialized, say commercial arbitrators. In the presence of such specialized arbitrators, the court will even refer the case to such organs, and to some extent they are preferred.

? Why is arbitration important and preferred?

First and for most, the procedure for arbitration is designed to ensure that the proceedings are conducted expeditiously and fairly. Moreover, arbitrating proceedings are informal, and this informality is important. For the first thing, it avoids expense and time involved in court proceedings. For the other thing, fairness is given prominence upon giving the award. The point is that arbitral proceedings must be fair to both parties. Unlike arbitral proceedings, the judge in the court will give judgment based on the law making one winner and the other loser.

To conclude our discussion, the arbitral tribunal will have all the powers a court has with regard to the disposition of the case at hand. The arbitrator must hear the parties allow them to produce evidence, and it must decide all question involved according to law and fairness. The parties, according to Art.318, must fix a period within which the arbitral award must be given. The award, which is the judgment of the arbitration must be in the same form as a judgment and must deal with the question of costs. The provisions of the code relating to execution of decrees are also applicable to the execution of arbitral awards. Articles 350-357 of the Code govern appeals from arbitral awards.

Dear distance student, now, I hope that you have a brief understanding of the presentation in this chapter. The detailed understanding of the matters discussed is left for your own reading.

SUMMARY

In this Chapter, we have discussed some technical and important procedural matters, which are not directly discussed in the other chapters. The Chapter gives a brief introduction of the issues of summary and accelerated procedure, temporary injunctions and interlocutory orders, and procedure in arbitration. The concepts mentioned are presented in three sections.

Section one presents summary and accelerated procedures. While summary procedure is employed in cases where the defendant is presumed not to have a valid defence, in case of accelerated procedure, we do not have any defendant at all. Accelerated procedure involves only one party. Otherwise, both procedures provide an expeditious remedy in appropriate cases by avoiding of full-scale proceeding.

In the second section, we discussed temporary injunctions and interlocutory orders. A temporary injunction is a provisional remedy granted to restrain activity on a temporary basis until the court can make a final decision after trial. On the other hand, an interlocutory order is any order of the court during the course of the proceeding that the court considers necessary or expedient to be made pending the determination of the case finally, and is used to provide a temporary or provisional decision on an issue.

In the third section, we discussed the procedure involved in arbitration. It is a method of dispute resolution involving one or more neutral third parties who are usually agreed to by the disputing parties and whose decision is binding. Though it is an aspect of substantive law in Ethiopia, the Civil Procedure Code provides for the provisions governing arbitration.

SELF-CHECK EXERCISE

1. What are the main similarities and differences between summary and accelerated procedure?

2. List exhaustively the kind of cases triable under accelerated procedure.

3. Some cases are subject to arbitration before tried by ordinary courts. This happens when there is mandatory arbitration. When is arbitration mandatory?

4. Lets assume that a court gave a ruling on the objection raised against the material jurisdiction of the court. The defendant is aggrieved by the decision of the court, which overruled the objection. Can he immediately appeal if he wishes so?

5. When an injunction is become a final remedy?

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